

Community Development Block Grant
Oldham County Fiscal Court / Pillar Housing Project
Documents to Be Signed by Judge for Review and Approval

- B Resolutions approving Grant Agreement and related matters
- 02 Resolution adopting Residential Antidisplacement and Relocation Assistance Plan
- 05 Resolution adopting KCDBG Procurement Code
- 06 Letter of assurance that all eClearinghouse conditions will be met
- 07 Resolution that cost overruns will be borne by Pillar
- 09 Legally Binding Agreement between Oldham County and Pillar
- 11 Resolution adopting Revolving Fund Guidelines
- 13 Authorized Signature Form
- 14 Electronic Transfer of Funds Form
- 15a Resolutions adopting Fair Housing Resolution
- 15b Resolutions adopting Policy of Nondiscrimination on the Basis of Disability Status
- 15c Resolutions adopting Section 504 Matters
- 15e Resolutions adopting Title VI Matters

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

**A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT**

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

Grant Agreement

NOW THEREFORE BE IT RESOLVED, that, as required by Section 4(A)(2) of the Grant Agreement, the execution and delivery of the Grant Agreement, the form of which is attached hereto, by the Oldham County Fiscal Court be and hereby is authorized and approved, and that the County Judge/Executive of the Oldham County Fiscal Court be and hereby is authorized and directed to execute and deliver the Grant Agreement for and on behalf of the Oldham County Fiscal Court, with such changes as he shall approve in his discretion, said acts being done in such manner and form as to comply with all applicable laws to make the Grant Agreement the valid and legally binding act and agreement of the Oldham County Fiscal Court;

Legally Binding Agreement

RESOLVED FURTHER, that, as required by Exhibit D to the Grant Agreement, the Legally Binding Agreement between the Oldham County Fiscal Court and Pillar, the form of which is attached hereto, as may be amended from time, be and hereby is approved and authorized, and the execution and delivery of same by the County Judge/Executive, with such changes as he may approve in his discretion, be and hereby is authorized and approved;

G.R.A.N.T. Program Agreement

RESOLVED FURTHER, that, upon receipt and satisfactory review by the County Judge/Executive and the County Attorney, the execution and delivery by the County Judge/Executive of a grant agreement with the Kentucky Cabinet for Economic Development (“KCED”), pursuant to which KCED will award to the Oldham County Fiscal Court a G.R.A.N.T. Program grant in the amount of \$95,000 to be used as the local matching funds for the Project, be

and hereby is authorized and approved;

CDBG Administration Agreement

RESOLVED FURTHER, that the execution and delivery by the County Judge/Executive of a Contract for Professional Services with Kentuckiana Regional Planning and Development Agency (“KIPDA”), the form of which is attached hereto, pursuant to which KIPDA will administer the CDBG for a fee of \$35,000, be and hereby is authorized and approved;

CDBG Payment Requests

RESOLVED FURTHER, that the execution and delivery to DLG from time to time of payment requests for applicable disbursements of the CDBG by the County Judge/Executive, prepared by KIPDA and deemed satisfactory by the County Judge/Executive or his designee in their sole discretion, be and hereby is authorized and approved; and

General

RESOLVED FURTHER, that the County Judge/Executive of the Oldham County Fiscal Court and his designees be and hereby are authorized and directed to execute and deliver all such documents and take all such actions as are deemed necessary or desirable in connection with the CDBG and the Project, and all such acts taken hereto be and hereby are authorized, approved, ratified, and confirmed.

So resolved this _____ day of _____, 2026.

Honorable David Voegle
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk



Commonwealth of Kentucky

CONTRACT

Document Number: PON2 112 2700000206 **Version:** 1

Record Date:

Document Description: 25-026 Oldham Co-Crestwood Pillar Housing

Cited Authority: KRS147A.002
Community Block Grant Program

Reason for Modification:

Issuer Contact:

Name: Mark Williams
Phone: 502-892-3485
E-mail: MarkP.Williams@ky.gov

Vendor Name:

OLDHAM COUNTY FISCAL COURT

100 W JEFFERSON ST

SUITE 4
LAGRANGE KY 40031

Vendor No.

KY0035564

Vendor Contact Name:

MELISSA HORN

Phone:

502-222-9357

E-mail:

MHORN@OLDHAMCOUNTYKY.GOV

Shipping Information:

Department for Local Government - Office of Grants
100 Airport Rd, 3rd Fl

Frankfort KY 40601

Billing Information:

Department for Local Government - Office of Grants
100 Airport Rd, 3rd Fl

Frankfort KY 40601

Effective From: 08/31/2026

Effective To: 12/31/2028

Line Item	Delivery Date	Quantity	Unit	Description	Unit Price	Contract Amount	Total Price
1		0.00000		25-026 Oldham Co-Crestwood Pillar Housing	\$0.000000	\$1,000,000.00	\$1,000,000.00

Extended Description:

Location: Crestwood, Oldham County, Kentucky

Scope of Services:

Funds will be used exclusively for site work preparation and administrative services. Site preparation work will include soil and erosion control, clearing, earthwork, drainage, utility work, retaining walls, and hardscapes. The site work will help with the construction of a 72-unit apartment complex to be located at 7519 Apple Patch Court in Crestwood, Kentucky. The units will be offered to handicapped adults with intellectual and developmental disabilities at an affordable price.

TOTAL CONTRACT AMOUNT	\$1,000,000.00
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GRANT INFORMATION AND IDENTIFICATION

Grant Agreement Number (pass through): 25-026

Subrecipient: Oldham County

Project Name: Oldham County – Crestwood Pillar Housing Project

Federal Agency: U.S. Department of Housing and Urban Development

Pass-Through Agency: Kentucky Department for Local Government

Assistance Listing Title: Community Development Block Grant / State’s Program (Non-Entitlement)

Assistance Listing Number (formerly CFDA): 14.228

Award Year: 2025

GRANT AGREEMENT

This Grant Agreement (GA) is entered into, by and between the Commonwealth of Kentucky, Department for Local Government (“the Commonwealth”) and Oldham County (“the Recipient/ Contractor”) to establish an agreement for the Oldham County – Crestwood Pillar Housing Project. The initial GA is effective from August 31, 2026, through December 31, 2028.

Location: Crestwood, Oldham County, Kentucky

Scope of Services:

Funds will be used exclusively for site work preparation and administrative services. Site preparation work will include soil and erosion control, clearing, earthwork, drainage, utility work, retaining walls, and hardscapes. The site work will help with the construction of a 72-unit apartment complex to be located at 7519 Apple Patch Court in Crestwood, Kentucky. The units will be offered to handicapped adults with intellectual and developmental disabilities at an affordable price.

Pricing:

Community Development Block Grant (CDBG) – not to exceed: \$1,000,000

Project costs: \$965,000

Administration Costs: \$35,000

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1. GENERAL PROVISIONS

A. Contents of Agreement

This Grant Agreement, hereinafter called the "Agreement," shall consist of the following documents which are incorporated by reference as if fully set out herein: (1) the Grant Agreement and all exhibits to which this Grant Agreement refers; (2) the Application, including the Statement of Assurances; (3) all State and Federal Law requirements to which the Application and this Agreement refer or apply; (4) the Kentucky Community Development Block Grant Handbook currently in effect, plus any advisories; (5) The Guide to National Objectives and Eligible Activities for State CDBG Programs; (6) any applicable administrative regulations; and (7) any amendments or modifications to any of the above referenced requirements.

B. General Definitions

Unless specifically provided otherwise or the context otherwise requires, when used in this Agreement:

- (1) "Act" means the Housing and Community Development Act of 1974, Pub. L. No. 93-383, as amended.
- (2) "Application" means the Commonwealth Small Cities Community Development Block Grant (CDBG) Application, and such other submittals, as are specified in Exhibit A of this Grant Agreement.
- (3) "CDBG" means a grant guided by Title I of the Housing and Community Development Act of 1974, as amended and those regulations set forth in 24 CFR Part 570, Subpart I, as may be amended from time to time and all other applicable Federal and State regulations and laws and assurances signed by Recipient at the time the Recipient's Application was submitted.
- (4) "Commonwealth" when not used to designate the territory of the Commonwealth of Kentucky shall mean the Department for Local Government, its Commissioner, or any other person to whom the Commissioner has delegated authority to act with respect to matters covered by this Agreement.
- (5) "Default" means any default set forth in Section 6-A to this Agreement.
- (6) "Eligible Costs" means costs for the activities specified in Exhibit B of this Agreement for which grant funds are budgeted as specified in Exhibit C of this Agreement, provided that such costs (i) are incurred in connection with any activity which is eligible under Section 105A of Title I of the Act, and (ii) conform to the requirements of Attachment B of Office of Management and Budget Circular Omni Circular (Cost Principles Applicable to Grants

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and Contracts with State and Local Government), as may be amended from time to time. For purposes of determining the conformity of costs to said Attachment B, all costs set forth in Section C thereof may be considered eligible without prior approval of the Commonwealth.

(7) "Environmental Conditions" means the condition imposed by law, particularly 24 CFR Part 58, and the provisions of the Agreement which prohibit or limit the commitment and use of grant funds until certain procedural requirements have been completed.

(8) "Environmental Requirements" means the requirements described in 24 CFR Part 58.

(9) "Environmental Studies" means all eligible activities necessary to produce an "environmental document", as that term is defined at Section 1508.10 of 40 CFR Part 1508, or to comply with the requirements of 24 CFR Part 58.

(10) "Grant Funds" means those funds to be provided by the Commonwealth to Recipient pursuant to the terms of this Agreement, as specified in Exhibit A of this Agreement.

(11) "HUD" means the United States Department of Housing and Urban Development.

(12) "Participating Party" means any person, entity, firm, corporation or funding source identified as such in Exhibit A and/or B to this Agreement.

(13) "Program Income" means the CDBG portion of: (i) any income earned by Recipient, or an agent or agency of Recipient, from the disposition of real or personal property acquired in whole or in part with grant funds; (ii) the repayment proceeds (including principal and interest) of any loan made in whole or part with grant funds; (iii) any other revenues defined as program income in 24 CFR Part 570, Subpart J. The "CDBG portion" means an amount computed by applying the percentage of participation of CDBG funds (i) in the acquisition cost of the property to the total income from the disposition of such property, (ii) in the amount of the loan to the total repayment proceeds of such loan, or, (iii) in the cost of an activity to the total income from such activity.

(14) "Project" means the activities described in the Application and in Exhibits B and C of this Agreement, which are to be carried out to meet the objectives of the CDBG Program.

(15) "Recipient" means the local governmental entity receiving grant funds pursuant to this Agreement, as more particularly identified on the cover page of this Agreement, as well as "contractor" as defined in KRS 45A.030.

(16) "Recipient Activities" means those activities of the Project to be carried out by the Recipient, its agent or agency, which activities are described in Exhibit B of this Agreement and further defined in the Application.

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(17) “Subrecipient” means governmental or private nonprofit organizations chosen by the Recipient to undertake certain eligible CDBG activities identified as such in Exhibit A and/or B to this Agreement.

2. AMOUNT AND AUTHORIZED USES OF GRANT FUNDS

A. Grant Assistance Provided

In consideration of the various obligations undertaken by the Recipient pursuant to this Agreement, as represented by the Recipient in the Application, the Commonwealth agrees, subject to the terms and conditions set forth herein, to provide the Recipient with grant funds in the amount specified in Exhibit A of this Agreement.

B. Authorized Uses of Grant Funds

The grant funds provided to the Recipient pursuant to this Agreement shall be used only for the specific purposes described in Exhibit B of this Agreement and in the amounts budgeted in Exhibit C of this Agreement, subject to the project amendments provisions of the Commonwealth CDBG program.

C. Adjustments to Grant Funds

(1) The amount of grant funds which the Commonwealth has agreed to provide to the Recipient under this Agreement has been determined by the Commonwealth in reliance upon the cost estimates of the Recipient with respect to the activities set forth in the Application. The Commonwealth reserves the right to reduce the grant amount (i) to conform to any revision to which the Recipient and the Commonwealth may agree with respect to Exhibits B or C of this Agreement, (ii) if the actual costs for activities are lower than those set forth in Exhibits B or C of this Agreement, or (iii) if the investment by Participating Parties is less than the amount specified in Exhibits B, C or D.

(2) The parties understand that funding pursuant to this Agreement may be discontinued by the General Assembly in subsequent budgets.

D. Recipient's Use of Program Income

(1) “All Program Income shall be retained by the local governmental Recipient, unless specifically directed otherwise by the Department for Local Government.”

(2) All Program Income which is received by the Recipient, prior to completion of all Recipient Activities shall be used prior to, and in place of, any draw of grant funds to the extent adequate to pay costs so incurred.

(3) Unless otherwise specifically stated in Exhibit B of this Agreement, all Program Income received by the Recipient, after completion of all Recipient Activities shall be used by the Recipient, for community or economic development activities eligible for assistance under Title

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I of the Act as specified in the Guide to National Objectives and Eligible Activities for State CDBG Programs.

3. DISBURSEMENT OF GRANT FUNDS

A. Authorization

(1) Promptly after the Commonwealth has received from the Recipient a fully executed copy of this Agreement and has approved evidentiary materials required by Exhibit D of this Agreement that would allow a draw of grant funds pursuant to the terms of Exhibits B and C of this Agreement, the Commonwealth shall authorize the amount of grant funds specified in Exhibit A of this Agreement.

(2) The Recipient is authorized to draw grant funds only in accordance with the provisions of this Agreement and the procedures established by the Commonwealth. No payment by the Commonwealth of an improper or unauthorized draw to the Recipient shall constitute a waiver of the right of the Commonwealth to challenge the validity of said draw, to enforce all rights and remedies set forth in the Agreement, or take corrective or remedial administrative action, which action may include, without limitation, suspension or termination of the Recipient's funding under this Agreement.

(3) The disposition of any grant funds that remain available following completion of the Project, termination of this Agreement by the Commonwealth, or termination of the Project for any cause, shall be in accordance with closeout procedures then in effect or established by the Commonwealth including provisions of OMB Omni Circular and the Recipient shall not have any rights to such grant funds.

B. Incurring Costs for Project Activities

(1) The use of grant funds is conditioned upon the Recipient incurring costs to be paid in accordance with this Agreement or as otherwise approved by the Commonwealth in writing. Except as permitted by 24 CFR Part 58, no costs to be paid out of project funds may be incurred by the Recipient until all Environmental Conditions of 24 CFR Part 58 have been fully satisfied and the Commonwealth has issued the environmental clearance required by 24 CFR Part 58.

(2) The authorization to incur costs in subsection (1) above is not an authorization to reimburse those costs and does not mean or imply that such costs will be reimbursed out of grant funds. The Recipient may voluntarily, at his or her own risk, and upon his or her own credit and expense, incur costs as authorized in subsection (1) above, but his or her authority to reimburse or to be reimbursed out of grant funds shall be governed by the provisions of this Agreement applicable to the payment of costs and the release of funds by the Commonwealth.

(3) Prior to the issuance by the Commonwealth of the environmental releases required by 24 CFR Part 58, the Recipient may not use any funds, including local funds, to take any action with

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respect to the Project where such action might have an adverse environmental effect, would limit choices among competing alternatives, or might alter the environmental premises on which the pending clearance is based in such a fashion that the validity of the conclusions to be reached would be affected.

C. Authorization by the Commonwealth for the Recipient to Draw Grant Funds

Recipient's draw of grant funds can occur only after the following has occurred:

- (1) The Commonwealth has issued the environmental clearance required by 24 CFR Part 58,
- (2) The Commonwealth has approved the required evidentiary materials specified in Exhibit D of the Agreement,
- (3) The Commonwealth has authorized, per the executed Notice of Approval of Evidentiary Materials and Release of Funds, the Recipient's ability to draw grant funds,
- (4) Recipient shall have submitted all certifications and materials required as conditions precedent to Recipient's authority to pay costs out of grant funds,
- (5) If authorized by Exhibit D herein and if the Commonwealth finds Recipient has timely and acceptably submitted the evidentiary materials in Exhibit D herein, approved same, and if no default has occurred, as defined in Section 6-A herein, and
- (6) Recipient has not been served by the Commonwealth with notice of Recipient's suspension of authority to so draw the grant funds nor is in breach of its obligation to report a default.

4. REPRESENTATIONS, WARRANTIES, AND OBLIGATIONS

A. Recipient's Representations and Warranties

The Recipient has, by and through consultations among all appropriate members of the Recipient's governing body and its officers, examined each of the following and by its execution of this Agreement the Recipient does, upon information and belief, represent and warrant to the Commonwealth that:

- (1) The Recipient is duly organized and validly existing under the laws of the Commonwealth and has all the requisite power and authority to enter into this Agreement and to assume the responsibilities for compliance with all Federal and State laws and regulations.
- (2) A resolution, motion, order or ordinance has been duly adopted, passed or enacted as an official act of the Recipient's governing body, authorizing the execution and delivery of this Agreement by the Recipient and authorizing and directing the person executing this Agreement to do so for and on behalf of the Recipient, said acts being done in such manner and form as to

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comply with all applicable laws to make this Agreement the valid and legally binding act and agreement of the Recipient.

(3) There is no action, proceeding, or investigation now pending, nor any basis therefore, known or believed by the Recipient to exist, which (i) questions the validity of this Agreement, or any action taken or to be taken under it, or (ii) is likely to result in any material adverse changes in the authorities, properties, assets, liabilities, or conditions (financial or otherwise) of the Recipient which would materially and substantially impair the Recipient's ability to perform any of the obligations imposed upon the Recipient by this Agreement.

(4) The representations, statements, and other matters contained in the Application were true and complete in all material respects as of the date of filing. The Recipient is aware of no event which would require any amendment to the Application (other than an amendment which has been filed with and approved by the Commonwealth) which would make such representations, statements, and other matters true and complete in all material respects and not misleading in any material respect. The Recipient is aware of no event or other fact, which should have been, and has not been, reported in the Application as material information.

(5) The Recipient has obtained or has reasonable assurances that it will obtain all Federal, State, and local government approvals and reviews required by law to be obtained by the Recipient for the Project.

(6) Insofar as the capacity of the Recipient to carry out any obligation under this Agreement is concerned, (i) the Recipient is not in material violation of its Charter, or any mortgage, indenture, agreement, instrument, judgment, decree, order, statute, rule or regulation and (ii) the execution and performance of this Agreement will not result in any such violation.

(7) Except for approved eligible administrative and personnel costs, none of the recipient's designees, agents, members, officers, employees, consultants or members of its governing body in which the program is situated, and no other public official of the recipients of such locality or localities who exercises or who has exercised any functions or responsibilities with respect to the project during his or her tenure, or who is in a position to participate in a decision-making process or gain inside information with regard to the project, has or shall have any interest, direct or indirect, in any contract or subcontract or the proceeds thereof for work performed in connection with the project or in any activity, or benefit there from, which is part of this project at anytime during or after such person's tenure unless all procedures for an exception have been documented and submitted in writing to the Department for Local Government and the Department for Local Government has approved such exception.

(8) Anti-Lobbying – The recipient certifies that:

(a) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any

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Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(b) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(c) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

(9) Conflicts of Interest - The procedures for requesting, documenting, and submitting a request for an exception from the Conflict-of-Interest provisions shall include the applicable procedures delineated in 24 CFR 570.489(h)(4); KRS 99.350(8); KRS 61.252(1); KRS 65.003; and the local community ethics code. This Conflict-of-Interest provision shall be in addition to the requirements in the "Common Rule," 24 CFR Part 85, 24 CFR 570.489(h), A-110, KRS 45A.340, KRS 61.210, KRS 61.220 and KRS 61.250 et. seq.

B. Obligation to Complete Recipient Activities as Scheduled

(1) The Recipient shall use its best efforts to assure the completion of the Recipient Activities described in Exhibit B of the Agreement and further defined in the Application.

(2) The Recipient agrees that the foregoing undertaking and assurance means that Recipient shall, to the maximum extent permitted by law, use and apply all of its governmental and proprietary powers for such completion, including but not limited to those powers governing taxes, other revenues, credit, eminent domain and appropriations, if necessary, for the purpose of providing any shortfall between funds available under the grant and funds necessary to complete all of the Recipient Activities described in Exhibit B of this Agreement.

C. Commonwealth Approval of Amendments

The Commonwealth will consider program amendments initiated by the Recipient or by the Commonwealth. The Commonwealth defines a program amendment as a request for change in an approved program which (i) is a new activity in the program, (ii) significantly alters the scope, location, or objective of the approved activities or beneficiaries, and/or (iii) results in a change

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or cumulative changes of the approved budget. Any amendments will be made in accordance with the procedures set forth in the Kentucky Community Development Block Grant Handbook established by the Commonwealth.

D. Notification and Action upon Default

(1) The Recipient shall promptly give written notice to the Commonwealth upon the discovery by the Recipient of any default involving any Participating Party or Subrecipient, as defined in Section 6-A of this Agreement.

(2) Promptly, upon the discovery of any default involving any Participating Party or Subrecipient, the Recipient shall vigorously pursue, to the fullest extent possible, all remedies available to Recipient to remove or cure such default, or to seek redress or relief from its effects, including reimbursement for any grant funds expended on the Project, and to prevent or mitigate any adverse effects on the Project. Recipient shall keep the Commonwealth fully informed as to the status of such actions.

5. INSPECTION AND REVIEW

A. Duty to Maintain and Rights to Inspect and Copy, Books, Records and Documents

(1) The Recipient shall keep and maintain such books, records and other documents as shall be required under rules and regulations now or hereafter applicable to grants made under the CDBG Program, and as may be reasonably necessary to reflect and fully disclose the amount and disposition of the grant funds, the total cost of the activities paid for in whole or in part with grant funds, and the amount and nature of all investments relative to such activities which are supplied or to be supplied by other sources.

(2) All such books, records and other documents shall be available at the office of the Recipient for inspection, copying, audit and examination at all reasonable times by any duly authorized representative of the Commonwealth, HUD, the General Accounting Office and the Inspector General of the United States.

B. Site Visits

Any duly authorized representative of the Commonwealth or HUD shall, at all reasonable times, have access to all portions of the Project until completion of all closeout procedures and final settlement and conclusion of all issues arising from this grant.

C. Reports

The Recipient shall promptly furnish to the Commonwealth all reports required to be filed in accordance with any directives of the Commonwealth or any statute, rule or regulation of HUD.

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6. DEFAULTS AND REMEDIES

A. Defaults

A default shall consist of any use of grant funds for any purpose other than as authorized in Exhibits B and C of this Agreement; or any breach of any covenant, agreement, provision, or warranty (i) the Recipient made in the Agreement; (ii) the Recipient made in any agreement entered into between the Recipient and any Participating Party or Subrecipient, relating to the Project; (iii) any Participating Party or Subrecipient, made in any agreement specified in Exhibit D of this Agreement, or; (iv) of the time frame specified in Exhibit B of the Agreement.

B. Remedies Upon Default

(1) Upon occurrence of any default as described in Section 6-A, the Commonwealth may suspend the Recipient's authority to draw grant funds at any time by notice to the Recipient. If a default is not cured within thirty (30) consecutive days from notice of such default by the Commonwealth to the Recipient, the Commonwealth may continue such suspension or by delivery of notice terminate this Agreement. In the event of a termination, the Recipient's authority to draw funds shall have terminated at the date of the notice of termination and the Recipient shall have no right, title or interest in or to any grant funds remaining.

(2) In addition to any other rights or remedies, if a default consists of the Recipient's failure to submit the evidentiary materials described in Exhibit D of this Agreement or in other official written notification, the Commonwealth shall have the right to terminate this Agreement and the award of grant funds to which this Agreement relates by delivery of written notice to the Recipient. Upon such termination, all obligations of the Commonwealth pursuant to this Agreement and such award shall cease and the Recipient shall neither have nor retain any rights whatsoever with respect to the grant funds provided under this Agreement.

(3) The rights and remedies of the Commonwealth shall be deemed to be cumulative and shall be in addition to all those rights afforded the Commonwealth by law or equity. Any election of any right or remedy shall not be deemed to be an election of that right or remedy to the exclusion of any other right or remedy.

(4) The rights and remedies available to the Commonwealth in the event of a suspension or termination of the Agreement shall survive such suspension or termination.

7. EVIDENTIARY MATERIALS

A. Commitments of Participating Parties and Subrecipients

(1) In selecting the Recipient for the award of this grant, the Commonwealth has relied, in material part, upon the representations of the Recipient and Participating Parties or Subrecipients, that the Recipient and the Participating Parties or Subrecipients (i) will carry out

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certain activities connected with the Project; (ii) will complete those activities; (iii) have, or will have, the financial capability to assure the carrying out of the activities to the completion; and (iv) will invest, or cause to be invested, a specific value amount in the Project.

(2) Evidentiary materials submitted by the Recipient as Exhibit D which have been submitted to and approved by the Commonwealth shall not be amended in any material respect without prior written approval of the Commonwealth.

B. Form of Documentary Evidence

All documentary evidence of commitments submitted to the Commonwealth for approval shall be in the form of either (i) a duplicate original, or (ii) a photographic copy of the fully executed original, of the documents.

8. MISCELLANEOUS

A. Notice

(1) All amendments, notices, requests, objections, waivers, rejections, agreements, approvals, disclosures, and consents of any kind made pursuant to this Agreement shall be in writing.

(2) Any such communication shall be deemed effective for all purposes as of the date such communication is mailed, postage prepaid, by first class, registered or certified mail, return receipt requested, to be delivered only to the office of the addressee, addressed as follows:

(a) Communications to the Commonwealth shall be mailed to: Office of Federal Grants, Department for Local Government, 100 Airport Rd, Frankfort, Kentucky 40601 or emailed to dlg.ofg@ky.gov.

(b) Communications to the Recipient shall be addressed to the Recipient, at the address set forth in Exhibit A of this Agreement, or such other address or representative as may be furnished by the Recipient to the Commonwealth.

B. Assignment

No right, benefit, or advantage inuring to the Recipient under this Agreement and no burden imposed on the Recipient hereunder may be assigned without the prior written approval of the Commonwealth. An authorization by the Commonwealth for the transfer of grant funds by Recipient to a Participating Party or Subrecipient, shall not be deemed an authorization for an assignment, and such Participating Party or Subrecipient shall not succeed to any rights, benefits or advantages of the Recipient hereunder.

C. Successors Bounds

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This Agreement shall bind, and the rights, benefits and advantages shall inure to, the Recipient's successors.

D. Remedies Not Impaired

No delay or omission of the Commonwealth in exercising any right or remedy available under this Agreement shall impair any such right or remedy or constitute a waiver of any default, or an acquiescence therein.

E. Cumulative Remedies

All rights and remedies of the Commonwealth under this Agreement shall be cumulative.

F. Severability

If any article, subsection, clause or provision of this Agreement is held by any court to be unenforceable or prohibited by any law applicable to this Agreement, the rights and obligations of the parties shall be construed and enforced with that part, term or provision limited so as to make it enforceable to the greatest extent allowed by law, or, if it is totally unenforceable, as if this Agreement did not contain that particular part, term or provision.

G. Entire Agreement

This Agreement constitutes the entire agreement between the Commonwealth and the Recipient and supersedes all prior oral and written agreements between the parties hereto with respect to the subject grant. Notwithstanding the provisions of Section 1-A of this Agreement and anything contained in the Application, the provisions of this Agreement shall prevail.

H. Table of Contents; Titles and Headings

Any table of contents and the headings of the sections and subsections set forth herein are not a part of this Agreement and shall not be deemed to affect the meaning or construction of any of its provisions.

I. Amendment of this Agreement

This Agreement, or any part hereof, may be amended as previously described in Section 4-C from time to time hereafter only in writing executed by the Commonwealth and the Recipient.

J. Governing Law

This Agreement as it may affect the rights, remedies, duties, and obligations of the Commonwealth shall be governed by and construed in accordance with Federal and State law.

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Insofar as Federal law does not apply, the provisions of this Agreement shall be governed by and construed in accordance with the laws of the Commonwealth.

K. Waiver by the Commonwealth

The Commonwealth reserves and shall have the exclusive right to waive, at the sole discretion of the Commonwealth, and to the extent permitted by law, any requirement or provision under this Agreement. No act by or on behalf of the Commonwealth shall be, or be deemed or construed to be, any waiver of any such requirement or provision, unless the same be in writing, signed by the Commonwealth, and expressly stated to constitute such waiver.

L. Termination of Agreement

This Agreement shall terminate upon the completion of all closeout procedures respecting this grant including provisions of the Single Audit Act, OMB Omni Circular and the final settlement and conclusion between Recipient and the Commonwealth of all issues arising out of this grant. Either party may cancel the contract upon written notice in accordance with Section 9 below. This notice, if tendered by the Commonwealth, may also include the notice to cure provided for in Section 6 B. (1). Upon termination of the agreement pursuant to this provision, the Recipient shall have no right to grant funds remaining to be disbursed. This provision shall in no way impair and shall be in addition to any additional remedies the Commonwealth may have upon a finding of default or other non-compliance according to the terms of this Agreement. Upon termination of this Agreement by either party with or without cause, the Commonwealth may declare this Agreement void from the beginning without further obligation to the recipient. Further, if the Agreement is terminated by the recipient with or without cause or by the Commonwealth with cause, the Commonwealth may recover all funds paid to the recipient hereunder.

M. Enforceability

Recipient agrees that if the Recipient or one of its subrecipients/contractors fails to comply with all applicable federal and state requirements governing the use of CDBG funds, the Commonwealth of Kentucky may withhold or suspend, in whole or in part, funds awarded under the program, or recover misspent funds following an audit or other investigation. Recipient shall further agree it will repay funds determined to be misspent by any 3rd party officials such as HUD, Inspectors General, auditors and law enforcement agencies. This provision is in addition to all other remedies available to the Commonwealth of Kentucky under all applicable state and federal laws.

N. Anti-Speculation Provisions-Sale of Real Property

(1) When, in Exhibit D of this Agreement, a document is required to contain a provision for the prevention or discouragement of speculation in the purchase and sale of property by a

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beneficiary of grant funds, then, unless otherwise specified, such provision shall comply with this Section.

(2) The document shall prohibit the beneficiary of grant funds from selling or otherwise disposing of the property within a period specified in Exhibit D of this Agreement after the date of the purchase, for an amount in excess of the purchase price paid, plus the actual costs of any improvements to the property by the beneficiary. The prohibition against sale shall have the same force and effect as a lis pendens and shall specify that in the event of any attempted sale in violation of the provision; the Recipient shall be entitled to the ex-parte issuance of an injunction restraining such sale. The document shall be executed and authenticated in such manner and form as may be required under State law to authorize its recordation at the place of recordation of deeds, as if a lis pendens and the document shall be so recorded.

(3) The document may, in conjunction with the foregoing or in lieu thereof, describe a procedure where under, in the event of any sale of the property within the period specified in Exhibit D of the Agreement, the amount of grant funds which benefited the beneficiary shall be repaid by the beneficiary to the Recipient. Such procedure may include a pro-rata reduction of the amount to be repaid, based upon the time elapsing between the date of the initial purchase of the property and its disposition by the beneficiary. The document must either specify the amount of the grant funds which benefited the beneficiary or set forth a formula or agreed method for determining such amount. The document shall be executed and authenticated in such manner and form as may be required to authorize its recordation, as if a lis pendens and the document shall be so recorded.

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Memorandum of Agreement Standard Terms and Conditions

Revised July 2026

1.00 Effective Date

All Memorandum of Agreements are not effective until the Secretary of the Finance and Administration Cabinet or his authorized designee has approved the agreement and until the agreement has been submitted to the government contract review committee. However, in accordance with KRS 45A.700, memoranda of agreement in aggregate amounts of \$50,000 or less are exempt from review by the committee and need only be filed with the committee within 30 days of their effective date for informational purposes.

KRS 45A.695(7) provides that payments on personal service contracts and memoranda of agreement shall not be authorized for services rendered after government contract review committee disapproval, unless the decision of the committee is overridden by the Secretary of the Finance and Administration Cabinet or agency head if the agency has been granted delegation authority by the Secretary.

The Commonwealth will make payment within thirty (30) working days of receipt of contractor and/or subrecipient's invoice or of acceptance of goods and/or services in accordance with KRS 45.453 and KRS 45.454.

Payments are predicated upon successful completion and acceptance of the described work, services, supplies, or commodities, and delivery of the required documentation. Invoices for payment shall be submitted to the agency contact person or its representative.

2.00 Cancellation Clause

Both parties shall have the right to terminate and cancel this contract at any time not to exceed thirty (30) days' written notice served on the Contractor and/or subrecipient by registered or certified mail.

3.00 Funding Out Provision

The state agency may terminate this agreement if funds are not appropriated to the contracting agency or are not otherwise available for the purpose of making payments without incurring any obligation for payment after the date of termination, regardless of the terms of the agreement. The state agency shall provide the Contractor and/or subrecipient thirty (30) calendar day's written notice of termination of the agreement due to lack of available funding.

4.00 Reduction in Contract Worker Hours

The Kentucky General Assembly may allow for a reduction in contract worker hours in conjunction with a budget balancing measure for some professional and non-professional service contracts.

If under such authority the agency is required by Executive Order or otherwise to reduce contract hours, the agreement will be reduced by the amount specified in that document. If the contract funding is reduced, then the scope of work related to the contract may also be reduced

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commensurate with the reduction in funding. This reduction of the scope shall be agreeable to both parties and shall not be considered a breach of contract.

5.00 Access to Records

The state agency certifies that it is in compliance with the provisions of KRS 45A.150, "Access to contractor and/or subrecipient's books, documents, papers, records, or other evidence directly pertinent to the contract." The Contractor and/or subrecipient, as defined in KRS 45A.030, agrees that the contracting agency, the Finance and Administration Cabinet, the Auditor of Public Accounts, and the Legislative Research Commission, or their duly authorized representatives, shall have access to any books, documents, papers, records, or other evidence, which are directly pertinent to this agreement for the purpose of financial audit or program review. The Contractor and/or subrecipient also recognizes that any books, documents, papers, records, or other evidence, received during a financial audit or program review shall be subject to the Kentucky Open Records Act, KRS 61.870 to 61.884. Records and other prequalification information confidentially disclosed as part of the bid process shall not be deemed as directly pertinent to the agreement and shall be exempt from disclosure as provided in KRS 61.878(1)(c).

6.00 Violation of tax and employment laws

KRS 45A.485 requires the Contractor and/or subrecipient and all subcontractors performing work under the contract to reveal to the Commonwealth any final determination of a violation by the Contractor and/or subrecipient within the previous five (5) year period of the provisions of KRS chapters 136, 139, 141, 337, 338, 341, and 342. These statutes relate to corporate and utility tax, sales and use tax, income tax, wages and hours laws, occupational safety and health laws, unemployment insurance laws, and workers compensation insurance laws, respectively. Disclosure of any violations is required prior to the award of any state contract and throughout the duration of the contract.

Failure to disclose violations shall be grounds for the Commonwealth's disqualification of a contractor and/or subrecipient or subcontractor from eligibility for future state contracts for a period of two (2) years.

To comply with KRS 45A.485, the Contractor and/or subrecipient and all subcontractors performing work under this contract shall report any such final determination(s) of any violation(s) within the previous five (5) years to the Commonwealth by providing a list of the following information regarding any violation(s): (1) specific KRS violated, (2) date of any final determination of a violation, and (3) state agency which issued the final determination.

A list of any disclosures made prior to award of a contract shall be attached to the contract. The Contractor and/or subrecipient affirms that it has not violated any of the provisions of the above statutes within the previous five (5) year period, aside from violations explicitly disclosed and attached to this contract. Contractor and/or subrecipient further affirms that it will (1) communicate the above KRS 45A.485 disclosure requirements to any subcontractors and (2) disclose any subcontractor violations it becomes aware of to the Commonwealth.

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7.00 Nondiscrimination

The Equal Employment Opportunity Act of 1978 (the “Act”), KRS 45.560 to 45.640, applies to all State government contracts or subcontracts in an amount exceeding \$500,000. The contractor and/or subrecipient shall comply with all terms and conditions of the Act.

During the performance of this contract, the Contractor and/or subrecipient agrees as follows:

- (a) The Contractor and/or subrecipient shall not discriminate against any employee or applicant for employment because of race, color, religion, sex, age forty (40) and over, disability, veteran status, or national origin or.
- (b) The Contractor and/or subrecipient shall take affirmative action in regard to employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination rates of pay or other forms of compensation, and selection for training, so as to ensure that applicants are employed and that employees are treated during employment without regard to their race, color, religion, sex, age forty (40) and over, disability, veteran status, and national origin.
- (c) The Contractor and/or subrecipient shall state in all solicitations or advertisements for employees placed by or on behalf of the Contractor and/or subrecipient that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, age forty (40) and over, disability, veteran status, or national origin.
- (d) The Contractor and/or subrecipient shall post notices in conspicuous places, available to employees and applicants for employment, setting forth the provisions of this non-discrimination clause.

The Contractor and/or subrecipient shall send a notice to each labor union or representative of workers with which he/she has a collective bargaining agreement or other contract or understanding advising the said labor union or workers' representative of the Contractor and/or subrecipient's commitments under this nondiscrimination clause.

The Contractor and/or subrecipient's noncompliance with the nondiscrimination clauses of this contract shall constitute a material breach of the contract.

Each Contractor and/or subrecipient shall, for the length of the contract or at the point at which the contract is covered by this Act and until its conclusion, furnish such information as required by the Act and any rules, regulations and orders issued pursuant thereto and permit access to all books and records pertaining to his employment practices and work sites by the contracting agency and the Cabinet to ascertain compliance with the Act.

This section applies to agreements disbursing federal funds, in whole or part, only when the terms for receiving those funds mandate its inclusion.

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8.0 Artificial Intelligence (AI)

Vendor agrees to adhere to [CIO-126 Artificial Intelligence Policy.pdf](#), which includes but is not limited to, the required written disclosure, in advance, of every use of generative AI and/or integrations with generative AI system. Vendor agrees to disclose all parts of contracted work that is expected to be or will be performed with the assistance of AI. Further, Vendor understands and agrees to take appropriate measures to ensure Generative AI shall not be used for any activities that are illegal or in violation of state policy, COT policy, or agency policy per CIO-126. Vendors may not use Commonwealth confidential or internal data in generative AI queries or for building or training proprietary generative AI programs unless explicitly approved in writing by the agency head with consultation from the COT Chief Information Officer. Vendor agrees to provide reasonable written notice of any issue of noncompliance with these requirements.

9.0 Payment

The Commonwealth will make payment within thirty (30) working days of receipt of Contractor's invoice and of acceptance of goods and/or services except when the agency has transmitted a rejection notice to the vendor in accordance with KRS 45.453 and KRS 45.454. For the purpose of this provision, a working day is any weekday except for Commonwealth employee holidays up to the agency close of business. The Commonwealth may make a partial payment of goods or services that it has received according to the terms of the contract.

Payments are predicated upon agreed upon payment milestones set forth in the agreement and/or successful completion and acceptance of the described work, services, supplies, or commodities, and delivery of the required documentation. Invoices for payment shall be submitted to the agency contact person or agency representative and, except Personal Service Contract invoices, shall include the following information, as applicable:

- (1) Contract and/or delivery order number;
- (2) Name of Contractor Entity or Individual;
- (3) Contractor designated point of contact;
- (4) Unique Invoice Number;
- (5) Invoice Date;
- (6) Item numbers;
- (7) Descriptions of goods or services provided;
- (8) Sizes of goods provided;
- (9) Quantities provided;
- (10) Unit prices; and
- (11) Extended totals (unit price x quantity) for invoiced line items.

For Personal Service Contracts, invoices must be submitted on the Personal Service Contract Invoice form established by the Government Contract Review Committee, available at:

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<https://apps.legislature.ky.gov/moreinfo/contracts/PSC%20INVOICE%20FORM.pdf>

The Commonwealth will make a good faith effort to notify the Contractor within fifteen (15) working days of the Contractor's failure to submit a proper invoice or a dispute of the goods or services provided. The Contractor shall address the Commonwealth's concerns within ten (10) calendar days and resubmit a corrected invoice with a new invoice number for payment. If the Contractor has not rectified the problem with the invoice or the good or service within the ten (10) calendar day correction period, any revised submitted invoice shall be considered a new invoice with a new date of submission for calculation of any late payment penalty.

If the Commonwealth has not notified the Contractor of any issue with the invoice or the goods and/or services and the Contractor has not received payment by the twenty-fifth (25th) business day after the Contractor submitted the invoice, the Contractor should notify its Commonwealth contract representative that its invoice is still pending payment.

Except as otherwise explicitly provided in the contract, payments shall be issued to the Contractor within thirty (30) working days of receipt of Contractor's invoice and of acceptance of goods and/or services. In the event of an invoice payment dispute between the Contractor and purchasing agency, the Contractor shall first attempt resolution of the dispute via submission to the purchasing agency in accordance with the payment dispute process posted on the Finance and Administration Cabinet website, located at:

<https://finance.ky.gov/office-of-the-secretary/office-of-general-counsel/Pages/procurement-and-protest-resources.aspx>

If submission to the purchasing agency fails to resolve the payment dispute, the Contractor may submit a contract dispute regarding payment to the Finance Secretary for resolution. In accordance with KRS 45.454, and except as provided by KRS 371.405, there shall be payable to the Contractor a penalty of one-percent (1%) on any undisputed amount each month or fraction thereof owing to the Contractor after 30 working days following the receipt of the goods or services and receipt of the invoice unless otherwise agreed between the Commonwealth and the Contractor. After a resolution is determined, the purchasing agency shall begin to assess penalties due the Contractor and remit the penalty payment to the Contractor within five (5) working days.

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Approvals

This contract is subject to the terms and conditions stated herein. By affixing signatures below, the parties verify that they are authorized to enter into this contract and that they accept and consent to be bound by the terms and conditions stated herein. In addition, the parties agree that (i) electronic approvals may serve as electronic signatures, and (ii) this contract may be executed in any number of counterparts, each of which when executed and delivered shall constitute a duplicate original, but all counterparts together shall constitute a single contract.

Commonwealth of Kentucky:

_____	Commissioner, Department for Local Government
Signature	Title
Matt Sawyers	_____
Printed Name	Date

Oldham County Fiscal

Court:

_____	Judge/Executive
Signature	Title
David Voegle	_____
Printed Name	Date

Approved as to form and legality:

_____	General Counsel, Department for Local Government
Signature	Title
Whitney Mendiondo	_____
Printed Name	Date

_____	Legal Counsel, Oldham County
Signature	Title
_____	_____
Printed Name	Date

EXHIBIT A

SUPPLEMENTARY PROVISIONS

Rider to Section 1-B (2). In addition to Recipient's Application for Commonwealth Small Cities Community Development Block Grant Assistance, "Application" shall include the following submittals:

Cost Summary (Exhibit C)

Rider to Section 1-B (12). The terms "Local Development Authority" and "Participating Party" consist of the following persons, firms, corporations and funding sources:

Local Development Authority (LDA)

Karri Gerdemann
Apple Patch Community, Inc. (d/b/a Pillar)
7408 Highway 329
Crestwood, Kentucky 40014-8884

Rider to Section 2-A. The amount of this CDBG grant is:

\$1,000,000

Rider to Section 8-A. The address of the Recipient for the purposes of communications relating to this Agreement shall be the following:

The Honorable David Voegelé
Oldham County Judge/Executive
100 West Jefferson Street
LaGrange, Kentucky 40031-1149

Contact

Jennifer Wilson
KIPDA
11520 Commonwealth Drive
Louisville, Kentucky 40299-2340

EXHIBIT B-1

DESCRIPTION OF RECIPIENT ACTIVITIES

Rider to Section 1-B (16). "Recipient Activities" for this Project shall consist of the following:

1. The Recipient agrees to perform activities as stated in the CDBG application and given preliminary approval on May 6, 2026, as summarized below:
 - A. The Recipient will enter into a legally binding agreement to provide \$965,000 in CDBG funds to the LDA, Apple Patch Community, Inc., an IRS-certified 501(c)(3) nonprofit development corporation, to complete site work and infrastructure of the Oldham County – Pillar Housing Project. The project will contain 72 units and be available exclusively for handicapped adults to remain as affordable units for low income residents.
 - B. The Recipient, and LDA, must assure compliance with the Uniform Relocation Act (URA). In addition, the County must agree to comply with KRS 82.083 and notify DLG prior to the sale or disposition of any CDBG funded properties.
 - C. To ensure project start-up and no delays in receiving CDBG release of funds that would poorly affect Kentucky's draw-down rate, the infrastructure and site work must commence within six (6) months from the date of the executed grant agreement. If the site work and infrastructure cannot commence by this date, the applicant will submit notification to DLG that it will not accept the funding but will instead re-apply when the properties are purchased.
 - D. In order to protect the grantee, and to ensure the compliance of the Local Development Agency (LDA) with all relevant requirements, the relationship between all entities must be formally defined through a written agreement (or contract). Such an agreement's purposes are to cover who is responsible for the maintenance, insurance, and operation of the facility. It must also clearly establish the terms and conditions under which grant funding is provided and establish a legal basis for action if those terms and conditions are not met, including repayment provisions and any cost overruns associated with the project. This agreement should contain the 5-year after closeout provisions and program income provisions, if applicable.
 - E. The Recipient will ensure that the LDA identifies eligible tenants to rent the vacant units by publishing a DLG approved "Notice of Solicitation for Participants" in the newspaper of largest circulation, displaying the notice at the Apple Patch Community office, and providing information to social service agencies. The notice must establish the requirements for potential applicant eligibility, as well as, how the participants will be chosen based on qualifications highlighted in the solicitation, including reference to the Apple Patch Community Tenant Selection Plan.
 - F. The Recipient will ensure that the LDA contractually agrees to maintain the rental properties in compliance with applicable local housing codes. The contractual

agreement will also stipulate that a twenty (20) year deed restriction will be placed on the property to ensure that it remains as affordable housing.

- G. The recipient will enter into a mortgage with the LDA contractually agreeing to maintain the property in compliance recipient activities found in the KCDBG Grant Agreement between DLG and Oldham County Fiscal Court for time period no less than 20-years for completion of the project and sustained occupancy has been achieved.
 - H. The Recipient will ensure that the LDA annually deposits net operating income for the property into an operating reserve account. The LDA will ensure that proper accounting will be maintained of these funds and this documentation will be provided annually to the Recipient to ensure compliance with regulations and reporting requirements related thereto. The Recipient will also establish a revolving fund to account for any recaptured project funds.
 - I. The Recipient will assure that if the LDA does not have the housing units substantially occupied by the grant expiration date, it will accept that the unutilized CDBG funds will no longer be available to the project.
 - J. The Recipient will ensure that at least 51 percent of the units will be occupied by LMI households, thereby meeting the LMI National Objective benefit. The project will not be closed until all units are substantially occupied.
- 2. The Recipient will provide necessary administration of the project by a certified CDBG grant administrator to assure compliance with all applicable state, federal and local statutes, as set forth in the KCDBG Statement of Assurances signed by Judge David Voegele on November 12, 2025, and submitted on or about that date as part of the project Application.
 - 3. The Recipient will expend \$35,000 of CDBG funds to cover the administrative and planning costs of the project.
 - 4. Program Income or Miscellaneous Revenue will be generated through rental units. The County must provide a policy establishing how revenue and expenditures from the disposition of the units will be used in accordance with the Program Income and Miscellaneous Receipts CFR 570.489 (e)(1)(iv).
 - 5. The Recipient or the LDA will erect a project sign according to CDBG specifications.
 - 6. The Recipient or LDA must be responsible for all cost overruns.
 - 7. The Recipient must ensure compliance with the requirements of the Build America, Buy America (BABA) Act, 41 USC 8301 note, and all applicable rules and notices, as may be amended, if applicable to the Grantee's infrastructure project. Pursuant to HUD's Notice, "Public Interest Phased Implementation Waiver for FY 2022 and 2023 of Build America, Buy America Provisions as Applied to Recipients of HUD Federal Financial Assistance" (88 FR 17001), any funds obligated by

HUD on or after the applicable listed effective dates, are subject to BABA requirements, unless excepted by a waiver."

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EXHIBIT B-2

DESCRIPTION OF SUBRECIPIENT ACTIVITIES

Rider to Section 1-B(11). “Local Development Authority Activities (LDA)” for project shall consist of the following:

1. Activities by Apple Patch Community, Inc., LDA, as stated in the application given preliminary approval on May 6, 2026, and summarized below:
 - a. The LDA will enter into a legally binding agreement with the Recipient to receive \$965,000 in CDBG funds to complete site work and infrastructure of the Oldham County – Pillar Housing Project. The project will contain 72 units and be available exclusively for handicapped adults to remain as affordable units for low income residents.
 - b. The CDBG will be in the form of a 20-year mortgage, 0% due on sale, with the ability to be forgiven after 20 years. Rents charged will be based on the Kentucky Housing Corporation and HUD HOME rent limits to ensure affordability.
 - c. The LDA must assure compliance with the Uniform Relocation Act (URA). In addition, the County must agree to comply with KRS 82.083 and notify DLG prior to the sale or disposition of any CDBG funded properties.
 - d. The LDA will contractually agree to maintain the rental properties in compliance with applicable local housing codes. The contractual agreement will also stipulate that a twenty (20) year deed restriction will be placed on the property to ensure that it remains as affordable housing.
 - e. The LDA will record any recovered funds as Program Income/Miscellaneous Revenue and deposit them in an operating reserve. The Recipient will ensure that proper accounting will be maintained of these funds and this documentation will be provided to the Recipient to ensure compliance with regulations and reporting requirements related thereto.
 - f. If the LDA cannot have the rental units substantially occupied with eligible tenants by the grant expiration date, it will accept that the unutilized CDBG funds will no longer be available to the project.
 - g. The LDA must ensure that Davis-Bacon and state wage rates will be incorporated into all construction contracts where they are applicable.

h. The LDA will secure funding in the following amounts;

HOME	\$ 1,350,000
HB 723 – GRANT	\$ 95,000
KHC LIHTC	\$12,751,220
AHTF	\$ 500,000
RHTF	\$ 400,000
Loan – Bank	\$ 4,323,746
Def. Developer Fee	\$ 650,000
Other Funds – Equity/Grant (Match)	\$ 92,500

2. The LDA must comply with the requirements of the Build America, Buy America (BABA) Act, 41 USC 8301 note, and all applicable rules and notices, as may be amended, if applicable to the Grantee’s infrastructure project. Pursuant to HUD’s Notice, “Public Interest Phased Implementation Waiver for FY 2022 and 2023 of Build America, Buy America Provisions as Applied to Recipients of HUD Federal Financial Assistance” (88 FR 17001), any funds obligated by HUD on or after the applicable listed effective dates, are subject to BABA requirements, unless excepted by a waiver."
3. The LDA, or the Recipient, will be responsible for all cost overruns.

EXHIBIT C

PROJECT BUDGET – SUMMARY OF PROPOSED EXPENDITURES

Attached (as marked Exhibit C containing one page)

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COST SUMMARY

DLG USE ONLY

Exhibit C

Project # 25-026

Applicant: Oldham County

Activity Code	Activity Description	CDBG Funds	OTHER FUNDS	TOTAL	SOURCE
		LMI			
1	ACQUISITION				
2	CLEARANCE				
3	RELOCATION				
a	owner				
b	renter				
c	other				
	TOTAL RELOCATION				
4	REHABILITATION				
a	code enforcement				
b	grants				
c	loans				
d	public housing modernization				
e	non-residential-historic preservation				
f	acquisition for rehabilitation				
g	multi-unit residential rehabilitation				
h	rehabilitation administration				
i					
	TOTAL REHABILITATION				
5	PUBLIC FACILITIES				
a	parks & recreation facilities				
b	street improvements				
c	water lines				
d	water treatment facilities				
e	sewer lines				
f	sewage treatment facilities				
g	flood & drainage facilities				
h	senior centers				
i	centers for the disabled/handicap				
j	child care centers				
k	Multi Family residential	965,000	20,305,269	21,270,269	tax credits, loans, grants
	TOTAL PUBLIC FACILITIES	965,000	20,305,269	21,270,269	
6	PUBLIC SERVICES				
7	ED ON-SITE DEVELOPMENT				
a	clearing and grading				
b	street improvements				
c	water lines				
d	water treatment facilities				
e	wastewater collection				
7	wastewater treatment				
g	drainage facilities				
h	other				
	TOTAL ED On-Site Develop.				
8	ED OFF-SITE DEVELOPMENT				
a	clearing and grading				
b	street improvements				
c	water lines				
d	water treatment facilities				
e	wastewater collection				
f	wastewater treatment				
g	drainage facilities				
h	other				
	TOTAL ED Off-Site Develop.				
9	COMMERCIAL/INDUSTRIAL FACILITIES				
a	land acquisition/disposition				
b	building acquisition/construction/rehabilitation				
c	other improvements				
	TOTAL Commercial/Industrial Facilities				
10	Commercial/Industrial Equipment				
11	Inventory/Working Capital				
12	Microenterprise Technical Assistance				
13	Other				
	Subtotal	965,000	20,305,269	21,270,269	
14	PLANNING				
15	ADMINISTRATION	35,000		35,000	CDBG
	CONTINGENCIES				
	TOTAL PROJECT COSTS	1,000,000	20,305,269	21,305,269	

Architectural/Engineering Costs must also be shown in a line item above (do not show as "other")

Architectural/Engineering Design		250,000	250,000	Grant/Loan
Architectural/Engineering Inspection		50,000	50,000	Grant/Loan
Architectural/Engineering Other				
Total Architectural/Engineering		300,000	300,000	

EXHIBIT D

REQUIRED EVIDENTIARY MATERIALS

Recipient agrees to submit the following evidentiary materials for the approval of the Commonwealth in the manner and form described by the applicable provisions of Section 7 of this Agreement:

- Environmental Certification per 24 CFR, Part 58
 - Entire Environmental Record
 - Request for Release of Funds
 - Environmental Review Status Sheet
 - Tear sheet(s) from advertisement of environmental notices
 - Copy of the clearance from the State Historic Preservation Officer
 - Copy of endorsement from the Clearinghouse Review
- Copy of and evidence that a Residential Anti-displacement and Relocation Assistance Plan has been adopted
- Evidence of budget ordinance/amendment indicating inclusion of CDBG funds into the Recipient's budget
- Evidence of commitment that all other funds are readily available:

HOME	\$ 1,350,000
HB 723 – GRANT	\$ 95,000
KHC LIHTC	\$12,751,220
AHTF	\$ 500,000
RHTF	\$ 400,000
Loan – Bank	\$ 4,323,746
Def. Developer Fee	\$ 650,000
Other Funds – Equity/Grant (Match)	\$ 92,500
- Copy of and evidence of adoption of a procurement code meeting the CDBG requirements
- Evidence of Clearinghouse review and assurance that all conditions will be met
- Resolution that cost overruns will be borne by the applicant or the LDA.
- Documentation supporting the Apple Patch Community, Inc. status as an approved Internal Revenue Service (IRS)-certified 501(c)(3) nonprofit development corporation
- Evidence of a legally binding agreement between Oldham County and the Apple Patch Community, Inc., that addresses the use of the CDBG funds as it was proposed and stated in the application and this grant agreement.
- Copy of the Notice of Solicitation of Participants that establishes the requirements for potential applicant eligibility as well as how the participants will be chosen based on ranking qualifications highlighted in the solicitation.

- Resolution and Revolving Fund Guidelines that states that any funds recovered/recaptured by the county will be deposited in a Revolving Fund and be used in accordance with Program Income/Miscellaneous Revenue regulations promulgated in CFR 570.489(e). It must also establish the use of the recovered funds to assist LMI housing needs in the County. Net operating income from the property will be deposited in an operating reserve by the Apple Patch Community, Inc., who will provide annual reports to the county regarding its use.
- Evidence of Program Guidelines
- Authorized Signature form
- Electronic transfer of funds form with voided check
- Fair Housing/Equal Opportunity Requirements:
 - Fair Housing Resolution or Ordinance
 - Policy of Non-Discrimination on the Basis of Disability Status (for grantees with 15 or more employees)
 - Section 504 Accessibility Self-Evaluation and Transition Plan (if applicable)
 - Drug Free Workplace Statement
 - Title VI Self Survey and Statement of Assurance **or** Title VI Implementation Plan

CONTRACT FOR PROFESSIONAL SERVICES
Community Development Block Grant Program

PART 1 – AGREEMENT

This Contract for professional services is by and between the COUNTY of Oldham, State of Kentucky (hereinafter called the "County"), acting herein by David Voegelé, Judge Executive, hereunto duly authorized, and Kentuckiana Regional Planning and Development Agency (KIPDA), (hereinafter called the "Consultant"), acting herein by Jarrett Haley, Executive Director hereunto duly authorized:

WITNESSETH THAT:

WHEREAS, the County has entered into an agreement with the State of Kentucky for the implementation of a Community Development Block Grant (CDBG) program pursuant to Title I of the Housing and Community Development Act of 1974; and

WHEREAS, the County desires to engage the Consultant to render certain technical assistance services in connection with its Community Development program:

NOW, THEREFORE, the parties do mutually agree as follows:

1. Employment of Consultant

The County hereby agrees to engage the Consultant, and the Consultant hereby agrees to perform the following Scope of Services in relation to the Grantee's Community Development Block Grant 25-026 Oldham County - Crestwood Pillar Housing Project:

2. Scope of Services

The Consultant shall, in a satisfactory and proper manner, perform the following services:

- A. Prepare Environmental Review Record for All Activities. Responsibilities include making a recommendation to the local governing body as to a finding of the level of impact, preparation of all required public notices, preparation for Request for Release of Funds, and acquiring adequate documentation. For activities, which are not exempt from Environmental Assessments, an Environmental Assessment will be prepared. For activities, which are exempt and/or categorically excluded from Environmental Assessments, prepare a written Finding of Exemption, which should identify the project or Activity, and under which of the categories of exemption it falls. Also include documentation of compliance with requirements of historic preservation, floodplains and wetlands, and other applicable authorities.
- B. Coordinate with the community the Request for Payments to ensure consistency with the State Account procedures established for the KCDBG program.
- C. Ensure that the community has an acceptable financial management system as it pertains to finances of the KCDBG program. An acceptable system includes, but is not limited to, cash receipts and disbursement journal and accompanying ledgers, the cash control register, and should conform to generally accepted principles of municipal accounting.
- D. Establish project files in local government office. These must demonstrate compliance with all applicable Federal, State and local regulations. Monitor

project files throughout the programs to ensure they are complete and that all necessary documentation is being retained in the community's files.

- E. If applicable to the program, assist grant recipients in complying with regulations governing land acquisition (real property, easements, rights of way, donation of property, etc.).
- F. Prepare all bid documents and supervise the bidding process consistent with State and Federal Regulations.
- G. Secure the applicable wage decision from the State and include it in bid specifications.
- H. Prepare construction contracts which comply with Federal regulations.
- I. Obtain determination of contractor and subcontractor eligibility from the State.
- J. Check weekly payrolls to ensure compliance with wage decisions. Conduct onsite interviews and compare the results with appropriate payrolls.
- K. Monitor construction to ensure compliance with Equal Opportunity and Labor Standard provisions.
- L. Make progress inspections and certify partial payment requests.
- M. Make a final inspection and issue a final certificate of payment.
- N. Prepare closeout documents to include Program Completion Report, Final Wage Compliance Report and Certificate of Completion.

Services in each of the above work areas shall be performed under and at the direction of the Grantee or his/her designated representative.

3. Time of Performance

The services of the Consultant shall commence on August 31, 2026 and be provided on a per-day basis as requested by the Grantee or his/her designated representative. Such services shall be continued in such sequence as to assure their relevance to the purposes of this Contract. In any event, all of the services required and performed hereunder shall be completed no later than December 31, 2028. _____

4. Access to Information

It is agreed that all information, data, reports, records and maps as are existing, available and necessary for the carrying out of the work outlined above, shall be furnished to the Consultant by the County and its agencies. No charge will be made to the Consultant for such information, and the County and its agencies will cooperate with the Consultant in every way possible to facilitate the performance of the work described in this Contract.

5. Compensation and method of Payment

The maximum amount of compensation and reimbursement to be paid hereunder shall not exceed **\$ 35,000** for all services required. All contract work will be performed on a time and materials basis. Consultant time for principals and staff will be provided at their respective rate of compensation.

The County will make payment to the Consultant within thirty (30) days after the receipt of each invoice. The Consultant agrees to keep accurate records, including time sheets and travel vouchers, of all time and expenses allocated to the performance of contract work. Such records shall be kept in the offices of the Consultant and shall be made available to the City for inspection and copying upon request.

6. Ownership Documents

All documents, including original drawings, estimates, specifications, field notes and data are the property of the County. Consultant may retain reproducible copies of drawings and other documents.

7. Professional Liability

Consultant shall be responsible for the use of reasonable skill and care befitting the profession in the preparation of particular drawings, plans, specifications, studies and reports and in the designation of particular materials for the project covered by this Contract.

8. Indemnification

The Consultant shall comply with the requirements of all applicable laws, rules and regulations in connection with the services of Consultant and shall exonerate, indemnify and hold harmless the County, its officers, agents and all employees from and against them and local taxes or contributions imposed or required under the Social Security, Workers' Compensation, and Income Tax laws. Further, Consultant shall exonerate, indemnify and hold harmless the County with respect to any damages, expenses or claims arising from or in connection with any of the work performed under this Contract by Consultant. This shall not be construed as a limitation of the Consultant's liability under the Contract or as otherwise proved by law.

9. Terms and Conditions

This Contract is subject to the provisions titled, "Part II – Terms and Conditions," attached hereto and incorporated by reference herein.

10. Address of Notices and Communications

Honorable David Voegelé
Oldham County Fiscal Court
100 W Jefferson Street
LaGrange, KY 40031

Jarrett Haley, Executive Director
KIPDA
11520 Commonwealth Dr.
Louisville, KY 40299

11. Captions

Each paragraph of this Contract has been supplied with a caption to serve only as guide to the contents. The caption does not control the meaning of any paragraph or in any way determine its interpretation or application.

12. Authorization

This Contract is authorized by County Resolution _____, adopted _____, _____, _____, copies of which are attached hereto and made a part hereof.

COUNTY OF OLDHAM

ATTEST:

By: _____
David Voegelé, Judge Executive

KENTUCKIANA REGIONAL PLANNING AND
DEVELOPMENT AGENCY

Jarrett Haley, Executive Director

Date: _____

CONTRACT FOR PROFESSIONAL SERVICES

PART II – TERMS AND CONDITIONS

1. Termination of Contract for Cause

If through any cause, the Consultant shall fail to fulfill in timely and proper manner his obligations under this Contract, or if the Consultant shall violate any of the covenant, agreements or stipulations of this Contract, the County shall thereupon have the right to terminate this contract by giving written notice to the Consultant of such termination and specifying the effective date thereof, at least five days before the effective date of such termination. In such event, all finished or unfinished documents, data, studies, surveys, drawings, maps, models, photographs and reports prepared by the Consultant under this Contract shall, at the option of the County, become its property and the Consultant shall be entitled to receive just and equitable compensation for any work satisfactorily completed hereunder.

Notwithstanding the above, the Consultant shall not be relieved of liability to the County for damages sustained by the County by virtue of any breach of the Contract by the Consultant, and the County may withhold any payments to the Consultant for the purpose of set-off until such time as the exact amount of damages due the County from the Consultant is determined.

2. Termination for Convenience of the County

The County may terminate this Contract at any time by giving at least ten (10) days notice in writing to the Consultant. If the Contract is terminated by the County as provided herein, the Consultant will be paid for the time provided and expenses incurred up to the termination date. If this Contract is terminated due to the fault of the Consultant, Paragraph 1 hereof relative to termination shall apply.

3. Changes

The County may, from time to time, request changes in the scope of services of the Consultant to be performed hereunder. Such changes, including any increase or decrease in the amount of the Consultant's compensation, which are mutually agreed upon by and between the County and the Consultant, shall be incorporated in written amendments to this Contract.

4. Personnel

- A. The Consultant represents that he has, or will secure at his own expense, all personnel required in performing the services under this Contract. Such personnel shall not be employees of or have any contractual relationship with the County.
- B. All of the services required hereunder will be performed by the Consultant or under his supervision and all personnel engaged in the work shall be fully qualified and shall be authorized or permitted under State and local law to perform such services.
- C. None of the work or services covered by this Contract shall be subcontracted without the prior approval of the County. Any work or services subcontracted hereunder shall be specified by written contract or agreement and shall be subject to each provision of this Contract.

5. Assignability

The Consultant shall not assign any interest on this Contract, and shall not transfer any interest in the same (whether by assignment or novation), without the prior written consent of the County thereto: provided, however, that claims for money by the Consultant from the County under this Contract may be assigned to a bank, trust company, or other financial institution without such approval. Written notice of any such assignment or transfer shall be furnished promptly to the County.

6. Reports and Information

The Consultant, at such times and in such forms as the County may require, shall furnish the County such periodic reports as it may request pertaining to the work or services undertaken pursuant to this Contract, the costs and obligations incurred or to be incurred in connection therewith, and any other matters covered by this Contract.

7. Findings Confidential

All of the reports, information, data, etc., prepared or assembled by the Consultant under this Contract are confidential and the Consultant agrees that they shall not be made available to any individual or organization without the prior written approval of the County.

8. Copyrights and Patents

Any copyrightable work resulting from this Agreement is available to the author for such, but the County and the Kentucky Department for Local Government reserve the option for unlimited use and license to such work. Any discovery or invention shall be reported promptly to the County and the Kentucky Department for Local Government for the determination as to whether patent protection should be sought and how the rights of any patent shall be disposed of and administered in order to protect the public interest.

9. Compliance with Local Laws

The Consultant shall comply with applicable laws, ordinances and codes of the State and local governments.

10. Access to Records

The Consultant shall maintain accounts and project records, including personnel, property and financial records, adequate to identify and account for all costs pertaining to the Contract and such other records as may be deemed necessary by the County to assure proper accounting for all project funds, both CDBG and non-CDBG shares. These records will be made available to the County, the Kentucky Governor's Office for Local Development Commonwealth of Kentucky Finance & Administration Cabinet, Commonwealth of Kentucky Auditor of Public Audits, Commonwealth of Kentucky Legislative Research Commission, U.S. Department of Housing and Urban Development, the U. S. Department of Labor, and the Comptroller General of the United States, or any of their duly authorized representatives. These parties shall have access to any books, documents, papers and records of the Consultant, which are directly pertinent to the project for the purpose of making audit, examination, excerpts and transcriptions. All records shall be maintained for five years after project closeout.

11. Title VI, Civil Rights Act of 1964

Under Title VI of the Civil Rights Act of 1964, no person shall, on the grounds of race, color or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.

12. Section 109 of the Housing and Community Development Act of 1974

No person in the United States shall on the ground of race, color, national origin or sex be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity funded in whole or in part with funds made available under this title.

13. Age Discrimination

The Contractor shall comply with the Age Discrimination Act of 1975, which prohibits discrimination on the basis of age. No person shall be excluded from participation in, denied program benefits of, or subject to discrimination on the basis of age under any program or activity funded in whole or in part with Federal funds.

14. Section 504

The Contractor shall comply with Section 504 of the Rehabilitation Act of 1973, which extends the prohibitions against discrimination to individuals with disabilities.

15. Conflict of Interest Clauses

Interest of Members of a County

No member of the governing body of the County and no other officer, employee, or agent of the County who exercises any functions or responsibilities in connection with the planning and carrying out of the program, shall have any personal financial interest, direct or indirect, in this Contract; and the Consultant shall take appropriate steps to assure compliance.

Interests of Other Local Public Officials

No member of the governing body of the locality and no other public official of such locality, who exercises any functions or responsibilities in connection with the planning and carrying out of the program, shall have any personal financial interest, direct or indirect, in this Contract; and the Consultant shall take appropriate steps to assure compliance.

Interest of Consultant and Employees

The Consultant covenants that he presently has no interest and shall not acquire interest, direct or indirect, in the study area or any parcels therein or any other interest which would conflict in any manner or degree with the performance of his

services hereunder. The Consultant further covenants that in the performance of this Contract, no person having any such interest shall be employed.

16. "Section 3" Compliance

- A. The work to be performed under this Contract is on a project assisted under a program providing direct Federal financial assistance from the Department of Housing and Urban Development and is subject to the requirements of Section 3 of the Housing and Urban Development Act of 1968, as amended, 12 U.S.C. 1701 u. Section 3 requires that to the greatest extent feasible opportunities for training and employment be given lower income residents of the project area and contracts for work and purchase of services and supplies in connection with the project be awarded to business concerns which are located in, or owned in substantial part by persons residing in the area of the project.
- B. The parties to this Contract will comply with the provisions of said Section 3 and the regulations issued pursuant thereto by the Secretary of Housing and Urban Development set forth in 24 CFR Part 135, and all applicable rules and orders of the Department issued thereunder prior to the execution of this Contract. The parties to this Contract certify and agree that they are under no contractual or other disability that would prevent them from complying with these requirements.
- C. The Consultant will send to each labor organization or representative of workers with which he has a collective bargaining agreement or other contract or understanding, if any, a notice advising the said labor organization or workers' representative of his commitments under this Section 3 clause and shall post copies of the notice in conspicuous places available to employees and applicants for employment training.
- D. The Consultant will include this Section 3 clause in every subcontract for work in connection with the project and will, at the direction of the applicant for or recipient of Federal financial assistance, take appropriate action pursuant to the subcontract upon a *finding* that the subcontractor is in violation of regulations issued by the Secretary of Housing and Urban Development, 24 CFR Part 135. The Consultant will not subcontract with any subcontractor where it has notice or knowledge that the latter has been found in violation of regulations under 24 CFR Part 135 and will not let any subcontract unless the subcontractor has first provided it with a preliminary statement of ability to comply with the requirements of these regulations.
- E. Compliance with the provisions of Section 3, the regulations set forth in 24 CFR Part 135, and all applicable rules and orders of the Department issued hereunder prior to the execution of the contract, shall be a condition of the Federal financial assistance provided to the project, binding upon the applicant or recipient for such assistance, its successors

and assigns. Failure to fulfill these requirements shall subject the applicant or recipient, its contractors and subcontractors, its successors and assigns to those sanctions specified by the grant or loan agreement or contract through which Federal assistance is provided, and to such sanctions as are specified by 24 CFR Part 135.

17. Equal Opportunity Clause (Contracts above \$10,000)

During the performance of this Contract, the Consultant agrees as follows:

- A. The Consultant will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The Consultant will take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, religion, sex, sexual orientation, or national origin. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection of training, including apprenticeship. The Consultant agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided by the County setting forth the provisions of this non-discrimination clause.
- B. The Consultant will, in all solicitation or advertisements for employees placed by or on behalf of the Consultant, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.
- C. The Consultant will cause the foregoing provisions to be inserted in all subcontracts for any work covered by this Contract so that such provisions will be binding upon each subcontractor, provided that the foregoing provisions shall not apply to contracts or subcontracts for standard commercial supplies or raw materials.
- D. The Consultant will furnish all information and reports required by Executive Order 11246 of September 24, 1965, as amended, and by the rules, regulations and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records and accounts by the City's Department of Housing and Community Development and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations and orders.

- F. In the event of the Consultant's noncompliance with the non-compliance clause of this Contract or with any of such rules, regulations or orders, this Contract may be canceled, terminated or suspended in whole or in part and the Consultant may be declared ineligible for further government contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, as amended, and such other sanctions may be imposed and remedies invoked as provided in or as otherwise provided by law.
- G. The Consultant will include the provisions of paragraphs (A) through (G) in every subcontract or purchase order unless exempted by rules, regulations or orders of the Secretary of Labor issued pursuant to Section 204 of Executive Order 11246 of September 24, 1965 as amended, so that such provisions will be binding upon each subcontractor or vendor. The Consultant will take such action with respect to any subcontract or purchase order as the City's Department of Housing and Community Development may direct as a means of enforcing such provisions including sanctions for noncompliance: provided, however, that in the event the Consultant becomes involved in, or is threatened with, litigation with a subcontractor or vendor as a result of such direction by the City's Department of Housing and Community Development, the Consultant may request the United States to enter such litigation to protect the interests of the United States.

Kentucky Community Development Block Grant

Housing Project Application Form

Project Funding Summary

Updated July 30, 2026

FINANCING

Include **all** funding amounts and sources. Please complete all appropriate columns and indicate the status of funds as "Approved", "Applied For", or "Committed". In-kind contributions should be listed separately on the chart below.

Source	Amount	Project %	Type	Rate	Term	Status of Funds
CDBG	\$965,000	4.4%	Grant	N/A	N/A	Awarded
CDBG Admin/Planning	\$35,000	0.2%	Grant	N/A	N/A	Awarded
Subtotal - CDBG	\$1,000,000	4.6%				
G.R.A.N.T. Program	\$95,000	0.4%	Grant	N/A	N/A	Approved
KHC Low Income Housing Tax Credits (9%)	\$12,749,000	58.6%	Tax credits	N/A	15 years	Approved
KHC HOME Investment Partnerships Program	\$1,350,000	6.2%	Loan	0%	20 years	Approved
KHC Affordable Housing Trust Fund (AHTF)	\$500,000	2.3%	Loan	0%	30 years	Approved
KHC Rural Housing Trust Fund (RHTF)	\$400,000	1.8%	Loan	0%	30 years	Approved
Cash Flow Loan	\$575,000	2.6%	Loan	0%	35 years	Committed
Permanent Loan	\$4,323,746	19.9%	Loan	TBD	35 years	Committed
Deferred Developer Fee	\$652,220	3.0%	Deferred Developer Fee	N/A	N/A	Committed
Other equity/grants	\$92,500	0.4%	Donations	N/A	N/A	Committed
Total	\$21,737,466	100.0%				

Source of In-Kind Contributions	Estimated Amount
Total	\$0

APPLICATION CERTIFICATION

I **certify** to the best of my knowledge and belief that the information provided herein is **true, complete, and accurate. I am aware that the provisions of false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil, or administrative consequences** including, but not limited to violations of U.S. Code Title 18, Sections 2, 1001, 1343 and Title 31, Section 3729-3730 and 3801-3812" Applies to all tiers of subrecipients. I also agree to comply with requirements of 24 CFR Part 58.

I am aware that the proposed project may be removed from further consideration should it be determined that there are significant discrepancies in the information provided, and/or false, inaccurate or incomplete information has been given.

Signature, Chief Executive Officer

David Voegele

Name Typed

Oldham County Judge/Executive

Title

Date

DOCUMENT 02

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
RESIDENTIAL ANTIDISPLACEMENT AND RELOCATION ASSISTANCE PLAN

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the **Residential Antidisplacement and Relocation Assistance Plan** attached hereto be and hereby is adopted for the purpose of the Project, and the County Judge/Executive and his designees be and hereby are authorized and directed to take all further action deemed necessary or desirable in connection therewith.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

Kentucky Community Development Block Grant

Residential Antidisplacement and Relocation Assistance Plan under Section 104(d) of the Housing and Community Development Act of 1974, as Amended

The Oldham County Fiscal Court will replace all occupied and vacant occupiable low/moderate income dwelling units demolished or converted to a use other than low/moderate income housing as a direct result of activities assisted with funds provided under the Housing and Community Development Act of 1974, as amended, as described in 24 CFR 570.488a(c)(1).

All replacement housing will be provided within three years of the commencement of the demolition or rehabilitation relating to conversion. Before obligating or expending funds that will directly result in such demolition or conversion, the Oldham County Fiscal Court will make public and submit to the Department for Local Development the following information in writing:

1. A description of the proposed assisted activity;
2. The general location on a map and approximate number of dwelling units by size (number of bedrooms) that will be demolished or converted to a use other than as low/moderate income dwelling units as a direct result of the assisted activity;
3. A time schedule for the commencement and completion of the demolition or conversion;
4. The general location on a map and approximate number of dwelling units by size (number of bedrooms) that will be provided as replacement dwelling units;
5. The source of funding and a time schedule for the provision of replacement dwelling units; and
6. The basis for concluding that each replacement dwelling unit will remain a low/moderate income dwelling unit for at least 10 years from the date of initial occupancy.

The Oldham County Fiscal Court will provide relocation assistance, as described in 24 CFR 570.488a(c)(1) to each low/moderate income household displaced by the demolition of housing or by the conversion of a low/moderate income dwelling to another use as a direct result of assisted activities.

Consistent with the goals and objectives of activities assisted under the Act, the Oldham County Fiscal Court will take the following steps to minimize the displacement of persons from their home:

There will be no relocations as a result of the Crestwood Pillar Housing Project.

Honorable David Voegelé
Oldham County Judge/Executive

Date

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
KCDBG PROCUREMENT CODE

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the **KCDBG Procurement Code** attached hereto be and hereby is adopted solely for the purpose of the Project, and the County Judge/Executive and his designees be and hereby are authorized and directed to take all further action deemed necessary or desirable in connection therewith.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

KCDBG PROCUREMENT CODE

All procurements made by the Oldham County Fiscal Court (hereafter referred to as "Grantee/Subrecipient") involving the expenditure of local, state and federal funds on Community Development Block Grant (CDBG) Project #25-026 shall be made in accordance with the following procurement standards.

Procurement transactions, regardless of method or dollar value, will maximize open and free competition. The Grantee/Subrecipient shall not engage in procurement practices that may be considered restrictive in trade.

Purchases will be reviewed by the Treasurer to prevent duplication and to ensure that costs are reasonable.

1. Methods for Procurement

Procurements shall be made by one of the following methods: (a) small purchase procedures, (b) competitive sealed bids, (c) competitive negotiation, (d) non-competitive negotiation.

A. SMALL PURCHASE PROCEDURES

For purchases of less than \$50, efforts will be made to get the lowest and best price, but written records of such efforts are not necessary.

Purchases that cost more than \$50 but less than \$40,000 require quotations of rate, price, etc., but no legal advertisement is required. The Grantee/Subrecipient will solicit responses from at least three vendors. If written responses are not available, a statement explaining the procurement will be prepared and filed. If quotations are obtained via telephone, a memorandum will be prepared setting forth the date the calls were made, parties contacted, and prices obtained.

The Grantee/Subrecipient will make the award to the lowest responsive and responsible source, and enter into a contract formalizing the scope of work and terms of compensation.

B. COMPETITIVE SEALED BIDS

Bidding will be employed when detailed specifications for the goods or services to be procured can be prepared and the primary basis for award is cost. When the cost of a contract, lease or other agreement for materials, supplies, equipment or contractual services other than those personal or professional exceeds \$40,000, an Invitation for Bids (IFB) notice will generally be prepared. Per KRS 424.120, this notice will be published at least once in a qualifying official newspaper

of general circulation within the community. This newspaper notice will appear not less than seven (7) days and not more than twenty-one (21) days before the due date for bid proposals. In addition, the Grantee/Subrecipient must solicit sealed bids from responsible prospective suppliers by distributing a copy of such notice to them.

The IFB will include a general description of the goods or services to be procured, the bid deposit and bond performance required (if applicable), the location where bid forms and specifications may be secured, the time and place for opening bids, and whether the bid award will be made on the basis of the lowest bid price or the lowest evaluated price. If the lowest evaluated price is used, the measurable criteria to be utilized must be stated in the IFB. The newspaper notice must also contain language that calls to the attention of bidders all applicable requirements that must be complied with such as Section 3 of the 1968 Housing Act, Section 109 of the 1974 Housing and Community Development Act, the Civil Rights Act of 1964, Executive Order 11246 and the Davis-Bacon Act.

Sealed bids will be opened in public at the time and place stated in the IFBs. The Grantee/Subrecipient will tabulate the bids at the time of bid opening. The results of the tabulation and the bid documents will be evaluated by the review committee, which will make recommendations to the Grantee/Subrecipient. The Grantee/Subrecipient will make a firm fixed-price contract award in writing to the lowest responsive and responsible bidder. After the Grantee/Subrecipient makes the bid award, a contract will be prepared for execution by the successful bidder. After the contract is signed, all bid deposits will be returned to all unsuccessful bidders.

The Grantee/Subrecipient may cancel an Invitation for Bid or reject all bids if it is determined in writing that such is in the best interests of the Grantee/Subrecipient. The Grantee/Subrecipient may allow a vendor to withdraw a bid if requested at any time prior to the bid opening. Bids received after the time set for bid opening shall be returned to the vendor unopened.

Bid Overages:

The following options are available for awarding a bid following an overage:

- 1) Obtaining additional funds from another source and continuing with the original IFB.

- 2) Rejecting all bids, revising project scope and bid specifications, and issuing a revised IFB (competitive sealed bid) open to the entire public; or
- 3) Conducting competitive negotiations with **all** bidders. **(Grantees must seek pre-approval from DLG for this option).**

Competitive negotiations under option (3) must take place under the following criteria:

1. If discussions pertaining to the revision of the specifications or quantities are held with any bidder, all of the bidders shall be afforded an opportunity to take part in such discussions.
2. After discussions with the bidders, the grantee shall revise the scope of work accordingly and issue an RFP open to all bidders, providing for expedited proposals. No advertisement is required, but the grantee shall allow **at least seven (7) days** for bidders to submit proposals.
3. The RFP shall be awarded on the basis of **lowest bid price**.

C. COMPETITIVE NEGOTIATION

The Grantee/Subrecipient may utilize competitive negotiations, regardless of contract amount, upon a written determination that:

1. Specifications cannot be made specific enough to permit the award of a bid on the basis of either the lowest bid price or the lowest evaluated bid price (in other words, bidding is not feasible).
2. The services to be procured are professional or personal in nature.

The use of the competitive negotiations procurement method for contracts other than architectural, engineering, planning or administrative services must be pre-authorized by DLG. With the exception of procurement of certain professional services (principally engineering services), competitive negotiations will proceed as follows:

1. Proposals will be solicited through a qualifying official newspaper advertisement; additionally, a Request for Proposal (RFP) may be prepared and mailed to qualified

vendors. The newspaper advertisement must be published at least seven (7) days and not more than twenty-one (21) days before the date for receipt of the proposals. The RFP will describe services needed and identify the factors to be considered in the evaluation of proposals and the relative weights assigned to each selection factor. The RFP will also state where further details regarding the RFP may be obtained. The RFP will call attention to the same regulations discussed in the bidding process. Requests for proposals will always include cost as a selection factor except for engineering services.

2. Award must be made to the offeror whose proposal is determined by the review committee to be most advantageous to the program, with price and other factors considered. Evaluations must be based on the factors set forth in the Request for Proposal and a written evaluation of each response prepared. The review committee may contact the firms regarding their proposals for the purpose of clarification and record in writing the nature of the clarification. If it is determined that no acceptable proposal has been submitted, all proposals may be rejected. New proposals may be solicited on the same or revised terms or the procurement may be abandoned.

For the procurement of architectural/engineering (A/E) professional services, an alternative to RFPs may be used. The Grantee/Subrecipient may publish a Request for Qualifications. RFQs are handled in a similar method to RFPs with the exception that cost is not a factor in the initial evaluation. A review committee will evaluate the responses and rank them by comparative qualifications. The highest scoring person or firm will be contacted and the selection committee will negotiate cost. If the committee is unable to negotiate a satisfactory cost arrangement, the second highest scoring person or firm will be invited to negotiate. The committee will maintain a written record of all such negotiations.

D. NON-COMPETITIVE NEGOTIATION

Non-competitive negotiation is procurement through solicitation of a proposal from one source, and is often referred to as sole source procurement. A contract may be awarded by noncompetitive negotiation only when the award is infeasible under small purchase procedures, competitive sealed bids, or competitive negotiations and one of the following circumstances applies:

1. There is some public emergency that will not permit delay resulting from competitive solicitation (the grantee must declare an emergency as authorized by law); or
2. The results of the competitive negotiations are inadequate; or
3. The product or service is available only from a single source.

Caution: The use of the non-competitive negotiations procurement method must be authorized by DLG.

The following requirements apply to the non-competitive negotiations procurement process:

1. Negotiations must be conducted with the selected company regarding a scope of work and price; and
2. Preparation and signing of a contract formalizing a scope of work and the terms of compensation is required.

II. CONTRACTS

Generally, all procurement in excess of \$500 will be memorialized and supported by a written contract. Where it is infeasible or impractical to prepare a contract, a written finding to this effect will be prepared and a purchase order regarding the transaction will also be prepared. The contractual provisions required by "The Common Rule" will be included in all contracts and purchase orders.

III. DOCUMENTATION

All source documents supporting any given transaction (receipts, purchase orders, invoices, RFP/RFQ data, and bid materials) will be retained and filed in an appropriate manner. Where feasible, source documents pertinent to each individual procurement shall be separately filed and maintained. Where it is infeasible to maintain individual procurement files, source documents will be filed and maintained in a reasonable manner (examples include chronologically, by vendor, by type of procurement, etc.). Whatever form of documentation and filing is employed, the purpose of this section is to insure that a clear and consistent audit trail is established. At a minimum, source document data must be sufficient to establish the basis for selection, basis for cost (including the issue of reasonableness of cost) and basis for payment.

IV. LOCALLY OWNED, MINORITY OWNED, FEMALE OWNED AND SMALL BUSINESSES

The Grantee/Subrecipient shall make and document efforts to solicit participation of locally owned, minority owned, female owned and small businesses. Where

feasible, evaluation criteria will include a factor with an appropriate weight for these firms. A list of locally owned, minority owned, female owned and small businesses and also minority businesses located within the trade region shall be maintained and utilized when issuing IFBs, RFPs and RFQs. The Grantee/Subrecipient shall also consult this list when making small purchases.

VI. SECTION 3

Grantee/Subrecipient shall abide by its Section 3 action plan and shall, to the maximum extent feasible, as required by 24 CFR Part 75, award contracts to businesses that provide economic opportunities for low and very low-income persons residing in the project area.

VII. CODE OF CONDUCT

A. CONFLICTS OF INTEREST

In addition to the prohibitions set forth in 24 CFR 570.489(h) and 24 CFR 85.36(b)(3), the following prohibitions shall apply:

(1) It shall be a breach of ethical standards for any employee with procurement authority to participate directly in any proceeding or application; request for ruling or other determination; claim or controversy; or other particular matter pertaining to any contract, or subcontract, and any solicitation or proposal therefor, in which to his knowledge:

(a) He, or any member of his immediate family has a financial interest therein; or

(b) A business or organization in which he or any member of his immediate family has a financial interest as an officer, director, trustee, partner, or employee, is a party; or

(c) Any other person, business, or organization with whom he or any member of his immediate family is negotiating or has an arrangement concerning prospective employment is a party.

Direct or indirect participation shall include but not be limited to involvement through decision, approval, disapproval, recommendation, preparation of any part of a purchase request, influencing the content of any specification or purchase standard, rendering of advice, investigation, auditing, or in any other advisory capacity.

(2) It shall be a breach of ethical standards for any person to offer, give, or agree to give any employee or former employee, or for any employee or former employee to solicit, demand, accept, or agree to accept from another person, a gratuity or an offer of employment, in connection with any decision, approval, disapproval, recommendation, preparation of any part of a purchase request, influencing the content of any specification or purchase standard,

rendering of advice, investigation, auditing, or in any other advisory capacity in any proceeding or application, request for ruling or other determination, claim or controversy, or other particular matter, pertaining to any contract or subcontract and any solicitation or proposal therefor.

(3) It is a breach of ethical standards for any payment, gratuity, or offer of employment to be made by or on behalf of a subcontractor under a contract to the prime contractor or higher tier subcontractor or any person associated therewith, as an inducement for the award of a subcontract or order.

(4) The prohibition against conflicts of interest and gratuities and kickbacks shall be conspicuously set forth in every local public agency written contract and solicitation therefor.

(5) It shall be a breach of ethical standards for any public employee or former employee knowingly to use confidential information for his actual or anticipated personal gain, or the actual or anticipated personal gain of any other person.

B. PENALTIES

Any elected official, employee or designated agent of the Grantee/Subrecipient who knowingly and deliberately violates the provisions of this code will be open to civil suit without the legal protection of the Grantee/Subrecipient. Furthermore, such a violation of these procurement standards is grounds for dismissal by the Grantee/Subrecipient.

Any contractor or potential contractor who knowingly and deliberately violates the provisions of these procurement standards will be barred from future transactions with the Grantee/Subrecipient.

ADOPTED THIS _____ DAY OF _____, 2026.

OLDHAM COUNTY FISCAL COURT

Honorable David Voegelé
Oldham County Judge/Executive



David Voegele

Judge Executive

dvoegele@oldhamcountyky.gov

Kevin Nuss

Deputy Judge Executive

knuss@oldhamcountyky.gov

, 2026

Mr. Matt Sawyers
Commissioner
Kentucky Department for Local Government
100 Airport Road, 3rd Floor
Frankfort, KY 40601

RE: CDBG – Housing
Oldham County Fiscal Court — Pillar Crestwood Site Work
SAI# KY202509170797
CFDA# 14.228

Dear Commissioner Sawyers:

The intent of this letter is to inform your office that the Oldham County Fiscal Court has reviewed the comments of the Kentucky State e-Clearinghouse set forth in its letter dated October 14, 2025, enclosed herewith, regarding the above-described project and to assure your office that all conditions will be met. The Oldham County Fiscal Court agrees to abide by all Clearinghouse comments received and all comments will be fully addressed. The Oldham County Fiscal Court agrees to fully adhere to the Clearinghouse comments throughout the duration of the project.

Please do not hesitate to contact me regarding this assurance letter.

Sincerely,

Honorable David Voegele
Oldham County Judge-Executive

Enclosure



Andy Beshear
Governor

OFFICE OF THE GOVERNOR
DEPARTMENT FOR LOCAL GOVERNMENT
100 AIRPORT ROAD, THIRD FLOOR
FRANKFORT, KENTUCKY 40601
PHONE (502) 573-2382, F 227-8691
dlg.ky.gov

Matt Sawyers
Commissioner

October 14, 2025

Mr. David Voegelé
Oldham County Fiscal Court
100 W. Jefferson Street
La Grange, KY 40031-1149

RE: Pillar Crestwood Site Work
SAI# KY202509170797
CFDA# 14.228

Dear Mr. Voegelé:

The Kentucky State e-Clearinghouse is the official designated Single Point of Contact (SPOC) for the Commonwealth pursuant to Presidential Executive Order 12372 and supported by Kentucky Statutes KRS 45.031. The primary function of the SPOC is to streamline the review process for the applicant and the funding agency. This process helps in vocalizing the statutory and regulatory requirements. Information in the form of comments, if any, will be attached to this correspondence.

This proposal has been reviewed by the appropriate state agencies in the e-Clearinghouse for conflicts with state or local plans, goals, and objectives. After receiving this letter, you should make it available to the funding agency and continue with the application process for that agency. This e-Clearinghouse SPOC letter signifies only that the project has followed the state reviewing requirements and is neither a commitment of funds from this agency, nor any other state or federal agency. Please remember if any federal reviews are required, the applicant must follow through with those federal agencies.

The results of this review are valid for **one year** from the date of this letter. If the project is not submitted to the funding agency or not approved within one year after the completion of this review, the applicant can request an extension through the **information request function**. If the project changes in any way after the review, the applicant must reapply through the e-Clearinghouse for a new review. There are no exceptions.

If you have any questions regarding this letter or the review process, please contact the e-Clearinghouse office at (502) 573-2382.

Respectfully,

Cindy Seip,
Program Coordinator (SPOC)
Kentucky State e-Clearinghouse

Attachment

TEAM
KENTUCKY™

Department of Housing Buildings and Construction

Don Newberry

The Department has no comments concerning this proposed project. A building permit from the Local Jurisdiction will be required, prior to construction.

Environment & Energy Cabinet--Department for Environmental Protection

Natalie Bruner

This review is based upon the information that was provided by the applicant through the Clearinghouse for this project. An endorsement of this project does not satisfy, or imply, the acceptance or issuance of any permits, certifications, or approvals that may be required from this agency under Kentucky Revised Statutes or Kentucky Administrative Regulations. Such endorsement means this agency has found no major concerns from the review of the proposed project as presented other than those stated as conditions or comments.

Kentucky Division for Air Quality Regulation 401 KAR 63:010 Fugitive Emissions states that no person shall cause, suffer, or allow any material to be handled, processed, transported, or stored without taking reasonable precaution to prevent particulate matter from becoming airborne. Additional requirements include the covering of open bodied trucks, operating outside the work area transporting materials likely to become airborne, and that no one shall allow earth or other material being transported by truck or earth moving equipment to be deposited onto a paved street or roadway. Please note the Fugitive Emissions Fact Sheet located at:

<https://eec.ky.gov/Environmental-Protection/Air/Documents/Fugitive%20Dust%20Fact%20Sheet.pdf>.

Kentucky Division for Air Quality Regulation 401 KAR 63:005 states that open burning is prohibited. Open Burning is defined as the burning of any matter in such a manner that the products of combustion resulting from the burning are emitted directly into the atmosphere without passing through a stack or chimney. However, open burning may be utilized for the expressed purposes listed on the Open Burning Brochure located at:

<https://eec.ky.gov/Environmental-Protection/Air/Pages/Open-Burning.aspx>.

All solid waste generated by this project must be disposed at a permitted facility. If underground storage tanks are encountered, they must be properly addressed. If asbestos, lead paint, and/or other contaminants are encountered during this project, they must be properly addressed.

If the proposed project site is in a designated flood hazard area, application must be made to the Division of Water for a floodplain construction permit. Permission, or exemption, depends upon design and the exact site.

Utility line projects that cross a stream will require a Section 404 permit from the US Army Corps of Engineers and a 401 Water Quality Certification from DOW.

If the construction area disturbed is equal to or greater than 1 acre, the applicant will need to apply for a Kentucky Pollutant Discharge Elimination System (KPDES) stormwater discharge permit from the Division of Water.

Best Management Practices (BMPs) should be utilized to control storm water runoff and sediment damage to water quality and aquatic habitat. For technical assistance on the kinds of BMPs most appropriate for housing and related construction, please contact the local Soil and Water Conservation District or the Division of Conservation.

If an existing water server is to be utilized for new water tap-ons (rehabilitations, new constructions), ascertain the capacity and operating condition of the originating water treatment plant and of the server (if different) in comparison to the water needs of the proposed housing. DOW cannot permit connections to water servers under tap-on bans, Agreed Orders, or Court Orders. DOW may not give approval to connections to water systems operating near, at, or over capacity. If a new water source is to be utilized, ascertain the source's (stream's or well's) low flow ability to serve the proposed project. Prior approval from DOW is required for water withdrawals of over 10,000 gallons per day and for all public drinking water. Final plans and specifications are subject to review by DOW.

If an existing wastewater server is to be utilized for new wastewater tap-ons (rehabilitations, new construction), ascertain the capacity and operating conditions of the receiving wastewater treatment facility (wastewater treatment plant or package sewage treatment plant) and of the server (if different) in comparison to the wastewater needs of the proposed housing. DOW cannot permit connections to wastewater servers under tap-on bans, Agreed Orders, or Court Orders. DOW may not give approval to connections to wastewater systems at or over hydraulic capacity. If a new wastewater treatment facility is to be utilized, ascertain the discharge stream's ability to absorb the proposed projects treated wastewater.

DOW notes the requirements of onsite sewage disposal statutes, KRS 211.350 to 211.380, and administrative regulations, 902 KAR 10:060 to 10:110, must be met. DOW requests provisions are made for future connections to a wastewater treatment system. A Groundwater Protection Plan, as required by 401 KAR 5:037, needs to be prepared by all onsite wastewater system owners. Contact the DOW regarding requirements.

Prior approval from DOW is required for all discharges into streams and for all wastewater treatment facilities. DOW reminds the applicant to seal abandoned wastewater service connections.

Your project might have the potential of impacting federally or state listed species and natural communities. Go to the Kentucky Biological Assessment Tool (kynaturepreserves.org) to obtain a Standard Occurrence Report for information regarding listed species known within your project area. The report will also provide information on public and private conservation lands, areas of biodiversity significance, and other natural resources in your project area for which the Office of Kentucky Nature Preserves maintains data.

Kentucky Department of Fish & Wildlife

Emily Lawson

Due to the location and nature of the project, Kentucky Department of Fish & Wildlife Resources (KDFWR) does not have specific concerns regarding federal or state-listed threatened / endangered species, designated critical habitat, wildlife management areas, or other properties managed by KDFWR. The following recommendations are provided as general guidance for development of private and grant-funded projects submitted to KDFWR for review. In general, impacts to fish and wildlife resources might be avoided and minimized by following the guidance provided below:

- **Wetlands, Waterways, and Floodplains:** The KDFWR requests that you coordinate the proposed project with the U. S. Army Corps of Engineers (USACE) and the Kentucky Division of Water (KDOW) prior to any work within the waterways or wetland habitats of Kentucky (including encroachment and/or fill in floodplains and waterways). KDFWR recommends minimizing stream encroachment and maintaining forested riparian buffers around stream banks. Forested riparian zones along streams provide numerous functions beneficial to fish, wildlife, and water quality. Forested riparian zones reduces erosion and siltation, one of Kentucky's leading causes of impairment in streams. Trees reinforce stream banks, slow runoff helping reduce flood peaks, and help to improve water quality. Trees provide important habitat along streams and serve as travel corridors for wildlife.
- **USFWS Coordination for compliance with the Endangered Species Act:** Please coordinate with the US Fish and Wildlife Service for compliance with the Endangered Species Act and for specific recommendations to minimize adverse effects to listed species. The USFWS may have seasonal requirements for removing trees, especially those greater than 3" in diameter-at-breast height. Limiting the removal of these trees to the period between November 15th through April 1st will minimize impacts to many species of bats, several of which are listed as threatened or endangered on the federal Endangered Species Act.
- **Preventing fish kills:** Avoid using wet concrete near waterways. Please refer to the KY Division of Water for recommended best management practices regarding concrete use near streams. Uncured (wet) concrete released into streams and waterways causes significant fish kills. If concrete is required, prevent its release into streams by using pre-formed concrete structures or separating work areas from stream water by coffer dam or other method. Construction water that contains concrete slurry should not be released into streams. It can be pumped into a containment in an upland area away from stream water to safely dispose of it or it can be aspirated with carbon dioxide to make it non-toxic.

- Erosion control to minimize impacts to the aquatic environment: KDFWR recommends that erosion control measures be developed and implemented prior to construction to reduce siltation into waterways located within/near the project area. Such erosion control measures may include, but are not limited to silt fences, staked straw bales, brush barriers, sediment basins, and diversion ditches. Erosion control measures will need to be inspected regularly and repaired as needed. If blanket-style matting is used for erosion control, please avoid using the nylon monofilament netting as it can entangle and kill wildlife. An alternative blanket style control is organic coir matting, which degrades naturally and provides excellent soil protection and moisture retention for seed germination—as well as controlling erosion runoff without unnecessarily impacting wildlife.

Thank you for coordinating with KDFWR. Please contact Emily Lawson at 502-892-4472 or emilym.lawson@ky.gov if you have further questions or require additional information.

Kentucky Transportation Cabinet - District 5

Brian Eaton

Any firm, individual, or government agency, that wants access to a road on the state highway system or wants to conduct any type of work on the right of way, must obtain a permit from the Department of Highways. For further information, contact Jason Richardson, Encroachment Permits, KYTC District 5 at (502) 210-5400.

KY Heritage Council

Nicole Konkol

Please note the Kentucky Heritage Council / State Historic Preservation Office (KHC) review is not part of the e-Clearinghouse process. Submission and consultation for Section 106 or cultural resource review must be conducted directly with the KHC. Your federal grant application will be considered incomplete until you have a letter directly from KHC. Within the e-Clearinghouse page there is a direct link to KHC's document submission portal, INHERIT. Each review submitted to the KHC will be provided within 30 days of the date all requested information has been submitted. If you have questions or concerns, please contact Nicole Konkol by email.

Please note: If your project is funded through Transportation Alternative (TAP), Transportation Enhancements (TE), Congestion, Mitigation, Air Quality (CMAQ), or Safe Routes to School (SRTS) you will need to send this information to Michael Jones, Historic Preservation Program Administrator with the Kentucky Transportation Cabinet via email to MichaelR.Jones2@ky.gov or hard copy to Michael Jones, Office of Local Programs, KY Transportation Cabinet, 200 Mero Street Frankfort, KY 40622. Do not send materials directly to SHPO if your project involves funding from these four sources as it will cause delays in the review process. Michael Jones will consult directly with the SHPO on projects with these funding sources to complete the Section 106 review.

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
COST OVERRUNS

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”);

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below; and

WHEREAS, the Oldham County Fiscal Court has entered or will enter into an agreement with Pillar that requires Pillar to be responsible for all costs associated with the project, including all cost overruns, and to bear the obligation for reimbursement of the Oldham County Fiscal Court to meet cost overruns associated with the Project;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, all costs, including but not limited to any **cost overruns**, associated with the Project will be the responsibility of and borne by Pillar.

So resolved this ____ day of _____, 2026.

Honorable David Voegelé
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

LEGALLY BINDING AGREEMENT

This agreement is entered into this ____ day of _____, 2026, by and between the Oldham County Fiscal Court, hereinafter referred to as the Recipient, and Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization, hereinafter referred to as the Nonprofit. This agreement is being executed in three original contracts, each of which is deemed an original.

WHEREAS, the Recipient has entered into a Grant Agreement with the Commonwealth of Kentucky, Department of Local Government (DLG), and

WHEREAS, the payment of funds to the Recipient under the terms of the Grant Agreement is contingent upon the Nonprofit contracting to undertake certain responsibilities, and

WHEREAS, the funds made available under the terms of the Grant Agreement will directly benefit the Nonprofit,

NOW, THEREFORE, for and in consideration of the sum of ONE DOLLAR (\$1.00) paid to the Nonprofit, and in further consideration of the mutual promises and covenants hereinafter contained, IT IS AGREED BY AND BETWEEN THE PARTIES AS FOLLOWS:

The Recipient and the Nonprofit do hereby agree to carry out and perform all of the activities required of it under the terms and conditions of the Grant Agreement, which agreement is incorporated herein by reference as if copied in full.

The Nonprofit agrees as follows:

a) To perform project activities as enumerated in Exhibit B-2 of the Grant Agreement as enumerated below:

1. Activities by the Nonprofit as stated in the application given preliminary approval on May 6, 2026, and summarized below:

a. The Nonprofit will receive \$965,000 in CDBG funds to complete site work and infrastructure of the Oldham County – Pillar Housing Project. The project will contain 72 units and be available exclusively for handicapped adults to remain as affordable apartment units for low income residents.

b. The CDBG will be in the form of a 20-year mortgage, 0% due on sale, with the ability to be forgiven after 20 years. Rents charged will be based on the Kentucky Housing Corporation and HUD HOME rent limits to ensure affordability. The terms are attached hereto as Exhibit II.

c. The Nonprofit must assure compliance with the Uniform Relocation Act (URA). In addition, the Recipient agrees to comply with KRS 82.083 and notify DLG prior to the sale or disposition of any CDBG funded properties.

d. The Nonprofit agrees to maintain the rental properties in compliance with applicable local housing codes. The Nonprofit will ensure that a twenty (20) year deed restriction is placed on the property to ensure that it remains as affordable housing.

e. The Nonprofit will record any recovered funds as Program Income/Miscellaneous Revenue and deposit them in an operating reserve. The Recipient will ensure that proper accounting will be maintained of these funds and this documentation will be provided annually to the Recipient to ensure compliance with regulations and reporting requirements related thereto.

f. If the Nonprofit cannot have the rental units substantially occupied with eligible tenants by the grant expiration date, it will accept that the unutilized CDBG funds will no longer be available to the project.

g. The Nonprofit must ensure that Davis-Bacon Act and state wage rates will be incorporated into all construction contracts where they are applicable.

h. The Nonprofit will secure funding in the amounts set forth in Exhibit B-2:

2. To the extent required, the Nonprofit must comply with the requirements of the Build America, Buy America (BABA) Act, 41 USC 8301 note, and all applicable rules and notices, as may be amended, if applicable to the project. Pursuant to HUD's Notice, "Public Interest Phased Implementation Waiver for FY 2022 and 2023 of Build America, Buy America Provisions as Applied to Recipients of HUD Federal Financial Assistance" (88 FR 17001), any funds obligated by HUD on or after the applicable listed effective dates, are subject to BABA requirements, unless excepted by a waiver.

3. The Nonprofit will be responsible for all costs associated with the project, including all cost overruns, and shall bear the obligation for reimbursement of the Recipient to meet any and all required payback provisions and/or cost overruns.

b) To assure that the recapture of CDBG funds will be deposited in a Revolving Fund Account. Recaptured funds will be used for activities set forth in the application dated November 13, 2025. The Nonprofit shall assure compliance with proper accounting and reporting requirements related thereto. The Nonprofit shall obtain project approval from the Recipient for the expenditure of funds as may be specified in the Revolving Fund Guidelines.

c) To perform the following project activities as enumerated in Exhibit B-1 of the Grant Agreement as enumerated below:

1. The Nonprofit shall identify eligible tenants to rent the vacant units by publishing a DLG-approved "Notice of Solicitation for Participants" in the newspaper of largest circulation, displaying the notice at the Nonprofit's office, and providing information to social service agencies. The notice must establish the requirements for potential applicant

eligibility as well as how the participants will be chosen based on qualifications highlighted in the solicitation, including reference to the Nonprofit Tenant Selection Plan.

2. The Nonprofit will enter into a mortgage with the Recipient contractually agreeing to maintain the property in compliance recipient activities found in the Grant Agreement between DLG and Oldham County Fiscal Court and the Recipient for a time period no less than 20 years for completion of the project and sustained occupancy has been achieved.

3. The Nonprofit will ensure that at least 51 percent of the units will be occupied by low- or moderate households, thereby meeting the LMI National Objective benefit. The project will not be closed until all units are substantially occupied.

4. The Nonprofit will erect a project sign according to CDBG specifications.

d) To comply with all provisions of the preliminary award letter from DLG dated May 6, 2026 not covered by Exhibit B-2 of the Grant Agreement, including the following:

1. To ensure that CDBG funds will not be utilized to provide space for government offices.

2. To ensure that CDBG funds are not used to pay for the purchase of furniture, fixtures, or other equipment.

3. To ensure that the building's design is in compliance with all Americans with Disabilities Act (ADA) and Uniform Federal Accessibility Standards (UFAS) requirements.

4. To ensure compliance with Title I of the Housing and Community Development Act of 1974, Title VI of the Civil Rights Act of 1964, Equal Employment Opportunity, Section 504, Section 3, Drug Free Workplace requirements, and the furthering of Fair Housing and promoting nondiscrimination.

5. To be responsible for the development, construction, marketing, maintenance, insurance, and operation of the project.

e) To comply or assist the Recipient in complying promptly with any other requirements or obligations relating to the project imposed by the Department of Local Government from time to time.

The Nonprofit further agrees as follows:

a) To maintain for a period of five years following project closeout all financial records and documents relative to disbursement of any CDBG or other funds identified in and required by the Grant Agreement. Such records include, but are not limited to, ledgers, bank statements, contracts, invoices and reports.

b) To grant access to inspect, copy, audit and examine at all reasonable times employment and financial records to any duly authorized representative of the Commonwealth, HUD, Inspector General and General Accounting Office of the United States, for a period up to five years following completion of closeout procedures.

c) To comply with all State and Federal laws and regulations pertinent to the project.

The Nonprofit further agrees to the following terms and conditions:

a) That no transfer of grant funds by the Recipient to the Nonprofit shall be or be deemed an assignment of grant funds, and that the Nonprofit shall neither succeed to any rights, benefits, or advantages of the Recipient under the terms of the hereinabove described Grant Agreement nor attain any rights, privileges, authorities or interest in or under the said agreement.

b) That the Nonprofit acknowledges nothing contained in the said agreement, nor in any contract between the parties hereto, nor any act of the Commonwealth, the Recipient or any other party shall be deemed or construed to create any relationship or third-party beneficiary, principal and agent, limited or general partnership, or joint venture, or of any association or relationship involving the Commonwealth.

c) That the Recipient shall not be liable to the Nonprofit or any party except the Commonwealth, for the completion of, or the failure to complete, any activities which are a part of the project herein contemplated, except those specified in Exhibit B-1 of the said Grant Agreement.

d) None of the Nonprofit's designees, agents, members, officers or employees, has or shall have any interest, direct or indirect, in any contract or subcontract or the proceeds thereof, for work to be performed in connection with the project herein contemplated at any time during or after such person's tenure with the Nonprofit.

e) The obligations of the parties are totally contingent upon the obtaining of a Release of Funds from the Department of Local Government and no project activities other than environmentally exempt activities may occur until the release is achieved.

f) Recipient and the Nonprofit agree and accept that all applicable provisions of the Grant Agreement are incorporated into and made a part of this Legally Binding Agreement.

g) The Legally Binding Agreement Standard Provisions attached to this Agreement as Exhibit I are considered to be an integral part of this Agreement. These provisions are subject to change from time to time as Federal laws and regulations are promulgated. The Nonprofit will be notified in writing if any changes occur.

— SIGNATURES ON FOLLOWING PAGES —

Legally Binding Agreement

This Agreement being formally adopted this _____ day of _____, 2026:

Recipient:

Examined as to form and legality:

Honorable David Voegele
Oldham County Judge/Executive

Berry Baxter
Oldham County Attorney

State of Kentucky
County of Oldham

Subscribed, sworn to and acknowledged before me by David Voegele, Oldham County Judge/Executive, by and through its resolution, on this _____ day of _____, 2026.

My Commission expires: _____

Notary Public

Legally Binding Agreement

This Agreement being formally adopted this _____ day of _____, 2026:

Nonprofit:

Apple Patch Community, Inc. d/b/a Pillar

Karri Gerdemann, Executive Director

State of Kentucky
County of _____

Subscribed, sworn to and acknowledged before me by Karri Gerdemann, Executive Director of Apple Patch Community, Inc. d/b/a Pillar, by and through its resolution, on this ____ day of _____, 2026.

My Commission expires: _____

Notary Public

**LEGALLY BINDING AGREEMENT
EXHIBIT I
STANDARD PROVISIONS**

1. **Unexpended Grant Funds:** The Non-Profit (and/or) Participating Party agrees that it will return to the Recipient any unexpended grant funds provided by the Recipient under this Agreement.

2. **Program Income:** The following is a brief description of how the program income generated from CDBG funded activities will be handled:

Program income generated from CDBG-funded activities shall be handled in accordance with the Grant Agreement and those certain Resolutions of the Oldham County Fiscal Court adopting Revolving Fund Guidelines.

3. **Limitation of Liability:** The Non-Profit (and/or) Participating Party will not assert in any legal action by claim or defense, or take the position in any administrative or legal procedures that he is an agent or employee of the Recipient.
4. **Ownership:** Ownership of all real or personal property, acquired in whole or in part with CDBG funds for use on this project, shall be vested in the unit of local government. When the unit of local government determines that the property is no longer required for the purposes of this project, the unit of local government must notify the Department of Local Government (DLG) and obtain approval for disposition of the property in accordance with applicable guidelines.
5. **Agreement/Contract:** If any provision in this agreement/contract shall be held to be invalid or unenforceable, the remaining portions shall remain in effect. In the event such invalid or unenforceable provision is considered an essential element of this agreement/contract, the parties shall promptly negotiate a replacement provision, which addresses the intent of such provision.

The failure of either party to insist upon strict performance of any terms, conditions and covenants herein set forth shall not be deemed a waiver of any rights or remedies that such party may have and shall not be deemed a waiver of any subsequent breach or default in the terms, conditions and covenants herein contained.

Federal, State and local laws, ordinances and codes are subject to change from time to time as they are promulgated. The Non-Profit (and/or) Participating Party shall be notified in writing of any such changes when they occur and they shall be incorporated in writing into this contract/agreement upon concurrence by both parties unless such changes are considered to have an essential impact upon the intent of this agreement/contract and then they shall be incorporated upon notification to the Non-Profit (and/or) Participating Party.

6. **Terms and Conditions:** DLG reserves the right to add or delete terms and conditions of this Agreement as may be required by revisions and additions or changes in the

requirements, regulations, and laws governing the Community Development Block Grant Program.

7. **Reporting Requirements:** The Non-Profit (and/or) Participating Party agrees to complete and submit all reports, in such form and according to such schedule, as may be required by DLG.
8. **Maintenance of Records:** Records for non-expendable property purchased totally or partially with Federal funds must be retained for five years after final close-out. All other pertinent contract records including financial records, supporting documents and statistical records shall be retained for a minimum of five (5) years after the final close-out report.

However, if any litigation, claim, or audit is started before the expiration of the five (5) year period, then records must be retained for five (5) years after the litigation, claim or audit is resolved.
9. **Access to Records:** Records with respect to all matters covered by this agreement shall be made available for audit and inspection by DLG, HUD or their representatives.
10. **Sanctions:** If the Non-Profit (and/or) Participating Party fails or refuses to comply with the provisions set forth herein, then DLG or the Recipient may take any or all of the following sanctions: cancel, terminate or suspend in whole or in part this agreement, or refrain from extending any further funds to the Non-Profit (and/or) Participating Party until such time as the Non-Profit (and/or) Participating Party is in full compliance.
11. **Applicable Law:** In addition to the applicable Federal Laws and Regulations, this agreement is also made under and shall be construed in accordance with the laws of the Commonwealth of Kentucky. By execution of this agreement, the Non-Profit (and/or) Participating Party agrees to submit to the jurisdiction of the Commonwealth of Kentucky for all matters arising or to arise hereunder, including but not limited to performance of said agreement and payment of all licenses and taxes of whatever kind or nature applicable hereto.
12. **Uniform Administrative requirements:** The Non-Profit (and/or) Participating Party shall adhere to the following administrative requirements:

Financial: Guidelines for financial and compliance audits of Federally assisted programs which are OMB Circular A-133, and OMB Circular A-87.

Procurement: The following provisions regarding "conflicts of interest" apply to the use and expenditure of CDBG funds by the Recipient and the Non-Profit (and/or) Participating Party.

Except for eligible administrative or personnel costs, the general rule is that no person who is an employee, agent, consultant, officer, or elected or appointed official of the Commonwealth of Kentucky or a unit of general local government or any designated public agencies or subrecipient which are receiving CDBG funds who exercise or have

exercised any function or responsibilities with respect to CDBG activities assisted herein or are in a position to participate in a decision making process or gain inside information with regard to such activities, may obtain a financial interest or benefit from the activity, or have an interest in any contract, subcontract or agreement with respect thereto, or the proceeds thereunder either for themselves or those with whom they have family or business ties during their tenure or for one year thereafter. Exceptions may be granted by the Department for Local Government on a case-by-case basis as requested upon full disclosure in writing.

Should any governmental entity, recipient, subrecipient, employee or official know or perceive any breach of ethical standards or conflict of interest involving any other CDBG grant, they shall immediately notify the Department for Local Government.

Personnel: All contractors and subcontractors engaged in the project shall be fully qualified and properly licensed under State and local law to perform such services.

The Non-Profit (and/or) Participating Party shall insure that all Prime Contractors/Subcontractors are bonded and insured in accordance with State and Federal requirements.

Other Program Requirements: All activities by the Non-Profit (and/or) Participating Party shall be carried out in compliance with all Federal laws and regulations except for environmental responsibilities and review process under Executive Order 12372, which are the responsibility of the Recipient.

Suspension and Termination: In accordance with 24 CFR 85.43 suspension or termination may occur if the Non-Profit (and/or) Participating Party materially fails to comply with any terms of this Agreement, and that the Agreement may be terminated for convenience in accordance with 24 CFR 85.44.

Debarment Certification: The Non-Profit (and/or) Participating Party must verify that all contractors and subcontractors are not listed in the "Certification Regarding Debarment, Suspension, Ineligibility, and Voluntary Exclusion-Lower Tier Covered Transactions", prior to receiving Federal funds. The Non-Profit (and/or) Participating Party must require that any prime contractor or lower tier contractor with a contract valued at more than \$100,000 must also complete a debarment certification and the Non-Profit (and/or) Participating Party will keep it on file for review as outlined in records and reports. The Non-Profit (and/or) Participating Party must also check the eligibility on all contractors and subcontractors who perform work under this Agreement regardless of dollar amount.

Use of Real Property and Reversion of Assets: Upon expiration or termination of this Agreement the Non-Profit (and/or) Participating Party shall transfer on behalf of the Recipient, to the Department for Local Government, or the Department for Local Government's Assignee, any CDBG funds on hand at that time and any accounts receivable attributable to the use of CDBG funds.

Any real property acquired or improved in whole or in part with CDBG funds must continue to be used for the purpose for which it was acquired or improved. Any changes in its use must be approved by the Department for Local Government in writing.

Amendments: Any changes in the scope of the project, as outlined in this Agreement, including cost increases, must be submitted in writing by the Non-Profit (and/or) Participating Party to the Recipient as a request for an award adjustment. Any adjustment granted by the Recipient shall be appended to this Agreement as an amendment.

13. **Copyright:** Except as otherwise provided in the terms and conditions of this contract, the Non-Profit (and/or) Participating Party paid through this contract is free to copyright any books, publications or other copyrightable materials developed in the course of and under this contract. However, the U. S. Department of Housing and Urban Development and DLG reserve a royalty-free, non-exclusive and irrevocable license to reproduce, publish or otherwise use and to authorize others to use, for Federal Government and State Funded Agencies (SFA) purposes:

A. the copyright in any work developed under this contract; and

B. any rights of copyright to which a Non-Profit (and/or) Participating Party purchases ownership with grant support.

The Federal Government's rights and the DLG's rights identified above must be conveyed to the publisher and the language of the publisher's release form must insure the preservation of these rights.

14. **Compliance with Air and Water Acts:** Applicable to construction contracts and related subcontracts exceeding \$100,000: This contract is subject to the requirements of the Clean Air Act, as amended, 42 USC 1857 et seq., the Federal Pollution Control Act, as amended, 33 USC 1251 et seq., and the regulations of the Environmental Protection Agency with respect to 40 CFR Part 15, as amended from time to time.

A. A stipulation by the Contractor that any facility to be utilized in the performance of any nonexempt contract or subcontract is not listed on the List of Violating Facilities, issued by the Environmental Protection Agency (EPA) pursuant to 40 CFR 15.20.

B. Agreement by the Contractor to comply with all the requirements of section 114 of the Clean Air Act, as amended (42 USC 1857c-8-0 and section 308 of the Federal Water Pollution Control Act, as amended (33 USC 1318) relating to inspection, monitoring, entry, reports and information, as well as all other requirements specified in said section 114 and 308, and all regulations and guidelines issued thereunder.

C. A stipulation that as a condition of award of contract prompt notice will be given of any notification received from the Director, Office of Federal Activities, EPA, indicating that a facility utilized or to be utilized for the contract under consideration is to be listed on the EPA list of Violating Facilities.

D. Agreement by the Non-Profit (and/or) Participating Party that he will include or cause to be included the criteria and requirements in paragraph (A) through (D) of this agreement, in every nonexempt subcontract and requiring that the Contractor will take such action as the State may direct as a means of enforcing such provisions.

In no event shall any amount of assistance provided under this agreement be utilized with respect to a facility which has given rise to a conviction under section 113(c)(1) of the Clean Air Act or Section 309(c) of the Federal Water Pollution Control Act.

15. **Subcontracting with Small and Minority Firms, Women's Business Enterprise and Labor Surplus Areas:** It is national policy to award a fair share of contracts to small and minority and women's owned businesses. Accordingly, affirmative steps must be taken to assure that small, minority and women owned businesses are utilized when possible as sources of supplies, equipment, construction and services. Affirmative steps shall include the following:
- A. Including qualified small and minority businesses on solicitation lists;
 - B. Assuring that small, minority and women owned businesses are solicited whenever they are potential sources;
 - C. Whenever economically feasible, dividing total requirements into smaller tasks or quantities so as to permit maximum small, minority and women owned businesses' participation;
 - D. Where the requirement permits, establishing delivery schedules which will encourage participation by small and minority businesses; and
 - E. Using the services and assistance of the Small Business Administration, the Kentucky Cabinet for Economic Development, the U. S. Department of Commerce and the Community Services Administration as required.
16. **Confidential Information:** Any reports, information, data, etc., given to, prepared by, or assembled by the Non-Profit (and/or) Participating Party under this agreement, which DLG requests to be kept confidential, shall not be made available to any individual or organization by the Non-Profit (and/or) Participating Party without prior written approval of DLG.
17. **Prime Non-Profit (and/or) Participating Party Responsibilities:** The Non-Profit (and/or) Participating Party is required to assume sole responsibility for the complete effort and enforcement of laws and regulations under this agreement. The Recipient will consider the Non-Profit (and/or) Participating Party to be the sole point of contact with regard to contractual matters.
18. **Subcontracting:** If any part of the work covered by this agreement is to be subcontracted, the Non-Profit (and/or) Participating Party shall identify the subcontracting entity and the contractual arrangements made therewith to the Recipient. All subcontracts must be approved by the Recipient to insure they are not debarred or

suspended by the Federal or State Government and to insure the Recipient understands the arrangements.

19. **Legal Services:** No attorney-at-law shall be engaged through the use of any funds provided under this contract in suits against the State, Local Public Body or any political subdivision.
20. **Political Activity:** None of the funds, materials, property or services provided directly or indirectly under this contract shall be used for any partisan political activity, or to further the election or defeat of any candidate for public office or otherwise in violation of the provisions of the "Hatch" Act.
21. **Reporting of Fraudulent Activity:** If at any time during the term of this agreement anyone has reason to believe by whatever means that, under this or any other program administered by DLG, a recipient of funds has improperly or fraudulently applied for or received benefits, monies or services pursuant to this or any other contract, such information shall be immediately reported to the appropriate authorities.
22. **Age Discrimination:** In accordance with 45 CFR, parts 90 and 91, the Non-Profit (and/or) Participating Party agrees there shall be no bias or age discrimination as to benefits and participation under this agreement.
23. **Section 109 of the Housing and Community Development Act of 1974:** No person in the United States shall on the grounds of race, color, national origin or sex be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity funded in whole or in part pursuant to agreement.
24. **Section 3, Compliance and Provision of Training, Employment and Business Opportunities:** The work to be performed under this contract is subject to the requirements of Section 3 of the Housing and Urban Development Act of 1968, as amended, 12 USC 1701u. The purpose of Section 3 is to ensure that employment and other economic opportunities generated by HUD assistance or HUD-assisted projects covered by Section 3 shall, to the greatest extent feasible be directed to low and very low income persons, particularly persons who are recipients of HUD assistance for housing.

The parties to this said contract agree to comply with HUD's regulations in 24 CFR Part 135, which implement Section 3. As evidenced by their execution of this contract, the parties to this contract certify that they are under no contractual or other impediment that would prevent them from complying with the Part 135 regulations.

The contractor agrees to send to each labor organization or representative of workers with which the contractor has a collective bargaining agreement or other understanding, if any, a notice advising the labor organization or workers' representative of the contractor's commitments under this Section 3 clause and will post copies of the notice in conspicuous places at the work site where both employees and applicants for training and employment positions can see the notice. The notice shall describe the Section 3 preference, shall set forth minimum number and job titles subject to hire, availability of

apprenticeship and training positions, the qualifications for each; and the name and location of the person(s) taking applications for each of the positions; and the anticipated date the work shall begin.

The contractor agrees to include this Section 3 clause in every subcontract subject to compliance with regulations in 24 CFR Part 135, and agrees to take appropriate action, as provided in an applicable provision of the subcontract or in this Section 3 clause, upon a finding that the subcontractor is in violation of the regulations in 24 CFR Part 135. The contractor will not subcontract with any subcontractor where the contractor has notice or knowledge that the subcontractor has been found in violation of the regulations in 24 CFR Part 135.

The contractor will certify that any vacant employment positions including training positions, that are filled (1) after the contractor is selected but before the contract is executed, and (2) with persons other than those to whom the regulations of 24 CFR Part 135 require employment opportunities to be directed, were not filled to circumvent the contractor's obligations under 24 CFR Part 135.

The contractor agrees to submit such reports as required to document compliance with Part 135. Noncompliance with the regulations in 24 CFR Part 135 may result in sanctions, termination of this contract for default, and debarment or suspension from future HUD assisted contracts.

25. **Section 504 of the Rehabilitation Act of 1973:** The Non-Profit (and/or) Participating Party agrees that no otherwise qualified individual with disabilities shall, solely by reason of his disability, be denied the benefits, or be subjected to discrimination including discrimination in employment, in any program or activity that receives the benefits from the Federal financial assistance.
26. **Lead-Based Paint:** The construction or rehabilitation of residential structures with assistance provided under this Agreement is subject to the HUD Lead-Based Paint regulations, 24 CFR Part 35. Any grants or loans made by the Non-Profit (and/or) Participating Party for the rehabilitation of residential structures with assistance provided under this Agreement shall be made subject to the provisions for the elimination of lead-based paint hazards under subpart B of said regulations, and the Non-Profit (and/or) Participating Party shall be responsible for the inspections and certifications required under section 35.14(f) thereof.
27. **Debarment Certification:** The Non-Profit (and/or) Participating Party must comply with Federal Debarment and Suspension regulations prior to entering into a financial agreement for any transaction as outlined below.

A. Any procurement contract for goods and services, regardless of type, expected to equal or exceed the Federal procurement small purchase threshold (which is \$25,000 and is cumulative amount from all Federal funding sources).

B. Any procurement contract for goods and services, regardless of amount, under which the Non-Profit (and/or) Participating Party will have a critical influence on or substantive control over the transaction.

28. **Equal Employment Opportunity:** In carrying out the program, the Non-Profit (and/or) Participating Party shall not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The Non-Profit (and/or) Participating Party must take affirmative action to insure that applicants for employment are employed, and that employees are treated during employment, without regard to their race, color, religion, sex, sexual orientation, gender identity, or national origin. Such action shall include, but not be limited to, the following: employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The Non-Profit (and/or) Participating Party shall post in conspicuous places, available to employees and applicants for employment, notices to be provided by the Government setting forth the provisions of this non-discrimination clause. The Non-Profit (and/or) Participating Party shall state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin. The Non-Profit (and/or) Participating Party shall incorporate the foregoing requirements of this paragraph in all of its subcontracts for project or program.

The Non-Profit (and/or) Participating Party will, in all solicitations or advertisements for employees by or on behalf of the Non-Profit (and/or) Participating Party, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.

The Non-Profit (and/or) Participating Party will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided by the State advising the said labor union or workers' representatives of the Non-Profit (and/or) Participating Party's commitment under this Section and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

The Non-Profit (and/or) Participating Party will comply with all provisions of Executive Order 11246 of September 24, 1965, as amended, and of the rules, regulations, and relevant orders of the State. The Non-Profit (and/or) Participating Party will furnish all information and reports required by Executive Order 11246 of September 24, 1965, as amended, and by the rules, regulations, and orders of the State, or pursuant thereto, and will permit access to its books, records, and accounts by HUD and the State for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

In the event of the Non-Profit (and/or) Participating Party's noncompliance with the nondiscrimination clauses of this contract or with any of such rules, regulations, or orders, this contract may be canceled, terminated or suspended in whole or in part and the Non-Profit (and/or) Participating Party may be declared ineligible for further Government contracts or Federally assisted construction contract procedures authorized in Executive

Order 11246 of September 24, 1965, as amended, or by rules, regulations, or order of the State, or as otherwise provided by law.

The Non-Profit (and/or) Participating Party will include the above provisions in every subcontract or purchase order unless exempted by rules, regulations, or orders of the State issued pursuant to section 204 of Executive Order 11246 of September 25, 1965, as amended, so that such provisions will be binding upon each Non-Profit (and/or) Participating Party or vendor. The Non-Profit (and/or) Participating Party will take such action with respect to any subcontract or purchase order as DLG may direct as a means of enforcing such provisions, including sanctions for noncompliance:

Provided, however, that in the event a Non-Profit (and/or) Participating Party becomes involved in, or is threatened with, litigation with an entity as a result of such direction by DLG, the Non-Profit (and/or) Participating Party may request DLG to enter into such litigation to protect the interest of the State.

The Non-Profit (and/or) Participating Party further agrees that it will be bound by the above equal opportunity clause with respect to its own employment practices when it participates in Federally assisted construction work.

29. **Federal Labor Standards Provisions:** The project or program to which the work covered by this agreement pertains is being assisted by the United States of America and the Federal Labor Standards Provisions are applicable to any construction contracts in excess of \$2,000 or residential rehabilitation contracts involving more than eight units entered into by the Non-Profit (and/or) Participating Party. The Non-Profit (and/or) Participating Party shall include the required Federal language covering Davis-Bacon, Copeland Anti Kickback, and Contract work and Safety Standard Acts in any such contract.

**LEGAL BINDING AGREEMENT
EXHIBIT II
MORTGAGE TERMS**

PRINCIPAL	\$1,000,000
PERIOD	20 years
INTEREST RATE	0%
FORGIVENESS	Ability to be forgiven after 20 years
OTHER	Any other terms as required by DLG from time to time

DRAFT

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
REVOLVING FUND GUIDELINES

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the **Revolving Fund Guidelines** attached hereto be and hereby are adopted for the purpose of the Project, and the County Judge/Executive and his designees be and hereby are authorized and directed to take all further action deemed necessary or desirable in connection therewith; and

RESOLVED FURTHER, that any funds recovered/recaptured by the Oldham County Fiscal Court shall be deposited in a Revolving Fund and be used in accordance with Program Income/Miscellaneous Revenue regulations promulgated in 24 CFR 570.489(e); the Oldham County Fiscal Court shall establish the use of the recovered funds to assist low- and moderate-income housing needs in Oldham County; and net operating income from the Project will be deposited in an operating reserve by Pillar, which will provide annual reports to the Oldham County Fiscal Court regarding its use.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

Community Development Block Grant

Oldham County Fiscal Court Housing Revolving Fund Guidelines

I. Goals and Objectives

Goals of the Oldham County Fiscal Court are to: 1) increase affordable housing opportunities for residents in Oldham County; 2) eliminate blighting conditions within Oldham County; and 3) improve Oldham County's infrastructure which benefits low- and moderate-income (LMI) families. The Oldham County Fiscal Court Housing Revolving Fund represents one effort to achieve these goals.

Objectives of the Oldham County Fiscal Court are to: 1) promote the provision of decent, safe, sanitary and affordable housing to Oldham County residents; 2) acquire and clear blighted housing structures and encourage rehabilitation of substandard housing in Oldham County; and 3) improve the water/sewer needs of LMI households and make sidewalk, street and drainage repairs/improvements in neighborhood areas.

Since all or a portion of the funds in this program were made available through the Kentucky Community Development Block Grant Program (KCDBG), close adherence to requirements of that program and specific grant agreement(s) with the Commonwealth of Kentucky as required. Special attention must be given when funds to be used were received by the Oldham County Fiscal Court prior to closeout. Such federal requirements as Davis-Bacon Act, Uniform Relocation Act (URA), and LMI provisions including one-for-one LMI replacement housing may apply.

The following policies and procedures are adopted to ensure a consistent and thorough review of all proposals in order to achieve the above objectives.

II. Organization

A. Establishment of Revolving Fund Board

The Oldham County Fiscal Court will establish a Revolving Fund Board composed of three (3) members. The Revolving Fund Board will be selected to include area leaders and community representatives. Members will be appointed by the County Judge/Executive with the approval of the Oldham County Fiscal Court. One member of the Board is to consist of an Oldham County Fiscal Court member.

The Revolving Fund Board will establish, evaluate and carry out policy, establish conditions and recommend disposition of funds under the Revolving Fund. The Revolving Fund Board shall meet on an as needed basis. At least one (1) member and the County Judge/Executive or the Fiscal Court member must be present to make funding decisions or recommendations regarding requests.

The County Judge/Executive shall serve as “Fund Manager” and will act as liaison between potential borrowers and the Revolving Fund Board. The County Judge/Executive may delegate his or her authority or request assistance as is needed.

B. Technical and Managerial Assistance

Due to their involvement with and knowledge of CDBG procedures, the Area Development District may provide technical and managerial assistance and administrative support to the Revolving Fund Board and potential applicants. Technical assistance shall consist of working with applicants and other participants to develop a feasible project, seeking additional revenue sources that may be available, and reviewing proposals and advising the Revolving Fund Board and Fund Manager.

C. Monitoring of Projects

The Fund Manager and/or a member of the Revolving Fund Board will conduct monitoring visits of each project to determine if there are any problems that jeopardize the project. The Fund Manager will inform the Revolving Fund Board about project status and to ensure that proper monitoring visits were conducted and documented.

III. Eligibility Requirement

A. Eligible Applicant

The applicant must live within Oldham County and have housing needs that are consistent with the goals and objectives of the Revolving Fund.

B. Eligible Activities/Projects

Activities that promote decent, safe, sanitary and affordable housing for Oldham County.

- a. Acquisition and/or clearance of deteriorated housing stock
- b. Disposition of acquired properties
- c. Property acquisition for the development of new housing
- d. Reconstruction of replacement housing
- e. Rehabilitation of sub-standard housing
- f. Energy efficiency improvements
- g. Handicapped accessibility improvements
- h. Water and sewer service lines
- i. Septic system and well upgrades/installments
- j. Sidewalk, street and drainage repairs/improvements

C. Ineligible Project Activities

- a. Non-housing activities
- b. Activities outside of the county limits

- c. Activities that are not in conformance with the Conflict of Interest requirements of Oldham County

D. Eligible Costs

Loans and grants made under the Revolving Fund can be used to finance all costs associated with the provision of Eligible Project Activities.

E. Ineligible Costs

General Government expenses not related to the Revolving Fund.

III. Selection and Approval of Projects

A. Application Review and Evaluation

Upon completion of the Revolving Fund full application, a member of the Revolving Fund Board will conduct an on-site inspection of the project area to determine if the needs are consistent with the goals and objectives of the Revolving Fund. The Board member will submit his or her recommendation for approval or disapproval and the basis for such recommendation to the full Board. The Revolving Fund Board shall then make its written recommendations to the Oldham County Fiscal Court to approve or deny the project.

B. Fund Board Approval

The Fund Manager shall submit a copy of the Approval for Use Request to the Kentucky Department of Local Government for all projects in which “program income” funds are being utilized. DLG will assure project eligibility and national objective criteria and will respond within fifteen (15) days of receipt. Upon final approval, the Fund Manager can request to draw down funds from the Revolving Fund’s bank to assist the applicant.

C. Other Statement of Assurances

All assurances as specified in KCDBG regulations shall be agreed to, by the user, in order to receive funds. No application shall be approved unless the Statement of Assurances is properly signed.

National Objective Criteria

Since the funds that help fund this Revolving Fund come from repayment of loans made from grants received from the KCDBG program, each project activity funded under the Revolving Fund program may be required to meet at least one of the three National Objectives identified in Title 42, Chapter 69 of the Housing and Community Development Act, hereafter referred to as the Act (Section 5305(a)(2)).

The three objectives are:

1. Benefit to low- and moderate-income persons.
2. Prevent or eliminate slums or blight.
3. Meet community development needs having a particular urgency.

Administrative Fees

Up to 20% of the repayment may be used for administrative purposes related to administration of the Revolving Fund.

* * *

This Document being formally adopted this ____ day of _____, 2026.

Oldham County Fiscal Court

Honorable David Voegle
County Judge/Executive

Commonwealth of Kentucky
County of Oldham

Subscribed; sworn to and acknowledged before me by David Voegle, County Judge/Executive, by and through its resolution on this the ____ day of _____, 2026.

My Commission expires: _____

Notary Public

KENTUCKY COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAM

AUTHORIZED SIGNATURE FORM

Name/Address of Recipient	Grant Agreement Number

AUTHORIZED SIGNATURES FOR REQUEST FOR PAYMENT

Typed Name and Signature	Typed Name and Signature
David Voegelé Oldham County Judge/Executive	<u>For State Use Only</u> APPROVED:
Date and Signature of Chief Executive Officer	Date and Signature Department for Local Government

Department for Local Government

Direct Electronic Transfer of Funds

The Haven Ministries, Inc. hereby authorizes the State Treasurer to transfer funds from the Kentucky Department for Local Government by electronic transfer. Such transfers shall only be made to the depository and account (as noted below) designated for the receipt of Community Development Block Grant funds for the project listed below.

Community and Project Information

City or County Name Oldham County Fiscal Court

Federal Tax ID Number 61-6013124

Project Title Pillar Crestwood Site Work and Housing Project

CDBG Project Number 25-026

Depository Information

Name of Bank _____

Address _____

Phone Number _____

Contact Person at Depository Bank _____

ACH Routing and Transmit
Number of Depository Bank _____

Account Number in which CDBG
funds are to be deposited _____

Signed Finance Officer _____

Printed Name Finance Officer Patrick Meador

Title Oldham County Treasurer

Date / 26 Contact Number 502-222-9357

Signed Mayor/Judge Executive _____

Printed Name Mayor/Judge Executive David Voegelé, Oldham County Judge/Executive

Note: ALL fields *must* be completed *and* a voided check with all important information included attached

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
FAIR HOUSING RESOLUTION

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the **Fair Housing Resolution** attached hereto be and hereby is adopted for the purpose of the Project, and the County Judge/Executive and his designees be and hereby are authorized and directed to take all further action deemed necessary or desirable in connection therewith.

So resolved this ____ day of _____, 2026.

Honorable David Voegelé
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

Fair Housing Resolution

LET IT BE KNOWN TO ALL CLIENTS AND EMPLOYEES OF Oldham County Fiscal Court (the "County") that discrimination in the sale, rental, leasing, financing of housing or land to be used for construction of housing or in the provision of brokerage services because of race, color, religion, sex or national origin is prohibited by Title VIII of the 1968 Civil Rights Act (Federal Fair Housing Law).

It is the policy of the County to implement programs to ensure equal opportunity in housing for all persons regardless of race, color, religion, sex or national origin. The Fair Housing Amendments Act of 1988 expanded coverage to include disabled persons and families with children and HUD 2012 regulations expanded coverage to sexual orientation or gender identity. Therefore, the County does hereby pass the following Resolution.

BE IT RESOLVED that within available resources the County will assist all persons who feel they have been discriminated against because of race, color, religion, sex, sexual orientation, gender identity, national origin, disability or familial status to seek equity under Federal and state laws by filing a complaint with the U.S. Department of Housing and Urban Development, Office of Fair Housing and Equal Opportunity, Compliance Division.

BE IT FURTHER RESOLVED that the County shall publicize this Resolution and through this publicity shall encourage owners of real estate, developers and builders to become aware of their respective responsibilities and rights under the Federal Fair Housing Law and amendments and any applicable state or local laws or ordinances.

SAID PROGRAM will at a minimum include: (1) making available this policy and other applicable fair housing information through local media and community contacts; (2) distribution of posters, flyers, and other means as necessary that will bring attention of those affected, the knowledge of their respective responsibilities and rights concerning equal opportunity in housing; and (3) follow an analysis of impediments to fair housing choice and actions to mitigate such impediments.

EFFECTIVE DATE

This resolution shall take effect _____, 2026.

Attest

Honorable David Voegelé
Oldham County Judge/Executive

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT
POLICY OF NONDISCRIMINATION ON THE BASIS OF DISABILITY STATUS

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”); and

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the **Policy of Nondiscrimination on the Basis of Disability Status** attached hereto be and hereby is adopted for the purpose of the Project, and the County Judge/Executive and his designees be and hereby are authorized and directed to publish such notice in a newspaper of general circulation and take all further action deemed necessary or desirable in connection therewith.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

PUBLIC NOTICE
POLICY OF NONDISCRIMINATION — SECTION 504

This notice is published pursuant to the requirements of 24 CFR Part 8 Nondiscrimination Based on Handicap in Federally Assisted Programs and Activities of the Department of Housing and Urban Development, as published in the Federal Register on June 2, 1988. Section 8.4 prohibits discrimination against qualified individuals because of their handicap status.

Oldham County Fiscal Court advises the public, employees and job applicants that it does not discriminate on the basis of handicapped status in admission or access to, or treatment or employment in its programs and activities.

Oldham County Fiscal Court has designated the following person as the contact to coordinate efforts to comply with this requirement. Inquiries should be directed to:

Name: Tina Schaaf, PHR, Human Resource Director
Office: Human Resources Department
Address: 100 W. Jefferson Street, La Grange, KY 40031
Phone Number: 502-222-9357
Hours: M-F 8:00 AM – 4:30 PM ET / 7:00 AM – 3:30 PM CT

Americans with Disability Act Contacts:

Ky Career Center Blind Services Division 1-877-KYBLIND

<https://kcc.ky.gov/Vocational-Rehabilitation/seeking-services/Blind-Services/Pages/Blind-Services-Division.aspx>

American Printing House 1-800-223-1839 www.aph.org

Ky Commission on the Deaf and Hard of Hearing 1-800-372-2907 www.kcdhh.org

Ky Dept of Professional Licensing Interpreter Directory http://oop.ky.gov/Public_Dir.aspx

Ky Relay 711; TTY: 1-800-648-6056; Voice: 1-800-648-6057; Speech-to-Speech: 1-888-244-6111

Equal Opportunity Housing

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
SECTION 504 MATTERS

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”);

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below; and

WHEREAS, Section 504 of the Rehabilitation Act of 1973 (“Section 504”) provides that no qualified individual with handicaps shall, solely on the basis of handicap, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any program or activity that receives federal financial assistance from U.S. Department of Housing and Urban Development;

NOW THEREFORE BE IT RESOLVED, that the designation of Tina Schaaf as a responsible employee to coordinate Section 504 and related compliance efforts, and her identification as Section 504 Coordinator in all written notices, be and hereby is authorized and approved;

RESOLVED FURTHER, that, as required by Exhibit D to the Grant Agreement, the completion of a **Section 504 Self-Evaluation**, instructions for which are attached hereto, relative to all public use buildings within Oldham County currently owned or maintained by Oldham County, by a committee appointed by the County Judge/Executive or his designee(s), be and hereby is authorized and approved;

RESOLVED FURTHER, that, as required by Exhibit D to the Grant Agreement, if structural barriers have been identified during the self-evaluation process and cannot be removed with a nonstructural solution, or structural changes to facilities are needed to achieve program accessibility, the completion of a **Section 504 Transition Plan**, instructions for which are attached hereto, be and hereby is authorized and approved, and such plan shall be made available for public review and comment; and

RESOLVED FURTHER, that, for the purpose of the CDBG and the Project, the **Grievance Procedure for Complaints Relating to Suspected Allegations of Discrimination on the Basis of Handicapped Status** in the form attached here to be and hereby is adopted, authorized, and approved.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

Community Development Block Grant (CDBG) Section 504 Requirement

Section 504

Section 504 of the Rehabilitation Act of 1973 provides that no qualified individual with handicaps shall, solely on the basis of handicap, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any program or activity that receives federal financial assistance from HUD.

Self-Evaluation

DLG requires each grantee to conduct a Section 504 self-evaluation of all of its facilities, programs, services, and activities to determine if they are programmatically and physically accessible to persons with disabilities. See attached form. If a grantee has already performed a self-evaluation, a new one is not required, unless facilities have been altered.

Grantees should involve persons with disabilities in the self-evaluation.

While performing the self-evaluation, grantees should conduct a careful inspection of the following to determine if they are free from discriminatory effects and practices:

- ☐ Employment and personnel policies and practices;
- ☐ Programs and activities;
- ☐ Benefits and service delivery; and
- ☐ Contractual agreements.

Tip: Conduct a “walk-through” of the process required for participation in the service or program to assess its accessibility. Analyze the physical path traveled, as well as the administrative requirements, service delivery, eligibility criteria, and application procedures.

In the course of the self-evaluation, if the grantee identifies any policies and practices that are found to be discriminatory or contrary to Section 504 requirements, it must take steps to remedy the discrimination.

Transition Plan

If structural barriers are identified during the self-evaluation and cannot be removed with a nonstructural solution, a transition plan must be completed and made available for public review and comment. See the attached form.

The grantee is not required to make every part of an existing facility accessible if that is not structurally possible, but it must address how persons with disabilities will be assured access. The transition plan must involve persons with disabilities and/or representative organizations.

SECTION 504
SELF-EVALUATION

GENERAL REQUIREMENTS

- A self-evaluation must be prepared by the grantee in consultation with individuals with disabilities or organizations representing them.
- Recipients with 15 or more employees must keep on file for at least five years:
 - A list of interested persons consulted;
 - A description of areas examined and any problems identified; and
 - A description of modifications made and remedial steps taken.
- The self-evaluation and transition plans must be dated.

ELEMENTS

- Evaluation of current policies and practices relative to the 504 regulations.
- Modification of any policies and practices that do not meet the 504 requirements.
- Corrective action to remedy any discrimination found.

AREAS TO BE EVALUATED (All areas listed below may not apply)

- Buildings or facilities for physical accessibility.
- Program outreach and communication.
- Eligibility and admission criteria and practice.
- Distribution and occupancy policy and practice.
- Percentage of accessible units.
- Employment (including pre-employment).
- Complaint processing procedures.

SECTION 504 CHECKLIST

- I. A. TDD (Telecommunications Device for the Deaf) Installed. Number: _____ Yes ____ No ____
 B. TDD# communicated to the public. Yes ____ No ____
 C. TDD# included on all correspondence. Yes ____ No ____
- II. A. Self-Evaluation Checklist Yes ____ No ____
 B. Handicapped groups/individuals involved. Yes ____ No ____
 List: _____

- C. Areas Evaluated: _____

- III. Transition Plan for Structural changes/time change for compliance
 A. Includes schedule for implementation. Yes ____ No ____
 B. Includes name of person responsible for implementation. Yes ____ No ____
 C. Includes persons/groups who assisted. Yes ____ No ____
 List: _____

- D. Date Adopted _____
 E. Are facilities now accessible. Yes ____ No ____
- IV. Public Notice (15 or more employees)
 (Policy of Nondiscrimination)
- A. Media Name _____

- B. Non-discrimination statement included. Yes ____ No ____
 C. 504 Coordinator identified. Name: _____
 D. Notice communicated to visually or hearing impaired. Yes ____ No ____
 Explain Response: _____

- V. Grievance Procedure (15 or more employees)
- A grievance procedure for disabled persons (employees or citizens) as part of the personnel policies. Yes ____ No ____

Are structural changes to facilities are needed to achieve program accessibility?

Conducted by: _____

____ No: a Transition Plan is not mandatory.
 ____ Yes: a Transition Plan is mandatory. See form.

Name/title: _____

Date: _____

**SELF-EVALUATION FOR COMPLIANCE WITH SECTION 504
FEDERALLY-CONDUCTED PROGRAMS**

I. Introduction

The U.S. Department of Housing and Urban Development (HUD) evaluates its own activities for compliance with the 1978 amendments to Section 504, which extend coverage to any program or activity conducted by an Executive Agency. What follows is a self-evaluation tool that grantees, subrecipients and developers may use to determine their current level of compliance. It may also be used to identify areas of potential non-compliance that must be addressed.

A. Office/Program to be evaluated:

Name: Oldham County Fiscal Court

Address: 100 West Jefferson Street

La Grange, KY 40031

B. Individual completing evaluation:

Name: _____

Title: _____

Date: _____

C. Disabled individual(s) assisting in the completion of the self-evaluation:

Note: The person(s) assisting in the completion of the self-evaluation may be a person with an actual disability or a person affiliated with an agency that represents or is an advocate for persons with disabilities.

Name(s): _____

Title: _____

Organization: _____

Address: _____

II. Administrative Practices

A. Staff information:

List steps to be taken to ensure that all staff involved in any aspect of this program (e.g., recruitment, admission, testing, public information, the conduct of the program, the provision of any services or benefits, etc.) are informed periodically of, and understand fully, your policy of nondiscrimination on the basis of disability.

1. Do your organization's policies include a grievance procedure for persons with disabilities (employees and/or the general public)?

No ☐ Yes ☐

Describe:

B. Contracts, agreements and subgrants (e.g., housing management agencies, hotels, subgrantees, educational institutions, public meeting facilities, computer services, printing services, etc.)

1. Are entities with which you hold contracts, agreements, and/or subgrants aware of your policy of nondiscrimination on the basis of disability?

No ☐ Yes ☐

How?

If yes, attach a list of these entities, and the type(s) of service(s) performed, to this form.

2. Do you require these entities to sign an "assurance of compliance?"

No ☐ Yes ☐

3. Have these entities been required to complete a self-evaluation of the programs and activities they conduct for you?

No ☐ Yes ☐

III. Recruitment, Advertisement and Public Information

A. Do you engage in any of the following kinds of activities to recruit program participants or otherwise inform persons about the services provided?

	Yes	No
• Oral presentations/orientations	☐	☐
• Printed recruitment materials	☐	☐
• Printed informational materials	☐	☐
• Advertisements (radio, newspaper, etc.)	☐	☐

B. Do all materials and advertisements include a notice that you do not discriminate against persons with disabilities?

No ☐ Yes ☐

C. Is the general public notified of the existence and location of services, activities and facilities that are accessible to persons with disabilities?

No ☐ Yes ☐

How? _____

D. If “outside” persons or organizations are involved in your recruitment, advertisement or information efforts, are they informed of your nondiscrimination policy?

No ☐ Yes ☐

How? _____

E. Do all public information materials “pass” the Printed Program Announcements Checklist (see Attachment 1)?

No ☐ Yes ☐

If no, list steps which need to be taken to ensure that all materials are modified accordingly:

F. Are public information materials usable by persons with different kinds of disabilities? Are they being sent to or otherwise reaching persons with varying disabilities? In completing this section, use the Information Dissemination Checklist (see Attachment 2). List below the kinds of materials which are not accessible, the population they are not accessible to, and the steps needed to make them accessible.

Media Type	Target Population	Problem/Solution
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

G. Are articles on the accomplishments of participants with disabilities publicized in the agency's publication?

No ☐ Yes ☐

How? _____

H. Are organizations representing persons with disabilities contacted for advice, technical assistance and referrals?

No ☐ Yes ☐

How? _____

IV. Program Accessibility

A. Are inquiries made regarding disability status in order to make accommodations for persons with disabilities?

No ☐ Yes ☐

B. Is the information requested voluntarily, not used to affect any disabled person adversely, and kept confidential?

No ☐ Yes ☐

C. Is there an orientation program for new participants?

No ☐ Yes ☐

D. Have steps been taken to ensure that persons with visual and hearing impairments can understand the information, communicate with the staff and use the written materials provided during the orientation?

No ☐ Yes ☐

Describe: _____

E. Do you have a TDD (Telecommunications Device for the Deaf) installed?
No ☐ Yes ☐

If yes, what is the number? _____

Is the TDD number communicated to the public?	No ☐	Yes ☐
Is the TDD number included on all correspondence?	No ☐	Yes ☐

F. List the specific activities that comprise your program: (e.g., orientation, intake, classroom training, meetings to provide information on HUD programs to the public, such as meetings to accept bids, etc.):

_____	_____
_____	_____
_____	_____
_____	_____

G. For each activity listed above, list those that are, or have the potential to be, inaccessible to persons with disabilities:

Activity	Reason
_____	_____
_____	_____
_____	_____
_____	_____

H. Describe steps to be taken to attain accessibility of those activities identified in "G" above, e.g., provision of auxiliary aids, use of alternative materials, special tools or equipment, modification of equipment, renovation of facility, moving program to another facility, etc.

Activity	Reason
_____	_____
_____	_____
_____	_____
_____	_____

I. Has a method been implemented for soliciting voluntary indications of disability status and requests for accommodations, i.e., channels for a disabled person to bring his or her disability to the attention of management?

No ☐ Yes ☐

Describe: _____

J. From the following list of possible reasonable accommodations, check those which you would be willing to make for disabled program participants:

- Modifying written materials ☐
- Modifying meeting rooms ☐
- Making facilities accessible ☐
- Adjusting work schedule ☐
- Providing assistive devices ☐
- Providing readers and interpreters ☐
- Adopting flexible policies ☐
- Reassigning and retraining participants ☐
- Eliminating transportation barriers ☐
- Others, depending on the person's particular disability ☐

V. Facilities

A. List all facilities, or portions of facilities, used to conduct your program.

Facility	Address
_____	_____
_____	_____
_____	_____
_____	_____

B. The Architectural Barriers Act of 1968 U42 U.S.C. 3151-4157 covers buildings owned, leased, or financed in whole or in part by or on behalf of the Federal Government. This means that all of HUD's Regional and Field Offices must comply with the Architectural Barrier Act. The applicable standard is the Uniform Federal Accessibility Standard (UFAS), (24 CFR Part 40). Buildings which are not HUD's own buildings, but which are being contemplated for use for a public meeting or training, etc., must be fully accessible but would not necessarily have to conform to the UFAS. Therefore, use the following method when evaluating facilities:

1. Financed by HUD:

Do the survey on-site using the Site Accessibility Checklist (see Attachment 3).

Complete the survey. If any single item on the checklist results in a "no" answer, **the facility will need to be further surveyed to see if the facility conforms to the UFAS.** Please contact DLG.

2. Facility planned for use (such as, for training, conferences, public meetings, etc.). Go on-site and complete the Site Accessibility Checklist (Attachment 3) and the Meeting Logistics Checklist (Attachment 4). Once the survey is completed, if there is any "no" answers, meet with the responsible official at the facility to determine if these deficiencies can be corrected. If yes, have the corrections made before using (contracting with) the facility? If no, the facility would then be unacceptable and an alternative facility would have to be identified, surveyed, and so forth until a satisfactory facility is found.

C. Identify the person or agency who will be responsible for developing and implementing a corrective action plan for the elimination of the barriers identified in "B" (1 and 2) above: (Note: For facilities described in B2, the responsible Official is the person negotiating use of the facility, and if the facility can't or won't correct deficiencies, this person is responsible for securing alternate, acceptable facilities.)

VI. Employment Practices

A.	<u>Recruitment</u>	<u>Yes</u>	<u>No</u>	<u>N/A</u>
1.	Are disabled employees featured in promotional and recruitment advertising?	☐	☐	☐
2.	Are contacts maintained with educational institutions which train persons with disabilities?	☐	☐	☐
3.	Are organizations which represent persons with disabilities contacted for advice, technical assistance and referrals?	☐	☐	☐
4.	Does all recruitment literature indicate that the program does not discriminate on the basis of disability?	☐	☐	☐
B.	<u>Job Vacancies</u>	<u>Yes</u>	<u>No</u>	<u>N/A</u>
1.	Are all vacancy announcements reviewed to ensure that physical, mental and communication requirements are job related and accurately reflect job functions?	☐	☐	☐
1.	Are managers willing to consider reasonable accommodations for the disabilities of otherwise qualified applicants?	☐	☐	☐

PRINTED PROGRAM ANNOUNCEMENTS CHECKLIST

Location

OK

- Are posters placed in physically accessible locations? ☐
- Can small print of posted announcements be read from a wheelchair? ☐
- Can copies of written materials be reasonably obtained by individuals with disabilities? ☐
- Have disability groups been included in the dissemination process? ☐

Printing

- Are all words clearly legible? ☐
- Would color blind individuals be able to distinguish all content? ☐

Graphics

- Are representations of disabled individuals free of patronizing stereotypes? ☐
- Do graphics permit easy reading of content? ☐

Content

- Is all necessary program information included? ☐
- Are procedures for providing program access to disabled individuals stated clearly? ☐
- Is the 504 contact person's name, address and phone number listed? ☐

INFORMATION DISSEMINATION CHECKLIST

	Target Population				
	Hearing Impaired	Visually Impaired	Mobility Impaired	Homebound/ Institution	Mentally Retarded
Print Media (List names as appropriate)					
Brochure					
Circular					
Poster					
Newspaper					
Newsletter					
Magazine					
Broadcast Media (list stations)					
Radio					
Television					
Disability Organizations (list names)					

Note: The goal is to develop a standard dissemination process that provides access to program information for qualified persons with disabilities.

SITE ACCESSIBILITY CHECKLIST

This checklist is intended to be used as a relatively quick and easy guide to determine a building's physical accessibility. Detailed specifications for each area can be found in the Uniform Federal Accessibility Standards (UFAS).

Comments should be made on all "no" answers, and should include alterations that can or will be made, any insurmountable obstacles to accessibility, or other relevant circumstances and considerations.

Parking

Yes**No**

- Does the facility have designated parking spaces for disabled individuals? ☐
- Are spaces of adequate width (13 feet)? ☐
- Are the spaces marked with the universal access symbol? ☐
- Are they near the building's entrance? ☐

Comments: _____

Building Entrance

Yes**No**

- Is the main entryway wheelchair-accessible? (level entry or properly sloped ramp; 32" wide, non-revolving door) ☐
- If not, is there a reasonable alternative entry? ☐
- Is the entry relatively free of obstacles? (clear paths for wheelchair users and blind persons) ☐

Comments: _____

Meeting Rooms**Yes****No**

- Can all rooms to be used for meetings or meals be reached without using steps or escalators?
- If elevator use is required, are the elevators accessible? (36" wide door, 64" deep x 68" wide car, wheelchair-accessible controls, tactile buttons, auditory floor indicators)
- If room changes are required between sessions, are pathways accessible? (36" wide hallways, free of obstacles)
- Are doorways wide enough to accommodate a wheelchair?

☐☐☐☐☐☐☐☐

Comments: _____

Facilities**Yes****No**

- Are restrooms wheelchair-accessible? (adequate floor space for wheelchair; grab bars, paper products, lavatories at proper height; extended faucet handles)
- Are paths to the restrooms accessible?
- Are drinking fountains wheelchair-accessible?
- Can telephones be used from a wheelchair?

☐☐☐☐☐☐☐☐

Comments: _____

MEETING LOGISTICS CHECKLIST

Room Arrangement**Yes****No**

- Are aisles of adequate width and free of obstruction? ☐ ☐
- Does the seating plan provide adequate space for users of wheelchairs, canes or walkers? ☐ ☐
- Have seats near the front been reserved for partially-sighted individuals? ☐ ☐
- Are tables containing informational materials or refreshments accessible? ☐ ☐
- If an interpreter is to be used, is there a clear line of vision for those using the service? ☐ ☐
- Is there a designated “No Smoking” section? ☐ ☐

Meals**Yes****No**

- Can the eating site be reached by disabled individuals with reasonable effort? ☐ ☐
- Has adequate time allowed for getting to and from the site? ☐ ☐
- Have arrangements been made for any special meals? ☐ ☐
- Are large type or Braille menus available? ☐ ☐
- Have restaurant or banquet personnel been notified of special accommodations for disabled individuals? ☐ ☐

Program**Yes****No**

- Have program materials been prepared or other accommodations made for individuals who are visually or hearing impaired? ☐ ☐
- Does the schedule allow adequate time for mobility impaired individuals to change rooms between sessions as needed? ☐ ☐

SECTION 504
THE TRANSITION PLAN

GENERAL REQUIREMENTS

- A Transition Plan is mandatory if structural changes to facilities are needed to achieve program accessibility.
- The Plan must be developed with the assistance of individuals with disabilities or organizations representing them.
- A copy of the plan must be made available for public inspection.

CONTENTS OF THE PLAN

- Identification of the physical obstacles that limit accessibility.
- Detailed description of methods that will be used to make facilities accessible.
- Schedule for each step of the process. All structural changes must be made within six months of project funding.
- Name of the person responsible for implementation of the plan.
- Names of persons or groups who assisted with the plan.

**GRIEVANCE PROCEDURE FOR COMPLAINTS RELATING TO SUSPECTED
ALLEGATIONS OF DISCRIMINATION ON THE BASIS OF HANDICAPPED STATUS
IN OLDHAM COUNTY, KENTUCKY**

Any person (employee or citizen) who believes that he/she has been subjected to discrimination as prohibited by Section 504 of the Rehabilitation Act of 1973 and pursuant regulations at 24 CFR Part 8 published in the Federal Register on June 2, 1988, may personally or by a representative, file a complaint with the County Judge/Executive, Oldham County Fiscal Court, Kentucky. A person who has not personally been subjected to discrimination may also file a complaint.

When any person (employee, citizen or applicant) who believes he/she has been adversely affected by an act or decision by Oldham County Fiscal Court, Kentucky, and that such act or decision was based on handicapped status, he/she will have the right to process a complaint or grievance in accordance with the following procedure.

Step One: An aggrieved person must submit a written statement to the Oldham County Judge/Executive setting forth the nature of the discrimination alleged and facts upon which the allegation is based.

Step Two: The Oldham County Judge/Executive shall contact the complainant no later than fifteen (15) days after receiving the written statement to establish an informal meeting with the objective of resolving the matter informally. However, in no case shall the informal meeting be conducted sooner than five (5) days or more than forty-five (45) days after receiving the written statement.

There shall be prepared a written documentary of the discussions at the informal meeting, which shall be preserved in the records of the Oldham County Fiscal Court.

Step Three: Within fifteen (15) days of the informal meeting, if no decision has been made by the Oldham County Judge/Executive, or the decision of the Oldham County Judge/Executive does not satisfy the complainant, he/she may request a hearing with the Oldham County Fiscal Court by submitting a written request to the Oldham County Judge/Executive.

Step Four: In thus discussing the grievance, the complainant may designate any person of his/her choice to appear with him/her and participate in the discussion. The Oldham County Fiscal Court shall require the Oldham County Judge/Executive to participate in the discussion of the grievance, when it is brought before the Oldham County Fiscal Court. The Oldham County Fiscal Court shall issue a written decision on the matter within fifteen (15) days, and the decision shall be the final procedure for the complainant at the local level.

There shall be prepared a written documentary of the discussion at the hearing, which shall be preserved in the records of Oldham County Fiscal Court, Kentucky.

RESOLUTION NO. 2026 - ____

OLDHAM COUNTY FISCAL COURT

A RESOLUTION AUTHORIZING CERTAIN MATTERS
IN CONNECTION WITH A COMMUNITY DEVELOPMENT BLOCK GRANT —
TITLE VI OF THE CIVIL RIGHTS ACT OF 1964 MATTERS

WHEREAS, Kentucky Department for Local Government (“DLG”) has awarded a Community Development Block Grant (“CDBG”) to the Oldham County Fiscal Court to assist Apple Patch Community, Inc. d/b/a Pillar, a Kentucky nonprofit corporation and Section 501(c)(3) tax-exempt organization (“Pillar”), to construct an apartment complex that will offer residential support to individuals with disabilities, starting with site work on a parcel of real property currently owned by it in Crestwood (the “Project”), in connection with which DLG has issued Grant Agreement #25-026 to be entered into between DLG and the Oldham County Fiscal Court, with an “Effective From” date of August 31, 2026 and a “Contract Amount” of \$1,000,000, as amended from time to time (the “Grant Agreement”);

WHEREAS, the Grant Agreement requires the Oldham County Fiscal Court to authorize, approve, or adopt certain matters as set forth below; and

WHEREAS, Title VI of the Civil Rights Act of 1964 provides that no person in the United States shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance;

NOW THEREFORE BE IT RESOLVED, that, as required by Exhibit D to the Grant Agreement, the completion of the **Civil Rights Title VI Self-Survey** attached hereto by the County Judge/Executive or his designee, and the execution and delivery of the **Title VI – Statement of Assurance** attached hereto by the County Judge/Executive, be and hereby is authorized and approved; and

RESOLVED FURTHER, that the **Title VI Implementation Plan** of DLG dated June 2026 attached hereto, as amended from time to time, be and hereby is adopted as the Oldham County Fiscal Court’s implementation plan under Title VI of the Civil Rights Act of 1964, for the purpose of the Project, and that the Oldham County Fiscal Court acknowledges that it is required to comply with such plan.

So resolved this ____ day of _____, 2026.

Honorable David Voegele
Oldham County Judge/Executive

Attest:

Oldham County Fiscal Court Clerk

Instructions for Compliance with Civil Rights Title VI

The Department for Local Government (DLG) has and will continue to take a proactive approach to fully implement procedures to eliminate discrimination on the basis of race, color or national origin.

In accordance with KRS 344.015, DLG developed a Title VI Implementation Plan. All organizations that receive pass-through federal funding from DLG must comply with this Implementation Plan. To ensure that DLG meets its compliance responsibility, procedures have been established to provide monitoring of Title VI compliance activities and complaint processing in all programs.

To meet the requirements of compliance, your organization has two options. Your organization can adopt the plan created by DLG. To ensure full compliance with DLG's Implementation Plan, the following items **MUST** be retained by the grantee with your completed Civil Rights Title VI Self-Survey:

- Nondiscrimination Policy
- Compliance Assurance, including:
 - A copy of all contracts used to provide direct services to client, and.
 - A copy of all contracts used to assure that subcontractor or vendors are clearly aware of your agency's commitment to Title VI.

NOTE: Please ensure that a local Title VI coordinator is identified in question 5 of the Self-Survey.

In addition to the Self-Survey, your agency must complete the enclosed Statement of Assurance. Full compliance cannot be achieved unless all of these items are included.

Though most organizations have chosen to adopt the DLG plan, your organization may create its own Title VI implementation plan and submit it to DLG for approval. Regardless of which option your organization chooses, you must maintain a copy of Title VI documents for review by the general public and DLG, HUD or its representatives.

If you have questions about Title VI or completing the required documentation, you may contact DLG at 1.800.346.5606.

CIVIL RIGHTS TITLE VI SELF-SURVEY

1. Date of Survey: _____
2. Type of Survey: ☒ Initial ☐ Update ☐ Other: _____
3. Name of Facility/Agency: Oldham County Fiscal Court
Street Address: 100 West Jefferson Street
City, State, Zip: La Grange, KY 40031
County: Oldham
4. Administrative Head: David Voegele
Title: County Judge/Executive
5. Name of Local Title VI Coordinator: Tina Schaaf
Street Address: 100 West Jefferson Street
City, State, Zip: Crestwood, KY 40031
Phone Number: 502-222-9357
6. Advisory Group or Advisory Board:
 - a. What is the racial composition of the advisory group or advisory board?
Total: _____ Number of white: _____ Number of non-white: _____
 - b. How are members selected?

 - c. What is the length of the term for members that serve on the advisory group or board?

7. Nondiscrimination Policies: Does your Agency have a written policy stating that services will be provided to all persons without regard to race, color or national origin?
☐ Yes ☐ No
If yes, attach a copy (**FOR INITIAL SURVEY ONLY**).
8. Posters: Are posters containing Title VI information prominently displayed within the facility?
☐ Yes ☐ No

a. Do these posters show the name of the Local Coordinator to whom complaints should be referred?

☐ Yes ☐ No

9. Records: Are permanent records kept of all Title VI complaints?

☐ Yes ☐ No

10. Complaints: If applicable, describe below any complaints received in this reporting period:

Name of Complainant	Race	Charge	Findings

11. Dissemination: Is Title VI disseminated to your employees and your clients/grantees?

☐ Yes ☐ No

If yes, describe how employees are informed:

a. Are you confident that grantees and clients are clearly aware of their rights under Title VI, including the right to file a complaint?

☐ Yes ☐ No

b. Are new employees clearly informed about their specific responsibilities to clients under Title VI?

☐ Yes ☐ No

c. Are staff members periodically reoriented or refreshed on information detailing their Title VI responsibilities?

☐ Yes ☐ No

If yes, state by whom and how:

12. Compliance Assurance: Do all contracts that provide direct services to clients contain a Title VI statement of compliance?

☐ Yes ☐ No

If yes, attach a copy of the Title VI statement included in such contract (**FOR INITIAL SURVEY ONLY**).

13. Are you confident that each of your subcontractors or vendors, if any, is clearly aware of your agency's commitment to Title VI?

☐ Yes ☐ No

If yes, attach a copy of information used to ensure subcontractors or vendors are aware of your agency's commitment to Title VI (**FOR INITIAL SURVEY ONLY**).

14. Are all physical areas (i.e., exits, waiting rooms, dining areas, restrooms, etc.) provided and used without regard to the race, color or national origin of clients?

☐ Yes ☐ No

If no, identify the areas that are not used jointly and explain why: _____

TITLE VI - STATEMENT OF ASSURANCE

Oldham County Fiscal Court

Name of Grantee

HEREBY AGREES THAT it will comply with Title VI of the Civil Rights Act of 1964 (P.L. 88-352) and all requirements imposed by the Regulations of the U.S. Department of Housing and Urban Development, Department of Justice (28 CFR Parts 42 and 50), Kentucky Department for Local Government (DLG), and any requirements or directives issued pursuant to that Act and the Regulations of DLG, to the effect that, no person in the United States shall, on the ground of race, color or national origin, be excluded from participation in, be denied the benefits of, or be otherwise subject to discrimination under any program or activity for which the Grantee received Federal financial assistance from DLG; and **HEREBY GIVES ASSURANCE THAT** it will immediately take any measures necessary to effectuate this agreement.

THIS ASSURANCE is given in consideration of and for the purpose of obtaining any and all Federal financial assistance, grants and loans of Federal funds, reimbursable expenditures, grants or donations of Federal property and interest in property, details of Federal personnel, the sale and lease of and the permission to use Federal property or interest in such property or the furnishing of services without consideration or at nominal consideration, or at a consideration which is reduced for the purpose of assisting the Grantee, or in recognition of the public interest to be served by such sale, lease, or furnishing of services to the Grantee, or any improvements made with federal financial assistance extended to the Grantee by DLG.

BY ACCEPTING THIS ASSURANCE, the Grantee agrees to compile data, maintain records and submit reports as required to permit effective enforcement of Title VI, and permit authorized DLG personnel during normal working hours to review and copy such records, books and accounts as needed to ascertain compliance with Title VI. If there are any violations of this assurance, DLG shall have the right to seek administrative and/or judicial enforcement of this assurance and suspend future assistance.

This assurance is binding on the Grantee, its successors, transferees and assignees as long as it receives assistance from DLG. In the case of real property, this assurance is binding for as long as the property is used for a purpose for which this assistance was intended. In the case of personal property, this assurance applies for as long as the Grantee retains ownership or possession of the property. The person or persons whose signatures appear below are authorized to sign this assurance on the behalf of the Grantee.

Signature of Grantee's Authorized Official

Date

County Judge/Executive

Title of Authorized Official

Grantee's Address:

100 West Jefferson Street, La Grange, KY 40031

No other funds or benefits may be disbursed under these programs unless this assurance is completed and filed as required by existing regulations.

TITLE VI

IMPLEMENTATION PLAN

Department for Local Government
with the
Kentucky Infrastructure Authority and the
Office of Broadband Development

June 2026

TEAM 
KENTUCKY



DEPARTMENT FOR
LOCAL GOVERNMENT

Matt Sawyers, Commissioner
100 Airport Road, 3rd Floor
Frankfort, Kentucky 40601
(502) 573-2382
dlg.ky.gov

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I. GLOSSARY OF COMMON TERMS

“Beneficiary or recipient” means the individual or organization for whom federal funds are intended.

“Implementation plan” means the Title VI implementation plan developed and maintained by DLG to ensure compliance with 42 U. S. C. § 2000d et. seq. and KRS 344.015.

“Title VI Compliance Officer” means DLG employee designated by the Responsible Official to coordinate all Title VI activities of DLG.

“Responsible Official” means the person identified in Section IV, infra.

II. OVERVIEW

The Department for Local Government (DLG) provides financial help to local governments in the way of grant and loan assistance, and advises local governments in matters of budget, personnel and other items relevant to those entities. As an administrator of federal grant monies, DLG is subject to Title VI of the Civil Rights Act of 1964 (42 U. S. C. § 2000d). Further, DLG has the duty to ensure that all entities receiving federal funds through grant programs administered by DLG are compliant with Title VI.

DLG has adopted a plan to improve access to services for persons with Limited English Proficiency, as required by Executive Order 13166. The provisions of DLG’s LEP plan are incorporated in this plan as though set forth fully herein.

The Kentucky Infrastructure Authority (KIA), and within it, the Office of Broadband Development (OBD), both of which also provide some federal funds to local government entities, are administratively attached to DLG, and hereby adopt DLG’s Title VI plan in its entirety. All references to “DLG” in this plan shall be interpreted to include KIA and OBD.

III. SCOPE OF TITLE VI APPLICABILITY TO PROGRAMS AND ACTIVITIES

DLG affords all individuals the opportunity to benefit from programs it administers.

1. Title VI of the Civil Rights Act of 1964 (42 U. S. C. § 2000d) provides:

No person in the United States shall, on the grounds of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance.

2. The Code of Federal Regulations (CRF) 34 § 100.1, 100.2, and 100.3 implement the provisions of the federal statute.

3. KRS 344.015 § 1(2) states:

Each state agency shall:

A. Develop a Title VI implementation plan by January 1, 1995. If required by Title VI or regulations promulgated thereunder, the implementation plan shall:

a. Be developed with the participation of protected beneficiaries; and

b. Include Title VI implementation plans of any sub-recipients of federal funds through the state agency;

B. Submit a copy of the implementation plan to the Auditor of Public Accounts and the Human Rights Commission; and

C. Submit annual Title VI compliance reports and any implementation plan updates to the Auditor of Public Accounts and the Human Rights Commission by July 1, 1995, and each July 1 thereafter.

The federal statute codified as 42 U. S. C. § 2000d and state statute KRS 344.015 provide the authority for the development of this plan and describe the extent of the authority.

Title VI applies to discriminatory acts based on race, color, or national origin and specifically prohibits the exclusion of individuals or groups from participation in, or enjoying the benefits of, federal programs. Title VI does not provide relief for discrimination based on age, sex, disability, geographic location, or wealth.

IV. RESPONSIBLE OFFICIAL

Whitney Mendiando, General Counsel, has overall responsibility for implementation, compliance and reporting with respect to Title VI. Inquiries related to these activities should be directed to:

Whitney Mendiando
General Counsel
Department for Local Government
100 Airport Road, 3rd Floor
Frankfort, Kentucky 40601
(502) 573-2382
Whitney.Mendiando@ky.gov

V. STATEMENT OF ASSURANCES

DLG and its staff, sub-recipients of federal funds under grants administered by DLG, and all other parties involved with such grants are in compliance with all provisions of Title VI of the Civil Rights Act of 1964 (42 U. S. C. § 2000d).

1. Each sub-recipient of federal funds under grants administered by DLG shall have agreed in writing to adopt DLG's Title VI plan, or
2. If the sub recipient's Title VI plan differs from DLG's plan, the sub-recipient's Title VI plan shall be available for review from the Responsible Official.

VI. PROGRAMS OR ACTIVITIES SUBJECT TO TITLE VI

1. List of Federal Programs:

DLG		
ARC	Federal Grant	DLG administers grants to recipients
CDBG	Federal Block Grant (HUD)	DLG administers grants to recipients
EDA	Federal Grant (EDA)	DLG administers grants to recipients
Flood	Federal Grant	Pass through
LWCF	Federal Grant (DOI)	DLG administers grants to recipients
Forestry	Federal Grant	Pass through
NSP	Federal Grant (HUD)	DLG administers grants to recipients
RTP	Federal Grant (FHWA)	DLG administers grants to recipients
Fund A	Federal Grant	KIA administers loans to recipients
Fund F	Federal Grant	KIA administers loans to recipients
CWP	Federal Grant	KIA administers grants to recipients
BEAD	Federal Grant	OBD administers grants to recipients
BDP	Federal Grant	OBD administers grants to recipients
BDF / CPF	Federal Grant	OBD administers grants to recipients

2. Description of DLG's Federal Programs: In addition to the information below, more detailed descriptions of and information on grant programs, including eligibility requirements, applications and forms, are available on DLG's website at: <https://dlg.ky.gov/grants/federal/Pages/default.aspx>.
 - A. The Appalachian Regional Commission (ARC) is a federal-state economic development agency which assists in the economic development of Appalachia through a diversity of projects in the areas of public infrastructure (water, sewer, solid waste, housing, and telecommunications), human resource development

(education/workforce development, affordable/accessible healthcare, and leadership development) and business/entrepreneurial development.

Potential Beneficiaries Local governments, special districts, and non-profit entities that include Kentucky's 54 most eastern and south-central Counties are eligible to apply for ARC grant dollars. Thirty-eight "distressed" counties also have access to a separate restricted allocation of funds.

B. U.S. Housing and Urban Development's Community Development Block Grant (CDBG) program. Funds are designated for the following program areas:

- Housing
- Community Projects
- Public Services
- Public Facilities
- Economic Development
- Community Emergency Relief Fund
- Recovery Housing Program
- Disaster Recovery

The U.S. Department of Housing and Urban Development (HUD) funded Community Development Block Grant (CDBG) program for DLG to provide assistance to communities for use in revitalizing neighborhoods, expanding affordable housing and economic opportunities, providing infrastructure and/or improving community facilities and services.

Potential Beneficiaries: All cities and counties are eligible to apply for the funds with the exception of Ashland, Bowling Green, Covington, Elizabethtown, Henderson, Hopkinsville, Lexington-Fayette County, Louisville/Jefferson County Metro Government, and Owensboro. These entitlement communities receive CDBG funds directly from HUD.

C. EDA Partnership Planning Grant: This grant is funded by the Economic Development Administration with a match requirement from the State's Local Matching Fund for Joint Funding Administration. The grant funds will be used to provide planning and development services on a local and regional basis to the 15 Area Development Districts (ADDs), and also provides the opportunity for the ADDs to give technical assistance to local units of government in various areas and assists DLG in the conduct of programs deemed essential to the conduct of the mandate.

Potential Beneficiaries: Commonwealth of Kentucky to Kentucky's 15 ADDs.

- D. The Flood Control Receipts program provides “pass-through” funds to counties. The State Local Finance Officer receives a check annually from the US Army Corps of Engineers. The check is deposited with the KY State Treasurer, authorization for payment to Counties is processed and checks are then prepared to send this money to the Counties in accordance with the statement from the federal government which was enclosed with the check.

Potential Beneficiaries: Counties.

- E. The Land and Water Conservation Fund (LWCF) provides federal grant funds to protect parks and natural areas, to acquire land for outdoor recreation and to develop or renovate public outdoor recreation facilities such as campgrounds, picnic areas, sports & playfields, swimming facilities, boating facilities, fishing facilities, trails, natural areas and passive parks.

Potential Beneficiaries: Cities and counties, state and federal agencies are eligible to apply for funding. The maximum grant amount is \$1 million. The minimum amount is \$25,000. There is an 50/50 match requirement.

- F. The National Forest Receipts program provides “pass-through” funds to counties. The State Local Finance Officer receives notice of wire transfer from the US Department of Agriculture Forest Service for funds to be distributed annually to various counties.

Potential Beneficiaries: Counties.

- G. The Neighborhood Stabilization Program was established for the purpose of stabilizing communities that have suffered from foreclosures and abandonment through the purchase and redevelopment. DLG administers these federal funds from the first and third funding rounds, as well as program income through a revolving loan fund for projects meeting federal requirements for NSP projects.

Potential Beneficiaries: Units of local government and nonprofit housing agencies.

- H. The Recreational Trails Program provides grant funds to develop and renovate recreational trails for both motorized and non-motorized use. It does not fund equipment such as mowers and gators.

Potential Beneficiaries: Eligible applicants are city and county governments, state and federal agencies. The maximum grant amount is \$250,000. The minimum amount is \$25,000. There is an 80/20 match requirement.

3. Description of KIA's Federal Programs: In addition to the information below, more detailed descriptions of grant programs, including eligibility requirements and applications forms are available through KIA's website at <https://kia.ky.gov/Pages/index.aspx>.

A. Program: Federally Assisted Wastewater Revolving Loan Program

The Federally Assisted Wastewater Revolving Loan Program also known as the State Revolving Fund ("Fund A") was established in FY88. KIA provides low interest loans for eligible projects that comply with the Clean Water Act. Program funding is provided by annual Federal Capitalization Grants through the U.S. Environmental Protection Agency and the Commonwealth provides state matching monies. Additional program funds are provided through leverage bond proceeds and loan repayments. Supplemental funding was provided through the Infrastructure Investments and Jobs Act ("IIJA", also known as the Bipartisan Infrastructure Law or "BIL") with some funding specifically designated for projects that address Emerging Contaminants.

Potential Beneficiaries: Borrowers must be governmental agencies and may include city and county governments, sanitation districts and water/sewer commissions.

B. Program: Federally Assisted Drinking Water Revolving Loan

The Federally Assisted Drinking Water Revolving Loan Program also known as the State Revolving Fund ("Fund F"), was established in FY97. KIA provides low interest loans for eligible projects that comply with the Safe Drinking Water Act. KIA also provides set-aside funds to 15 area development districts/rural water associations for eligible costs related to the administration of Safe Drinking Water Act initiatives. Program funding is provided by annual Federal Capitalization Grants through the U.S. Environmental Protection Agency and the Commonwealth provides state matching monies. Additional program funds are provided through leverage bond proceeds and loan repayments. Supplemental funding was provided through the Infrastructure Investments and Jobs Act ("IIJA", also known as the Bipartisan Infrastructure Law or "BIL") with some funding specifically designated for projects that address Emerging Contaminants and Lead Service Line Replacement.

Potential Beneficiaries: Borrowers must be governmental agencies that are also public water system providers and may include city and county governments, sanitation districts, water/sewer commissions, and water associations.

C. Program: Cleaner Water Program Grants

The Cleaner Water Program Grants, funded by the American Rescue Plan Act - State Fiscal Recovery Fund, is a grant program to improve drinking water and wastewater facilities. Funding was provided to each county based on a percentage of total state population. Designated funding was specifically reserved to provide water service to unserved customers, to assist utilities under Consent Decree, and to supplement partially funded projects. Program funds must be obligated by December 31, 2024 and spent by December 31, 2026.

Potential Beneficiaries: Governmental agencies which may include city and county governments, sanitation districts, water/sewer commissions, and water associations.

4. The Office of Broadband Development (OBD), which is administratively attached to KIA, was established in 2022 as the central broadband planning and coordination entity to encourage, foster, develop, and improve broadband within the Commonwealth. In addition to the information below, there are more detailed descriptions of the various funding programs, including eligibility requirements, application forms on OBD's website: <https://broadband.ky.gov/Pages/index.aspx>.

A. Program: Broadband Equity Access and Deployment

The Broadband Equity Access and Deployment program, created by the Bipartisan Infrastructure Law, will expand high-speed internet access by funding broadband planning, infrastructure deployment and adoption programs. This program is funded by the National Telecommunications and Information Administration (NTIA) of the U.S. Department of Commerce.

B. Program: Broadband Deployment Fund

The Broadband Deployment Fund, funded by the American Rescue Plan Act under the State and Local Fiscal Recovery Funds, is a competitive grant program designed to provide affordable, reliable broadband service to locations that currently have no internet service, followed by areas that currently lack access to internet at speeds of 25/3 Mbps. The program aims to enable funding to reach rural areas of the Commonwealth that are hardest to serve.

D. Program: Better Internet Program

Kentucky's Better Internet Program Broadband Deployment Grant assists governmental agencies and private sector entities expanding broadband

service in unserved areas of the Commonwealth. The broadband deployment projects funded by this program will result in the construction or improvement of broadband infrastructure providing a minimum speed of 100 megabits (Mbps) per second downstream and 100 megabits per second upstream in areas of the Commonwealth that are currently unserved. This program is funded by the American Rescue Plan Act under the Coronavirus Capital Projects Fund (CPF).

VII. COMPLAINT PROCEDURES

1. COMPLAINT PROCEDURES

A. How a Complaint Shall be Filed

Complaints in relation to alleged discrimination under Title VI of the Civil Rights Act of 1964 may be filed using the forms attached in the Appendix. If an individual refuses to submit a written complaint, the compliance officer shall record the information orally from the individual and shall provide a copy to the individual with a request that the information be confirmed by the complainant.

A complaint may be filed by anyone who believes that DLG has discriminated against a participant, beneficiary, or a class of beneficiaries on the basis of race, color, or national origin.

Complaints must be filed within one hundred eighty (180) days of the activity which prompts the filing of the complaint.

B. Where to File a Complaint

Complaints in relation to alleged discrimination under Title VI of the Civil Rights Act of 1964 may be filed with DLG's Title VI compliance officer.

Trey C. Greenwell
Title VI Compliance Officer
Department for Local Government
100 Airport Road, 3rd Floor
Frankfort, Kentucky 40601
(502) 892-3166
(800) 346-5606
Trey.Greenwell@ky.gov

C. Time Frame within which the Complaint Shall be Processed by Agency; and

Upon receipt of a written complaint, the compliance officer shall review the complaint and shall file, within seven (7) days, a concise statement with the Responsible Official regarding the nature of the complaint and the steps to be taken to investigate or resolve the complaint

D. Withdrawal of a Complaint

A complainant may withdraw a complaint at any time before final action by filing with the compliance officer a written statement of his or her desire to withdraw the complaint.

2. INVESTIGATIONS, REPORT OF FINDINGS, HEARINGS AND APPEALS.

A. Investigations

Upon receipt of the complaint by an individual or at the time the compliance officer becomes independently aware of actions which may constitute a violation of Title VI, the compliance officer shall take necessary action within thirty (30) days to investigate and recommend specific actions to resolve the complaint. A report shall be filed by the compliance officer with the Responsible Official within that period.

B. Report of Findings

The complainant shall be notified in writing of the results of the investigation and any actions taken.

DLG shall attempt to maintain the confidentiality of the complaint and the name of the complainant.

The complainant shall be notified in writing, within 30 days of the resolution of a complaint, by the Responsible Official or the Title VI compliance officer of the resolution of a complaint. A statement of corrective action shall include specific statements of actions to be taken or prohibited actions and shall include a timetable for implementation.

C. Hearings and Appeals

A complainant may file a written appeal from the Responsible Official's resolution of the complaint within 30 days of the receipt of the written notice of

resolution. Appeals shall be directed to the Chief of Staff of the Department for Local Government and shall be set forth in writing. The complainant shall be notified of the final resolution of the complaint within 60 days of the Chief of Staff's receipt of the appeal.

A complainant filing a written appeal may request an in-person hearing before the Chief of Staff of the Department for Local Government. Such request shall be set forth in writing and shall be submitted contemporaneously with the written appeal. The complainant shall be notified of the date, time and place of the hearing within 15 days of DLG's receipt of the request.

VIII. NON-COMPLIANCE AND COMPLIANCE REPORTING

1. DLG shall make every effort to regulate, monitor, review, and report on the federal programs to assure compliance.

As part of DLG's process of monitoring local government entities for compliance with their contractual obligations under grant agreements, DLG endeavors to monitor and review each entity's Title VI plan and their efforts to adhere to that plan or DLG's plan, and to review any Title VI complaints filed with the entity.

2. Upon a finding by DLG of noncompliance, the following actions shall be taken:

A. Processing

The compliance officer shall immediately notify the Responsible Official in writing of the violations held to constitute noncompliance with Title VI and of the steps necessary to correct these violations.

B. Reporting

The compliance officer shall notify the sub-recipient or employee found to be in noncompliance, in writing within 30 days of the compliance officer's report of noncompliance, of the violations and corrective measures necessary to remedy the violations.

C. Resolution

DLG shall attempt to secure voluntary compliance with Title VI. In the event that efforts to secure voluntary compliance are not secured within a reasonable period of time, the compliance officer will notify the Responsible Official, in writing, of the recommended corrective action.

D. Enforcement of Corrective Actions

The Responsible Official shall implement corrective actions within thirty (30) days of receipt and acceptance of the notification of recommended corrective action.

Employees or grant sub-recipients who refuse to voluntarily comply with Title VI or to take corrective actions required by DLG shall face disciplinary action, or in the case of grant sub-recipients, may face termination or suspension of the grant.

E. Monitoring of Programs

DLG shall undertake to periodically monitor all programs funded through federal assistance for those sub-recipients who have been found by DLG to be in non-compliance with Title VI. For a period of three years following a finding of non-compliance, those sub-recipients shall be required to submit an annual report detailing the steps taken by the sub-recipient to ensure compliance with Title VI.

IX. TRAINING

The Title VI implementation plan will be disseminated to all DLG employees along with complaint procedures. Sub-recipients of grants will be notified of the Title VI implementation plan and complaint procedures at the time of any grant award.

DLG may periodically hold Title VI training seminars for its employees, particularly for those individuals responsible for monitoring sub-recipients for Title VI compliance. All new employees shall receive a copy of DLG's Title VI plan as part of the orientation process.

X. GOALS AND EVALUATION PROCEDURES

DLG endeavors to reevaluate its Title VI goals on an annual basis, as part of the process of reviewing the agency's Title VI plan. The plan shall, each year, set forth DLG's current goals and the process for evaluating and revising those goals and the agency's progress towards those goals.

1. Goals

A. Report compliance activities in a timely manner.

- B. Respond to and investigate all complaints within the timeframe and in accordance with the procedures outlined in Section VII.
- C. Obtain information from employees to determine if the plan is adequate to address their needs and the requirements of Title VI.

2. Evaluation of Goals

- A. The Advisory Committee shall, at each meeting, review the agency's goals and its progress towards these goals, and evaluate the effectiveness of the plan's provisions as they relate to these goals.
- B. The Advisory Committee shall, at each meeting, establish a timeline for achievement of goals, and implement a process for monitoring the progress towards these goals.
- C. The Advisory Committee shall, at each meeting, promulgate a written report of the agency's progress towards the identified goals.
- D. The Advisory Committee shall, at each meeting, discuss and evaluate whether any corrective procedures are necessary to bring DLG closer to its goals

XI. PUBLIC NOTIFICATION AND OUTREACH

Three groups of people will receive notification of DLG's Title VI plan, complaint forms, nondiscrimination policy, and programs and services: 1) DLG employees who will receive copies of the implementation plan and the complaint procedures; 2) federal grants applicants and sub-recipients of federal grants who will be notified of Title VI requirements at the time of application and at the time of any grant award; and 3) members of the general public who visit DLG's website or request information via phone, fax, or email.

DLG's Title VI Plan and LEP Policy are available for download on DLG's website, <https://dlg.ky.gov/Pages/index.aspx>. Title VI application forms and checklists for sub-recipients are also available on the website. DLG distributes information regarding Title VI requirements to applicants and sub-recipients in its published Kentucky CDBG Handbook, which is also available for download at kydlgweb.ky.gov and distributed at various training events.

The contact person responsible for distributing these materials is DLG's compliance officer.

XII. RECORDKEEPING AND REPORTING

1. Complaints

- A. The compliance officer will maintain a log of all complaints filed with DLG.
- B. Grant personnel will certify annually that all sub-recipients have been notified of the Title VI implementation plan and complaint procedures.
- C. The compliance officer will maintain copies of standardized complaint forms and will ensure that they are available to the public for use. Forms will be available on DLG's website. The compliance officer shall maintain data sheets, including, the complaint log and performance reports, and copies of all complaint forms filed. The compliance officer shall maintain such records for five years following the final resolution of a complaint.

2. Reporting

- A. Changes in the Title VI implementation plan will be provided to employees and sub-recipients as changes are made.
- B. Changes in the Title VI implementation plan will be forwarded to the State Auditor as changes are made.
- C. Sections VIII and IX of this plan are incorporated herein as part of DLG's recordkeeping and reporting procedures.
- D. No changes were made to sections VIII or IX in the current update.

3. Participation data:

Because DLG acts as an administrator or a pass-through source for sub-recipients of federal funds, the agency is unable to provide data showing the extent to which members of protected parties are participating in the Title VI programs and activities.

DLG endeavors, through project monitoring and education, to ensure that each sub-recipient of federal funds is in full compliance with Title VI, and that each such entity ensures equal participation in programs funded by federal monies to protected parties. Grant personnel will maintain records of all sub-recipients in order that DLG can determine if eligible parties are participating in the grants.

XIII. MINORITY REPRESENTATION

1. Minority representation on Boards/Committees

BOARD/COMMITTEE	MEMBERS	MINORITIES	%
Appalachian Regional Commission**	14	1	7%
Community Development Block Grant Review	5	0	0%
Land and Water Conservation Fund Board	15	0	0%
Kentucky Infrastructure Authority*	11	0	0%
Recreational Trails Program Board	15	0	0%
Title VI Advisory Board	5	2	40%
*Membership is governed by statute. 6 members appointed by Governor. 5 members are ex-officio.			
**13 Governors and the Federal Co-Chair (appointed by the President and confirmed by Senate)			

2. Ensuring minority participation:

DLG continues to attempt to identify and employ qualified minority applicants. Where minority representation in particular areas of the agency is low, DLG endeavors to fill vacant positions with qualified minorities. Whenever a planning or advisory body, such as a board or committee is an integral part of DLG's programs, DLG shall take such steps as are necessary to ensure that minorities are notified of the existence of such bodies and are provided equal opportunity to participate as members. Where members of a board or committee are appointed by DLG and where minorities comprise at least 5% of the affected area or the surrounding community, the facility or agency must appoint a minority representative to serve on the board or committee.

DLG has also created a Title VI advisory committee to review and make recommendations regarding this implementation plan and to identify areas where improvement is needed. The advisory committee is currently composed of five (5) people, including two (2) minorities as defined by Title VI. The advisory committee shall meet at least once each year.

3. The summary of races and national origins for DLG and KIA/OBD includes the following:

RACE/NATIONAL ORIGIN	NUMBER	PERCENTAGE
White Females	39	52.7%
White Males	30	40.5%
Black Females	3	4%
Black Males	1	1.4%
Hispanic Females	1	1.4%
Hispanic Males	0	0
American Indian Females	0	0
American Indian Males	0	0
Asian-American/Pacific Island Females	0	0
Asian-American/Pacific Island Males	0	0
Other Females	0	0
Other Males	0	0
Total	74	100%

XIV. APPENDICES

Appendix 1

**COMMONWEALTH OF KENTUCKY
DEPARTMENT FOR LOCAL GOVERNMENT
100 AIRPORT ROAD, 3RD FLOOR
FRANKFORT, KENTUCKY 40601
PHONE: (502) 573-2382**

**Complaint Under Title VI
The Civil Rights Act of 1964**

To Title VI Coordinator:

I, _____, hereby file an official complaint against
Name of Complainant
_____ located at
Name of Persons or Agency

Date of Alleged Discrimination: _____

Complainant's Address: _____

Complainant's Telephone Number(s): _____

Basis of Complaint (use back of sheet if necessary):

Signed: _____ Date: _____

Appendix 2

**COMMONWEALTH OF KENTUCKY
DEPARTMENT FOR LOCAL GOVERNMENT
100 AIRPORT ROAD, 3RD FLOOR
FRANKFORT, KENTUCKY 40601
PHONE: (502) 573-2382**

Report of Investigation

I, _____, representing the Department for Local Government, have investigated the complaint filed on _____, 20__, by _____ alleging that discrimination occurred which was in violation of the provisions of Title VI of the Federal Civil Rights Act.

The results of the investigation were as follows:

- _____ A. The agency or person was found to be in violation of Title VI.
- _____ B. The agency or person was not found to be in violation of Title VI.
- _____ C. The complainant withdrew the complaint.

A copy of the investigative report is attached.

Withdrawal of Complaint (if applicable) _____

If the agency or person was found to be in violation of Title VI, a brief description of the remedial action taken to assure future compliance follows:

Signed: _____ Date: _____

LANGUAGE ACCESS PLAN

**For Persons with
Limited English Proficiency**

Department for Local Government
with the
Kentucky Infrastructure Authority and the
Office of Broadband Development

June 2026

TEAM 
KENTUCKY



DEPARTMENT FOR
LOCAL GOVERNMENT

Matt Sawyers, Commissioner
100 Airport Road, 3rd Floor
Frankfort, Kentucky 40601
(502) 573-2382
dlg.ky.gov

The Kentucky Department for Local Government (DLG) has established this policy as means to take reasonable steps in ensuring meaningful access to agency services, programs and activities for persons who have limited English proficiency.

The Kentucky Infrastructure Authority (KIA), along with the Office of Broadband Development (OBD), both of which also provide some federal funds to local government entities, are administratively attached to DLG, and hereby adopt DLG's Language Access Plan in its entirety. All references to "DLG" in this plan shall be interpreted to include KIA, and OBD.

Overview

Title VI of the Civil Rights Act of 1964, 42 U.S.C. 2000(d) and Executive Order 13166 require that recipients of federal funds take responsible steps to ensure meaningful access by persons with Limited English Proficiency (LEP persons). DLG is a recipient of federal funds through various federal agencies, is obligated to reduce language barriers that can preclude meaningful access by LEP persons to DLG programs.

Definitions

For the purposes of this plan:

- a. *Grantee* means the Commonwealth of Kentucky.
- b. *Recipient* means the entity designated as a recipient of federal funds through DLG's programs. This means any entity that receives any federal assistance, directly from DLG or from another Recipient. This includes, but is not limited to, any unit of local government, public housing authority, community housing development organization, public or private nonprofit agency, developer, private agency or institution, mortgagor, limited dividend sponsor, builder, property manager, resident management corporation, resident counsel or cooperative association. Recipient also includes any successor, assignee or transferees of any such entity, but does not include any ultimate beneficiary under the respective federal grant program.
- c. *LEP* means Limited English Proficiency. Persons who do not speak English as their primary language and who have a limited ability to read, write, speak or understand English, and may be entitled to language assistance with respect to a particular type of service, benefit or encounter.
- d. *LAP* means Language Access Plan.

Four-Factor Analysis

There are four (4) flexible, fact-dependent factors to be considered in developing language materials and a LEP plan. The following four-factor analysis will serve as the guide for determining which language assistance measures the Commonwealth will undertake to guarantee access to DLG's federally funded programs by LEP persons. Additionally all future recipients of federal assistance are required to use the same four-factor analysis prior to the release of funds.

1. The number or portion of LEP persons eligible to be served or likely encountered through its federally funded programs.
 - a. For determining the LEP population, DLG utilized the U.S. Census Bureau's American Community Survey Language Use data for Language Spoken at Home and English-Speaking Ability by State (See Appendix A).
2. The frequency with which LEP individuals come in contact with the designated federal programs.
 - a. DLG does not provide direct assistance to individuals. All DLG funds are awarded to units of local government, nonprofit agencies, or other entities. As a result, LEP persons rarely come into contact with the respective federal grant program at the state level. However, during periods of public comment, some citizen participation may be directed to the Commonwealth.
3. The nature and importance of the program, activity or service provided by the federal programs.
 - a. DLG does not provide direct assistance to individuals. All DLG funds are awarded to units of local government, nonprofit agencies, or other entities. As a result, LEP persons rarely come into contact with the respective federal grant program at the state level. However, during periods of public comment, some citizen participation may be directed to the Commonwealth.
4. The resources available to the recipient and the cost. There are two types of assistance service – oral (interpretation) and written (translation).
 - a. Given the resources currently available to DLG, the LAP measures appear reasonable.

Types of Language Assistance to be Provided by the Commonwealth

As stated previously, although LEP persons rarely come into contact with DLG programs at the state level, some citizen participation matters are directed to the Commonwealth, particularly during periods of public comment. Therefore, DLG has determined it will make available, upon request, translations of its federal grants action plans and amendments. If there is a consistent need for translations, by populations of LEP Kentuckians, DLG will consider additional appropriate measures to serve the language access needs of those persons.

Requirements for Recipients

Recipients of federal funds awarded or drawn through DLG are required to ensure that meaningful access to services is assured for their LEP clients. Recipients must provide language assistance services that result in timely, accurate, and effective communication at no cost to LEP clients and/or their beneficiaries. Such language assistance services are to be provided in accordance with the guidelines set forth in the U.S. Department for Health and Human Services "Guidance to Federal Financial Assistance Recipients Regarding Title VI Prohibition Against National Origin Discrimination Affecting Limited English Proficient Persons." DLG is available to assist Recipients in identifying and developing appropriate language assistance measures.

If an application is funded, the local government or nonprofit agency will be required to conduct a four-factor analysis, develop a LAP, if necessary, and provide a description of outreach efforts during the Letter of Conditional Commitment stage. Particular attention will be given to plan details for projects including acquisition and/or relocation, housing rehabilitation, and/or water/sewer hookups.

In order to determine if language assistance is required by recipients of federal funds through DLG, all Recipients are required to follow the measures outlined below.

1. Conduct the four-factor analysis prior to advertising for application public hearing.
2. If the four-factor analysis reveals there are 1,000 or more LEP persons, or 5 percent or more LEP persons in the eligible population in the jurisdiction or among current beneficiaries, the applicant will provide appropriate language assistance by:
 - a. Translating all vital documents;
 - b. Posting notices of application public hearings in areas frequented by LEP persons of the threshold population(s) in the language(s) spoken; and

- c. Providing translation services at public hearings, if requested to do so by LEP persons.
3. If the four-factor analysis reveals there are less than 50 LEP persons but 5 percent or more LEP persons in the eligible population in the jurisdiction or among current beneficiaries, the applicant will provide appropriate language assistance by: 1) posting notices of application public hearings in areas frequented by LEP persons of the threshold population(s) in the language(s) spoken; and 3) providing translation services at public hearings, if requested to do so by LEP persons.
4. If the four-factor analysis reveals there are less than 50 LEP persons and less than 5 percent LEP persons in the eligible population in the jurisdiction or among current beneficiaries, the applicant will provide appropriate language assistance by providing translation services at public hearings, if requested to do so by LEP persons.

If a LAP is required, the Recipient's LAP will include certifications that LAP has been developed, adopted, and will be implemented for all CDBG-funded projects. The Recipient's LAP will include an identification of all LEP populations exceeding 1,000 or five percent of total jurisdiction population, whichever is less, the identification of materials to be made available to LEP persons, the means by which the materials will be made available to LEP persons, and the identification of any other translation services which may be necessary. Recipients will be monitored for implementation of their LAPs.

Monitoring, Evaluation and Updating

All agencies receiving federal funds through DLG will report annually on services provided to LEP persons. Agencies will review their respective plans each year to evaluate their effectiveness and to make any needed changes. DLG will assist agencies in finding appropriate translation resources, and disseminate translated federal program notices, brochures, posters and other documents.

DLG will monitor the delivery of any required language assistance on an ongoing basis. It will review the LAP, evaluate the effectiveness of its implementation, and update the LAP, on an annual basis, in order to ensure continued responsiveness to community needs.

The LAP evaluation will consist of:

- Revision of the LAP, as necessary, by monitoring changes in demographics and services provided, updating available resources and tools, modifying methods of implementation and addressing any issues of concerns.

- Analysis of language assistance usage, including the amount of language service requests, surveying the languages most frequently encountered, identifying the primary modes of communication, and costs associated with services rendered.
- Assessment of response to requests by LEP individuals and Recipients regarding the delivery of language assistance services.

Availability and Access

The DLG Language Access Plan is available to the public on our website at <https://dlg.ky.gov/>. This information is available in a form accessible to persons with disabilities, and others, upon written request to: Department for Local Government, ATTN: Trey Greenwell, 100 Airport Road, 3rd Floor, Frankfort, Kentucky, 40601.

Citizens, public agencies and other interested parties will have reasonable and timely access to information and records relating to the Language Access Plan. All public records under KRS Statute 61.870-884 will be made accessible to anyone interested during normal working hours.

Complaints

At any time, citizens may submit complaints related to the DLG Language Access Plan by writing to the Department for Local Government, 100 Airport Road, 3rd Floor, Frankfort, Kentucky, 40601.

The Commonwealth will provide a written response to every written citizen complaint that relates to the DLG Language Access Plan within fifteen (15) working days.

Appendix A

Kentucky – American Community Survey 2023 Five-Year Estimates
Age by Language Spoken at Home for the Population Five
Years and Over in Limited English-Speaking Households (B16003)

Subject	Population	Speaks English Less Than "Very Well"	
		Population	Percentage
Total Population	4,268,599		
Speaks a Language Other Than English		89,046	2.09%
Spanish		50,464	1.18%
Indo-European		14,268	0.33%
Asian/Pacific Island		12,532	0.29%
Other		11,782	0.28%

Appendix B
2026 LEP Data by County

S1601 - Language Spoken at Home for the Population Five Years and Over in Limited English-Speaking Households (Per <https://data.census.gov> - ACSST5Y2024.S1601)

Geography	Population	Spanish		Indo-European		Asian-Pacific Island		Other Languages	
Area Name	Ages 5 & Older	LEP	%	LEP	%	LEP	%	LEP	%
Kentucky	4,268,599	50,464	1.18%	14,268	0.33%	12,532	0.29%	11,782	0.28%
Adair	18,189	126	0.69%	97	0.53%	0	0.00%	39	0.21%
Allen	20,042	88	0.44%	455	2.27%	3	0.01%	13	0.06%
Anderson	22,953	75	0.33%	0	0.00%	0	0.00%	0	0.00%
Ballard	7,328	16	0.22%	9	0.12%	30	0.41%	0	0.00%
Barren	42,144	614	1.46%	23	0.05%	55	0.13%	8	0.02%
Bath	11,977	7	0.06%	263	2.20%	10	0.08%	0	0.00%
Bell	22,090	11	0.05%	0	0.00%	17	0.08%	0	0.00%
Boone	130,931	1,961	1.50%	1,140	0.87%	991	0.76%	413	0.32%
Bourbon	19,054	462	2.42%	50	0.26%	20	0.10%	0	0.00%
Boyd	45,481	233	0.51%	50	0.11%	51	0.11%	84	0.18%
Boyle	29,430	212	0.72%	51	0.17%	86	0.29%	8	0.03%
Bracken	7,969	0	0.00%	0	0.00%	3	0.04%	0	0.00%
Breathitt	12,534	24	0.19%	0	0.00%	13	0.10%	0	0.00%
Breckinridge	19,604	9	0.05%	277	1.41%	6	0.03%	6	0.03%
Bullitt	79,814	1,057	1.32%	28	0.04%	287	0.36%	275	0.34%
Butler	11,638	290	2.49%	430	3.69%	23	0.20%	0	0.00%
Caldwell	11,861	15	0.13%	12	0.10%	0	0.00%	0	0.00%
Calloway	36,507	132	0.36%	140	0.38%	244	0.67%	0	0.00%
Campbell	88,343	698	0.79%	465	0.53%	160	0.18%	191	0.22%
Carlisle	4,477	28	0.63%	2	0.04%	0	0.00%	0	0.00%
Carroll	10,196	198	1.94%	121	1.19%	0	0.00%	5	0.05%
Carter	24,790	0	0.00%	4	0.02%	0	0.00%	5	0.02%
Casey	14,885	141	0.95%	127	0.85%	34	0.23%	0	0.00%
Christian	65,357	851	1.30%	878	1.34%	523	0.80%	40	0.06%
Clark	35,111	120	0.34%	31	0.09%	175	0.50%	9	0.03%
Clay	18,801	95	0.51%	0	0.00%	0	0.00%	5	0.03%
Clinton	8,658	94	1.09%	9	0.10%	0	0.00%	0	0.00%
Crittenden	8,493	0	0.00%	187	2.20%	27	0.32%	0	0.00%
Cumberland	5,594	7	0.13%	61	1.09%	0	0.00%	0	0.00%
Daviess	97,052	1,233	1.27%	326	0.34%	933	0.96%	254	0.26%
Edmonson	11,818	14	0.12%	65	0.55%	41	0.35%	0	0.00%
Elliott	7,044	0	0.00%	0	0.00%	0	0.00%	10	0.14%
Estill	13,354	116	0.87%	2	0.01%	82	0.61%	0	0.00%
Fayette	305,332	9,990	3.27%	3,638	1.19%	3,760	1.23%	3,163	1.04%
Fleming	14,317	24	0.17%	54	0.38%	30	0.21%	3	0.02%
Floyd	33,250	23	0.07%	15	0.05%	130	0.39%	8	0.02%
Franklin	49,165	665	1.35%	44	0.09%	291	0.59%	76	0.15%
Fulton	6,136	28	0.46%	0	0.00%	0	0.00%	0	0.00%

Geography	Population	Spanish		Indo-European		Asian-Pacific Island		Other Languages	
Area Name	Ages 5 & Older	LEP	%	LEP	%	LEP	%	LEP	%
Gallatin	8,253	100	1.21%	38	0.46%	0	0.00%	0	0.00%
Garrard	16,617	124	0.75%	41	0.25%	0	0.00%	0	0.00%
Grant	23,716	28	0.12%	5	0.02%	102	0.43%	0	0.00%
Graves	34,218	436	1.27%	71	0.21%	4	0.01%	0	0.00%
Grayson	24,936	67	0.27%	64	0.26%	0	0.00%	2	0.01%
Green	10,762	13	0.12%	127	1.18%	0	0.00%	17	0.16%
Greenup	33,784	182	0.54%	75	0.22%	58	0.17%	0	0.00%
Hancock	8,534	9	0.11%	18	0.21%	2	0.02%	0	0.00%
Hardin	104,911	976	0.93%	438	0.42%	638	0.61%	0	0.00%
Harlan	24,246	46	0.19%	26	0.11%	6	0.02%	0	0.00%
Harrison	17,948	38	0.21%	40	0.22%	8	0.04%	0	0.00%
Hart	18,371	2	0.01%	421	2.29%	26	0.14%	0	0.00%
Henderson	41,876	398	0.95%	60	0.14%	10	0.02%	0	0.00%
Henry	14,935	191	1.28%	14	0.09%	0	0.00%	0	0.00%
Hickman	4,250	2	0.05%	13	0.31%	3	0.07%	0	0.00%
Hopkins	42,501	405	0.95%	19	0.04%	0	0.00%	0	0.00%
Jackson	12,289	10	0.08%	0	0.00%	0	0.00%	0	0.00%
Jefferson	735,218	27,971	3.80%	7,278	0.99%	5,253	0.71%	6,769	0.92%
Jessamine	51,297	784	1.53%	746	1.45%	213	0.42%	33	0.06%
Johnson	21,177	60	0.28%	0	0.00%	0	0.00%	0	0.00%
Kenton	160,403	1,960	1.22%	331	0.21%	485	0.30%	733	0.46%
Knott	13,225	15	0.11%	8	0.06%	0	0.00%	7	0.05%
Knox	28,043	54	0.19%	50	0.18%	0	0.00%	0	0.00%
Larue	14,303	109	0.76%	0	0.00%	3	0.02%	0	0.00%
Laurel	59,371	105	0.18%	64	0.11%	222	0.37%	0	0.00%
Lawrence	15,146	21	0.14%	13	0.09%	0	0.00%	0	0.00%
Lee	6,996	34	0.49%	0	0.00%	0	0.00%	0	0.00%
Leslie	9,583	0	0.00%	0	0.00%	6	0.06%	0	0.00%
Letcher	19,718	65	0.33%	0	0.00%	2	0.01%	0	0.00%
Lewis	12,197	0	0.00%	12	0.10%	0	0.00%	0	0.00%
Lincoln	22,792	55	0.24%	145	0.64%	12	0.05%	9	0.04%
Livingston	8,406	5	0.06%	0	0.00%	0	0.00%	0	0.00%
Logan	26,091	208	0.80%	141	0.54%	38	0.15%	9	0.03%
Lyon	8,647	18	0.21%	13	0.15%	0	0.00%	0	0.00%
McCracken	63,835	203	0.32%	111	0.17%	230	0.36%	60	0.09%
McCreary	15,936	103	0.65%	8	0.05%	0	0.00%	6	0.04%
McLean	8,614	47	0.55%	0	0.00%	0	0.00%	20	0.23%
Madison	90,459	792	0.88%	160	0.18%	254	0.28%	37	0.04%
Magoffin	10,662	35	0.33%	0	0.00%	19	0.18%	0	0.00%
Marion	18,606	298	1.60%	6	0.03%	28	0.15%	0	0.00%
Marshall	30,254	14	0.05%	0	0.00%	24	0.08%	0	0.00%
Martin	10,392	34	0.33%	14	0.13%	0	0.00%	0	0.00%
Mason	15,994	0	0.00%	8	0.05%	75	0.47%	0	0.00%

Geography	Population	Spanish		Indo-European		Asian-Pacific Island		Other Languages	
Area Name	Ages 5 & Older	LEP	%	LEP	%	LEP	%	LEP	%
Meade	28,657	48	0.17%	28	0.10%	19	0.07%	0	0.00%
Menifee	5,887	24	0.41%	0	0.00%	0	0.00%	0	0.00%
Mercer	21,563	337	1.56%	46	0.21%	0	0.00%	44	0.20%
Metcalfe	9,854	136	1.38%	31	0.31%	0	0.00%	3	0.03%
Monroe	10,578	64	0.61%	0	0.00%	0	0.00%	0	0.00%
Montgomery	26,842	176	0.66%	28	0.10%	54	0.20%	0	0.00%
Morgan	13,299	54	0.41%	0	0.00%	0	0.00%	8	0.06%
Muhlenberg	28,943	109	0.38%	14	0.05%	10	0.03%	17	0.06%
Nelson	44,730	415	0.93%	177	0.40%	141	0.32%	0	0.00%
Nicholas	7,273	24	0.33%	0	0.00%	0	0.00%	0	0.00%
Ohio	22,454	360	1.60%	40	0.18%	3	0.01%	0	0.00%
Oldham	65,849	767	1.16%	174	0.26%	229	0.35%	17	0.03%
Owen	10,740	129	1.20%	3	0.03%	0	0.00%	9	0.08%
Owsley	3,682	0	0.00%	0	0.00%	0	0.00%	0	0.00%
Pendleton	13,890	17	0.12%	36	0.26%	3	0.02%	0	0.00%
Perry	25,851	9	0.03%	12	0.05%	10	0.04%	0	0.00%
Pike	53,909	165	0.31%	22	0.04%	51	0.09%	51	0.09%
Powell	12,269	6	0.05%	43	0.35%	0	0.00%	0	0.00%
Pulaski	62,231	442	0.71%	119	0.19%	232	0.37%	13	0.02%
Robertson	2,196	0	0.00%	0	0.00%	0	0.00%	0	0.00%
Rockcastle	15,300	68	0.44%	15	0.10%	0	0.00%	0	0.00%
Rowan	23,278	51	0.22%	24	0.10%	68	0.29%	20	0.09%
Russell	17,199	238	1.38%	78	0.45%	0	0.00%	0	0.00%
Scott	55,853	761	1.36%	71	0.13%	78	0.14%	0	0.00%
Shelby	46,271	1,863	4.03%	24	0.05%	69	0.15%	169	0.37%
Simpson	18,902	289	1.53%	35	0.19%	8	0.04%	16	0.08%
Spencer	19,133	8	0.04%	39	0.20%	25	0.13%	0	0.00%
Taylor	24,897	0	0.00%	138	0.55%	8	0.03%	0	0.00%
Todd	11,559	257	2.22%	235	2.03%	0	0.00%	0	0.00%
Trigg	13,501	91	0.67%	213	1.58%	0	0.00%	0	0.00%
Trimble	8,131	65	0.80%	0	0.00%	0	0.00%	0	0.00%
Union	12,575	27	0.21%	0	0.00%	4	0.03%	0	0.00%
Warren	131,732	3,388	2.57%	2,212	1.68%	3,519	2.67%	1,850	1.40%
Washington	11,431	4	0.03%	102	0.89%	56	0.49%	0	0.00%
Wayne	18,557	355	1.91%	21	0.11%	6	0.03%	0	0.00%
Webster	12,084	454	3.76%	20	0.17%	0	0.00%	0	0.00%
Whitley	34,301	29	0.08%	40	0.12%	20	0.06%	10	0.03%
Wolfe	6,051	102	1.69%	11	0.18%	0	0.00%	0	0.00%
Woodford	25,916	1,041	4.02%	5	0.02%	29	0.11%	0	0.00%

Appendix C

List of Formal Interpreters (for any language if necessary and cost is not prohibitive):

- Catholic Charities of Louisville
 - Main Office
 - 435 E. Broadway, Louisville
 - (502) 637-9786
 - languages@archlou.org
 - <https://cclou.org/language-services/>
- The International Center of Kentucky
 - Main Office
 - 806 Kenton St., Bowling Green
 - (270) 781-8336
 - <https://www.icofky.com/interpretation-translation>
- Central Kentucky Interpreter Referral
 - Main Office
 - 212 S. Second St., Danville
 - (859) 236-9888
 - (859) 439-0070 (videophone)
 - easytoreserve@ckira.org
 - <http://www.ckira.org/>
- Language Line Solutions
 - (800) 752-6096
 - <http://www.language-line.com/>

Appendix D

Examples of Vital Documents:

- Citizen Participation Notices
- Survey Instruments
- Housing-Related Documents
 - Lead-Based Paint Notification
 - Application
 - Lease
 - Note
 - Mortgage
- Drug-Free Certification